

No. 20-12897

**THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT**

DEEPGULF, INC. AND TOKE OIL AND GAS, S.A.

Plaintiff/Appellant,

v.

MARC MOSZKOWSKI,

Defendant /Appellee

On Appeal from the United States District Court for the
Northern District of Florida, Pensacola Division
Case No. 3:18-cv-01466-TKW-MJF

**APPENDIX TO INITIAL BRIEF OF APPELLANT
VOLUME I**

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Respectfully Submitted,

/s/ Braden K. Ball, Jr.

BRADEN K. BALL, JR.

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 5th day of October, 2020, a copy of the foregoing has been furnished to the Defendant/Appellee, Marc M. Moszkowski, Chalet De Bulvedere, Le Croy 73350, Champagny-EN, Vanoise, FF (m.moszkowski@deepgulf.net) via the Court's E-filing system.

/s/ Braden K. Ball, Jr.

BRADEN K. BALL, JR.

A

CLOSED,APPEAL

**U.S. District Court
Northern District of Florida (Pensacola)
CIVIL DOCKET FOR CASE #: 3:18-cv-01466-TKW-MJF**

DEEPGULF INC et al v. MOSZKOWSKI
Assigned to: JUDGE T KENT WETHERELL II
Referred to: MAGISTRATE JUDGE MICHAEL J FRANK
Case in other court: 20-12897-G
Cause: 28:1441 Notice of Removal

Date Filed: 06/25/2018
Date Terminated: 07/02/2020
Jury Demand: None
Nature of Suit: 440 Civil Rights: Other
Jurisdiction: Federal Question

Plaintiff

DEEPGULF INC

represented by **BRADEN KIRK BALL , JR**
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Plaintiff

TOKE OIL AND GAS S A

represented by **BRADEN KIRK BALL , JR**
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V.

Defendant

MARC M MOSZKOWSKI

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TERMINATED: 08/07/2020

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TERMINATED: 08/07/2020

Counter Claimant

MARC M MOSZKOWSKI

represented by **MARY ALLIE ELIZABETH
BOLLER**

(See above for address)

TERMINATED: 08/07/2020

THOMAS RICHARD BOLLER

(See above for address)

TERMINATED: 08/07/2020

Counter Defendant

DEEPGULF INC

represented by **BRADEN KIRK BALL , JR**
(See above for address)

ATTORNEY TO BE NOTICED

Counter Defendant

TOKE OIL AND GAS S A

represented by **BRADEN KIRK BALL , JR**
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ATTORNEY TO BE NOTICED

Counter Claimant

MARC M MOSZKOWSKI

represented by **MARY ALLIE ELIZABETH
BOLLER**

(See above for address)

TERMINATED: 08/07/2020

THOMAS RICHARD BOLLER

(See above for address)

TERMINATED: 08/07/2020

Counter Defendant

DEEPGULF INC

represented by **BRADEN KIRK BALL , JR**
(See above for address)

ATTORNEY TO BE NOTICED

Counter Defendant

TOKE OIL AND GAS S A

represented by **BRADEN KIRK BALL, JR**
 (See above for address)
ATTORNEY TO BE NOTICED

Date Filed	#	Docket Text
06/25/2018	<u>1</u>	NOTICE OF REMOVAL by MARC M MOSZKOWSKI from Circuit Court in and for Escambia County, Florida, case number 2018CA000543 filed by MARC M MOSZKOWSKI. (Pro Se) (bkp) (Entered: 06/25/2018)
06/25/2018	<u>2</u>	MOTION for Extension of Time to File Answer by MARC M MOSZKOWSKI. (bkp) (Entered: 06/25/2018)
06/25/2018	<u>3</u>	Filing fee: \$ 400.00, receipt number FLN 3-12015. Fee status updated to <i>paid</i> . (bkp) (Entered: 06/25/2018)
06/25/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE GARY R JONES notified that action is needed Re: <u>2</u> MOTION for Extension of Time to File Answer. Referred to GARY R JONES. (bkp) (Entered: 06/25/2018)
06/25/2018	4	EMAIL NOTICE by Clerk of CM/ECF Registration Requirement as to Plaintiff's attorney Braden and Andrews (bkp) (Entered: 06/25/2018)
06/26/2018	<u>5</u>	ORDER granting <u>2</u> Motion for Extension of Time to Answer MARC M MOSZKOWSKI answer due 7/24/2018. A copy of order was emailed to defendant. Signed by MAGISTRATE JUDGE GARY R JONES on 6/26/18. (bkp) (Entered: 06/26/2018)
07/19/2018	<u>6</u>	MOTION for Extension of Time to File Answer by MARC M MOSZKOWSKI. (bkp) (Entered: 07/19/2018)
07/19/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE GARY R JONES notified that action is needed Re: <u>6</u> MOTION for Extension of Time to File Answer. Referred to GARY R JONES. (bkp) (Entered: 07/19/2018)
07/25/2018	<u>7</u>	ORDER granting <u>6</u> Motion for Extension of Time to Answer MARC M MOSZKOWSKI answer/Response due 8/23/2018. Signed by MAGISTRATE JUDGE GARY R JONES on 7/25/18. (bkp) (Entered: 07/26/2018)
08/21/2018	<u>8</u>	NOTICE of Appearance by BRADEN KIRK BALL, JR on behalf of All Plaintiffs (BALL, BRADEN) (Entered: 08/21/2018)
08/22/2018	<u>9</u>	ANSWER to Complaint by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> EXHIBIT A) (bkp) (Entered: 08/22/2018)
08/22/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE GARY R JONES notified that action is needed Re: <u>9</u> Answer to Complaint. (bkp) (Entered: 08/22/2018)
08/30/2018	<u>10</u>	CASE MANAGEMENT AND SCHEDULING ORDER: Fed.R.Civ.P. 7.1 Corporate Disclosure Statement Deadline set for 9/13/2018 . Rule 26 Meeting Report due by 10/15/2018 . Discovery due by 11/28/2018 . Signed by

		MAGISTRATE JUDGE GARY R JONES on 8/30/2018. (atm) (Entered: 08/31/2018)
09/07/2018	<u>11</u>	Corporate Disclosure Statement/Certificate of Interested Persons by DEEPGULF INC, TOKE OIL AND GAS INC identifying Corporate Parent DeepGulf, Inc. for DEEPGULF INC, TOKE OIL AND GAS INC.. (BALL, BRADEN) (Entered: 09/07/2018)
09/11/2018	<u>12</u>	MOTION to Strike <u>9</u> Answer to Complaint by DEEPGULF INC, TOKE OIL AND GAS INC. (Internal deadline for referral to judge if response not filed earlier: 9/25/2018). (BALL, BRADEN) (Entered: 09/11/2018)
09/11/2018	<u>13</u>	REPLY by DEEPGULF INC, TOKE OIL AND GAS INC re <u>9</u> Answer to Complaint by DEEPGULF INC, TOKE OIL AND GAS INC. (BALL, BRADEN) (Entered: 09/11/2018)
09/11/2018	<u>14</u>	REPLY by DEEPGULF INC, TOKE OIL AND GAS INC re <u>9</u> Answer to Complaint by DEEPGULF INC, TOKE OIL AND GAS INC. (BALL, BRADEN) (Entered: 09/11/2018)
09/17/2018	<u>15</u>	MOTION Petitioning The Court To Grant The Defendant Privilege To Electronically Upload Legal Documents To The Civil Docket Through His CM/ECF Pacer Account, by MARC M MOSZKOWSKI. (MB) (Entered: 09/17/2018)
09/17/2018	<u>16</u>	Defendant's REPLIES To <u>9</u> Answer to Defendant's Counterclaim And Reply To Affirmative Defenses, by MARC M MOSZKOWSKI. (MB) (Entered: 09/17/2018)
09/17/2018	<u>17</u>	Defendant's REPLIES To Plaintiff's <u>12</u> MOTION to Strike Defendant's Affirmative Defenses To Numbers Two Through Eight, filed by MARC M MOSZKOWSKI. (MB) (Entered: 09/17/2018)
09/17/2018	<u>18</u>	Defendant's REPLIES To Plaintiff's <u>13</u> Reply To Affirmative Defenses, by MARC M MOSZKOWSKI. (MB) (Entered: 09/17/2018)
09/17/2018	<u>19</u>	Defendant's REPLIES To Plaintiff's Statements, Consequences Thereof, And Conflict of Interest re <u>11</u> Corporate Disclosure Statement, by MARC M MOSZKOWSKI. (MB) (Entered: 09/17/2018)
09/17/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE GARY R JONES notified that action is needed Re: <u>15</u>] MOTION Petitioning The Court To Grant The Defendant Privilege To Electronically Upload Legal Documents To The Civil Docket Through His CM/ECF Pacer Account, <u>16</u> Defendant's REPLIES To <u>9</u> Answer to Defendant's Counterclaim And Reply To Affirmative Defenses, <u>17</u> Defendant's REPLIES To Plaintiff's <u>12</u> MOTION to Strike Defendant's Affirmative Defenses To Numbers Two Through Eight, <u>18</u> Defendant's REPLIES To Plaintiff's <u>13</u> Reply To Affirmative Defenses, <u>19</u> Defendant's REPLIES To Plaintiff's Statements, Consequences Thereof, And Conflict of Interest re <u>11</u> Corporate Disclosure Statement. Referred to GARY R JONES. (MB) (Entered: 09/17/2018)
09/18/2018	<u>20</u>	ORDER granting <u>15</u> MOTION Petitioning The Court To Grant The Defendant Privilege To Electronically Upload Legal Documents To The Civil Docket

		Through His CM/ECF Pacer Account, by MARC M MOSZKOWSKI. Signed by MAGISTRATE JUDGE GARY R JONES on 9/18/18. (bkp) (Entered: 09/18/2018)
09/18/2018	<u>21</u>	Corporate Disclosure Statement/Certificate of Interested Persons by DEEPGULF INC, TOKE OIL AND GAS INC identifying Corporate Parent DeepGulf, Inc. for DEEPGULF INC, TOKE OIL AND GAS INC.. (BALL, BRADEN) (Entered: 09/18/2018)
09/18/2018	<u>22</u>	MOTION Motion to Correct Scrivener's Error by DEEPGULF INC, TOKE OIL AND GAS INC. (BALL, BRADEN) (Entered: 09/18/2018)
09/19/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE GARY R JONES notified that action is needed Re: <u>21</u> Corporate Disclosure Statement/Certificate of Interested Persons, <u>22</u> MOTION to Correct Scrivener's Error Referred to GARY R JONES. (kdm) (Entered: 09/19/2018)
09/19/2018	<u>23</u>	ORDER granting <u>22</u> Motion to Correct Scrivener's Error by DEEPGULF INC, TOKE OIL AND GAS INC. The Clerk is directed to change the docket to reflect that the Plaintiff is Toke Oil and Gas, S.A. Signed by MAGISTRATE JUDGE GARY R JONES on 9/19/18. (bkp) (Entered: 09/19/2018)
09/19/2018	<u>24</u>	ORDER REASSIGNING CASE. Case reassigned to MAGISTRATE JUDGE MICHAEL J FRANK for all further proceedings. MAGISTRATE JUDGE GARY R JONES no longer assigned to case. **Please use the new initials MJF on all future pleadings; i.e. 3:18cv1466-MCR-MJF. Signed by CHIEF JUDGE MARK E WALKER on 9/19/2018. (erl) (Entered: 09/19/2018)
09/24/2018	<u>25</u>	MEMORANDUM in Support re <u>9</u> Answer to Complaint <i>Detailed comments to the Complaint Supplementing his Answer and Defenses</i> by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 09/24/2018)
09/24/2018	<u>26</u>	MEMORANDUM in Support re <u>9</u> Answer to Complaint <i>Statement about the Valuation of Plaintiff Toke Oil and Gas S.A. Supplementing his Answer and Defenses</i> by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 09/24/2018)
09/24/2018	<u>27</u>	MEMORANDUM in Support re <u>9</u> Answer to Complaint <i>Statement in Support of his Answer and Defenses Prior to the Conference of Parties</i> by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 09/24/2018)
09/28/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>12</u> MOTION to Strike <u>9</u> Answer to Complaint , <u>17</u> Response to Motion. Referred to MICHAEL J FRANK. (jcw) (Entered: 09/28/2018)
10/03/2018	<u>28</u>	ORDER denying without prejudice <u>12</u> Motion to Strike. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 10/3/2018. (jcw) (Entered: 10/03/2018)
10/15/2018	<u>29</u>	REPORT of Rule 26(f) Planning Meeting. (BALL, BRADEN) (Entered: 10/15/2018)
10/16/2018		

		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>29</u> Report of Rule 26(f) Planning Meeting. (MB) (Entered: 10/16/2018)
10/23/2018	<u>30</u>	FINAL SCHEDULING ORDER AND MEDIATION REFERRAL Re: <u>29</u> Report of Rule 26(f) Planning Meeting :(Discovery due by 1/31/2019. , Dispositive Motions to be filed by 2/21/2019. , Mediation to take place by 2/28/2019. , Mediation Report due by 3/4/2019.), Case referred to mediation. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 10/23/18. (pll) (Entered: 10/23/2018)
12/17/2018	<u>31</u>	MOTION to Compel by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 12/17/2018)
12/17/2018		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>31</u> MOTION to Compel . Referred to MICHAEL J FRANK. (jcw) (Entered: 12/17/2018)
12/28/2018	<u>32</u>	MOTION to Extend Time by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 12/28/2018)
12/30/2018	<u>33</u>	RESPONSE in Opposition re <u>31</u> MOTION to Compel filed by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 12/30/2018)
12/30/2018	<u>34</u>	RESPONSE in Opposition re <u>32</u> MOTION to Extend Time filed by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 12/30/2018)
01/02/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>32</u> MOTION to Extend Time, <u>31</u> MOTION to Compel , <u>33</u> Response in Opposition to Motion, <u>34</u> Response in Opposition to Motion. Referred to MICHAEL J FRANK. (jcw) (Entered: 01/02/2019)
01/02/2019	<u>35</u>	ORDER granting <u>32</u> Motion to Extend Time. Plaintiffs must respond to Defendant's requests for production by January 11, 2019. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 1/2/2019. (jcw) (Entered: 01/02/2019)
01/04/2019	<u>36</u>	MEMORANDUM in Opposition re <u>31</u> MOTION to Compel filed by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 01/04/2019)
01/08/2019	<u>37</u>	ORDER. Within FOURTEEN (14) DAYS of the entry of this order, the Plaintiffs may respond to "Defendant's Supplemental Memorandum Regarding the Production of Initial Disclosures, in Support of his Response in Opposition to Plaintiffs' Motion to Compel." <u>36</u> . That response shall state the Plaintiffs' position on whether Defendant fulfilled his obligation to complete initial disclosures or whether issues remain outstanding. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 1/8/19. (Internal deadline for referral to judge if response not filed earlier: 1/23/2019.) (mlp) (Entered: 01/09/2019)
01/11/2019	<u>38</u>	STATEMENT OF FACTS <i>Response to Defendant's Supplemental Memorandum</i> Re: <u>37</u> Order,,, Set Deadlines/Hearings,, <u>36</u> Memorandum in Opposition to

		Motion filed by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 01/11/2019)
01/14/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>38</u> Response to Defendant's Supplemental Memorandum re <u>37</u> Order. (jcw) (Entered: 01/14/2019)
01/15/2019	<u>39</u>	MOTION to Compel by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 01/15/2019)
01/16/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>39</u> MOTION to Compel . Referred to MICHAEL J FRANK. (MB) (Entered: 01/16/2019)
01/24/2019	<u>40</u>	RESPONSE to Motion re <u>39</u> MOTION to Compel filed by DEEPGULF INC. (BALL, BRADEN) (Entered: 01/24/2019)
01/25/2019	<u>41</u>	RESPONSE in Support re <u>39</u> MOTION to Compel filed by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 01/25/2019)
01/28/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>40</u> Response to Motion, <u>41</u> Response in Support of Motion. (jcw) (Entered: 01/28/2019)
01/30/2019	<u>42</u>	ORDER denying without prejudice due to its prematurity <u>31</u> Motion to Compel. The parties must confer and make a good faith effort to reach an agreement regarding the location of the Defendants deposition and the mediation of this case. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 1/30/2019. (jcw) (Entered: 01/30/2019)
01/31/2019	<u>43</u>	MOTION to Extend Time by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 01/31/2019)
01/31/2019	<u>44</u>	MEMORANDUM in Support re <u>43</u> MOTION to Extend Time filed by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 01/31/2019)
02/01/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>43</u> MOTION to Extend Time, <u>44</u> Memorandum in Support of Motion. Referred to MICHAEL J FRANK. (jcw) (Entered: 02/01/2019)
02/05/2019	<u>45</u>	ORDER denying without prejudice <u>39</u> Motion to Compel. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 2/5/2019. (jcw) (Entered: 02/06/2019)
02/15/2019	<u>46</u>	ORDER re <u>43</u> . The discovery deadline is extended to March 29, 2019. Mediation shall be scheduled within FOURTEEN (14) DAYS of the docketing of this order and shall take place within THIRTY (30) DAYS of the docketing of this order. Any and all dispositive motions shall be filed by April 29, 2019. In accordance with 28 U.S.C. § 636(c)(2), the clerk of court shall forward to the Plaintiffs attorney and the Defendant a form for consenting to have a United

		States Magistrate Judge exercise civil jurisdiction in this case, with the case number written on it. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 2/15/19. (Dispositive Motions to be filed by 4/29/2019. , Discovery due by 3/29/2019. , Mediation to take place by 3/18/2019.). (mlp) (Entered: 02/15/2019)
02/27/2019	<u>47</u>	NOTICE OF MEDIATION re Scheduling by DEEPGULF INC, TOKE OIL AND GAS S.A. (BALL, BRADEN) (Entered: 02/27/2019)
03/04/2019	<u>48</u>	Notice to Pro Se (BALL, BRADEN) (Entered: 03/04/2019)
03/05/2019	<u>49</u>	DISCOVERY ADVISORY: Re <u>48</u> Notice to Pro Se. Counsel's attention is directed to Federal Rule of Civil Procedure 5(d), which prohibits the filing of discovery materials (including notices of deposition, deposition transcripts, interrogatories and interrogatory responses and notices thereof, production requests and responses and notices thereof, and admissions requests and responses and notices thereof) and disclosures under Rules 26(a)(1) and 26(a)(2), unless and until needed for consideration of pending motions by the court. This advisory serves as notice that no further discovery materials should be filed and all discovery posting options have been removed from CMECF. (jcw) (Entered: 03/05/2019)
03/08/2019	<u>50</u>	MOTION for Mediation by MARC M MOSZKOWSKI. (Internal deadline for referral to judge if response not filed earlier: 3/22/2019). (MOSZKOWSKI, MARC) (Entered: 03/08/2019)
03/08/2019	<u>51</u>	MEMORANDUM in Support re <u>50</u> MOTION for Mediation filed by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 03/08/2019)
03/08/2019	<u>52</u>	MOTION for Protective Order by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 03/08/2019)
03/08/2019	<u>53</u>	MEMORANDUM in Support re <u>52</u> MOTION for Protective Order filed by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 03/08/2019)
03/11/2019	<u>54</u>	REFERRAL AND ORDER granting <u>50</u> Motion for Mediation. Defendant may participate in mediation on March 14, 2019 by telephone. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 3/11/2019. (jcw) (Entered: 03/11/2019)
03/12/2019	<u>55</u>	RESPONSE to Motion re <u>52</u> MOTION for Protective Order filed by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 03/12/2019)
03/12/2019	<u>56</u>	AMENDED RESPONSE to Motion re <u>52</u> MOTION for Protective Order filed by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) Modified on 3/14/2019 (jcw). (Entered: 03/12/2019)
03/13/2019	<u>57</u>	REPLY to Response to Motion re <u>52</u> MOTION for Protective Order filed by MARC M MOSZKOWSKI. (MOSZKOWSKI, MARC) (Entered: 03/13/2019)
03/13/2019	<u>58</u>	NOTICE OF MEDIATION re Scheduling by DEEPGULF INC, TOKE OIL AND GAS S.A. (BALL, BRADEN) (Entered: 03/13/2019)
03/13/2019	<u>59</u>	STATEMENT OF FACTS Re: <u>58</u> Notice of Mediation re Scheduling. (MOSZKOWSKI, MARC) (Entered: 03/13/2019)

03/14/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>59</u> Statement of Facts, <u>58</u> Notice of Mediation re Scheduling, <u>56</u> Amended Response to Motion, <u>57</u> Reply to Response to Motion. (jcw) (Entered: 03/14/2019)
03/15/2019	<u>60</u>	AMENDED DOCUMENT by MARC M MOSZKOWSKI. Amendment to <u>57</u> Reply to Response to Motion <i>for Protective Order</i> . (MOSZKOWSKI, MARC) (Entered: 03/15/2019)
03/20/2019	<u>61</u>	NOTICE by DEEPGULF INC, TOKE OIL AND GAS S.A. (BALL, BRADEN) (Entered: 03/20/2019)
03/21/2019	<u>62</u>	NOTICE of Telephonic Hearing on <u>52</u> MOTION for Protective Order. Motion Hearing set for 3/27/2019 at 10:00 AM CDT via telephone before MAGISTRATE JUDGE MICHAEL J FRANK. (Instructions to be sent separately.) (jcw) (Entered: 03/21/2019)
03/21/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>61</u> Notice of Filing. (jcw) (Entered: 03/21/2019)
03/25/2019	<u>63</u>	NOTICE of Appearance by MARY ALLIE ELIZABETH BOLLER on behalf of MARC M MOSZKOWSKI (BOLLER, MARY ALLIE) (Entered: 03/25/2019)
03/26/2019	<u>64</u>	MOTION to Appear Pro Hac Vice by Thomas Boller.(Filing fee \$ 201 receipt number AFLNDC-4440640.) by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibit Certificate Good Standing, # <u>2</u> Exhibit Verified Statement) (BOLLER, THOMAS) (Entered: 03/26/2019)
03/27/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>64</u> MOTION to Appear Pro Hac Vice by Thomas Boller. Referred to MICHAEL J FRANK. (jcw) (Entered: 03/27/2019)
03/27/2019	<u>65</u>	ORDER granting <u>64</u> Motion to Appear Pro Hac Vice. Attorney Thomas R. Boller is admitted Pro Hac Vice to represent theDefendant pursuant to Local Rule 11.1(c). Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 3/27/2019. (jcw) (Entered: 03/27/2019)
03/27/2019	<u>66</u>	Minute Entry for proceedings held before MAGISTRATE JUDGE MICHAEL J FRANK: Motion Hearing held on 3/27/2019 re <u>52</u> MOTION for Protective Order filed by MARC M MOSZKOWSKI. Motion denied as moot. Parties must notify the Court of the progress of further motions by 4/1/2019 . (Court Reporter Julie Wycoff.) (kgc) (Entered: 03/27/2019)
03/27/2019	<u>67</u>	REFERRAL AND ORDER denying as moot <u>52</u> Motion for Protective Order. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 3/27/2019. (jcw) (Entered: 03/27/2019)
03/29/2019	<u>68</u>	Joint MOTION to Extend Timein <i>Final Scheduling Order</i> by MARC M MOSZKOWSKI. (BOLLER, THOMAS) (Entered: 03/29/2019)
04/01/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re:

		<u>68</u> Joint MOTION to Extend Timein <i>Final Scheduling Order</i> . Referred to MICHAEL J FRANK. (jew) (Entered: 04/01/2019)
04/02/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE M CASEY RODGERS notified that action is needed Re: <u>68</u> Joint MOTION to Extend Timein <i>Final Scheduling Order</i> (jew) (Entered: 04/02/2019)
04/04/2019	<u>69</u>	ORDER. The parties' Joint Motion to Extend Dates in Final Scheduling Order, ECF No. <u>68</u> , is GRANTED. All discovery must be completed by 7/30/2019 . The deadline to complete mediation is 7/31/2019 . The deadline for filing potentially dispositive motions, as well as Daubert motions, is 8/15/2019 . Mediation Report due by 8/14/2019 . Signed by JUDGE M CASEY RODGERS on 4/4/2019. (MB) (Entered: 04/04/2019)
04/15/2019	<u>70</u>	AMENDED ANSWER to <i>COMPLAINT</i> , COUNTERCLAIM against All Plaintiffs by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 04/15/2019)
04/18/2019	<u>71</u>	MOTION to Strike <u>70</u> Amended Answer to Complaint, Counterclaim by DEEPGULF INC, TOKE OIL AND GAS S.A.. (Internal deadline for referral to judge if response not filed earlier: 5/2/2019). (BALL, BRADEN) (Entered: 04/18/2019)
04/18/2019	<u>72</u>	MEMORANDUM IN SUPPORT OF <u>71</u> MOTION TO STRIKE <u>70</u> Amended Answer to Complaint, Counterclaim by DEEPGULF INC, TOKE OIL AND GAS S.A.. (Internal deadline for referral to judge if response not filed earlier: 5/2/2019). (BALL, BRADEN) (Entered: 04/18/2019)
04/18/2019	<u>73</u>	MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM by DEEPGULF INC, TOKE OIL AND GAS S.A.. Motions referred to MICHAEL J FRANK. (BALL, BRADEN) (Entered: 04/18/2019)
04/18/2019		Set Deadlines re <u>73</u> MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM. (Internal deadline for referral to judge if response not filed earlier: 5/2/2019 .) (sdw) (Entered: 04/18/2019)
04/19/2019		Motions No Longer Referred to MAGISTRATE JUDGE MICHAEL J. FRANK: <u>73</u> MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM (jew) (Entered: 04/19/2019)
05/01/2019	<u>74</u>	RESPONSE in Opposition re <u>71</u> MOTION to Strike <u>70</u> Amended Answer to Complaint, Counterclaim filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 05/01/2019)
05/01/2019	<u>75</u>	MEMORANDUM in Opposition re <u>71</u> MOTION to Strike <u>70</u> Amended Answer to Complaint, Counterclaim filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 05/01/2019)
05/01/2019	<u>76</u>	RESPONSE in Opposition re <u>73</u> MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 05/01/2019)
05/01/2019	<u>77</u>	MEMORANDUM in Opposition re <u>73</u> MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 05/01/2019)

05/02/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE M CASEY RODGERS notified that action is needed Re: <u>74</u> RESPONSE in Opposition re <u>71</u> MOTION to Strike, <u>75</u> MEMORANDUM in Opposition re <u>71</u> MOTION to Strike <u>70</u> Amended Answer to Complaint, Counterclaim; <u>76</u> RESPONSE in Opposition re <u>73</u> MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM, <u>77</u> MEMORANDUM in Opposition re 73 MOTION TO DISMISS FOR FAILURE TO STATE A CLAIM (MB) (Entered: 05/02/2019)
06/14/2019	<u>78</u>	Second MOTION for Protective Order by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 06/14/2019)
06/14/2019	<u>79</u>	MEMORANDUM in Support re <u>78</u> Second MOTION for Protective Order filed by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibit Exhibits) (BOLLER, MARY ALLIE) (Entered: 06/14/2019)
06/14/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>78</u> Second MOTION for Protective Order , <u>79</u> Memorandum in Support of Motion. Referred to MICHAEL J FRANK. (MB) (Entered: 06/14/2019)
06/18/2019	<u>80</u>	RESPONSE to Motion re <u>78</u> Second MOTION for Protective Order filed by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 06/18/2019)
06/18/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>80</u> RESPONSE to Motion re <u>78</u> Second MOTION for Protective Order filed by DEEPGULF INC, TOKE OIL AND GAS S.A. (MB) (Entered: 06/18/2019)
06/18/2019	<u>81</u>	RESPONSE to Motion re <u>78</u> Second MOTION for Protective Order filed by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 06/18/2019)
06/18/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>81</u> RESPONSE to Motion re <u>78</u> Second MOTION for Protective Order filed by DEEPGULF INC, TOKE OIL AND GAS S.A.. (MB) (Entered: 06/19/2019)
06/19/2019	<u>82</u>	ORDER AND NOTICE OF HEARING re <u>78</u> Second MOTION for Protective Order. If the parties are unable to reach an agreement, at the hearing, Defendant's counsel should be prepared to elect whether Defendant will travel to Pensacola to be deposed or will pay for Plaintiff's counsel to travel to France to depose him. Additionally, on or before June 25, 2019, Plaintiff shall file an estimate of the cost of deposing the Defendant in France. Finally, on or before June 25, 2019, Defendant shall file an estimate of the cost of Defendant's travel to the United States in a manner that would accommodate the Defendant's medical condition. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 6/19/2019. (Motion Hearing set for 6/27/2019 11:30 AM in U.S. Courthouse Pensacola before MAGISTRATE JUDGE MICHAEL J FRANK. Estimates for deposition due by 6/25/2019). (jcw) (Entered: 06/19/2019)
06/19/2019	<u>83</u>	MOTION to Continue by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 06/19/2019)

06/20/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>83</u> MOTION to Continue . Referred to MICHAEL J FRANK. (jcw) (Entered: 06/20/2019)
06/20/2019	<u>85</u>	ORDER AND NOTICE OF HEARING re <u>78</u> Second MOTION for Protective Order; granting <u>83</u> Motion to Continue. If the parties are unable to reach an agreement, at the hearing, Defendant's counsel should be prepared to elect whether Defendant will travel to Pensacola to be deposed or will pay for Plaintiff's counsel to travel to France to depose him. Additionally, on or before July 1, 2019, Plaintiff shall file an estimate of the cost of deposing the Defendant in France. Finally, on or before July 1, 2019, Defendant shall file an estimate of the cost of Defendant's travel to the United States in a manner that would accommodate the Defendant's medical condition. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 6/20/2019. (Motion Hearing set for 7/3/2019 09:30 AM in U.S. Courthouse Pensacola before MAGISTRATE JUDGE MICHAEL J FRANK.) (jcw) (Entered: 06/21/2019)
06/20/2019		**Duplicate - ORDER granting <u>83</u> Motion to Continue. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 6/20/2019. (erl) (Entered: 10/16/2019)
06/21/2019	<u>84</u>	NOTICE by DEEPGULF INC, TOKE OIL AND GAS S.A. re <u>82</u> Order Setting Hearing on Motion,,,, Set Deadlines/Hearings,,, (BALL, BRADEN) (Entered: 06/21/2019)
06/24/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>84</u> Notice of Filing Estimate of Costs of Deposing Defendant in Nice, France. (jcw) (Entered: 06/24/2019)
06/24/2019	<u>86</u>	ORDER re <u>78</u> Second MOTION for Protective Order, <u>84</u> Notice of Filing Estimate of Costs. If Defendant disputes the accuracy of the estimates submitted by Plaintiffs' counsel or otherwise wishes to comment on those estimates, it must do so by filing a response on or before July 1, 2019. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 6/24/2019. (jcw) (Entered: 06/24/2019)
06/28/2019	<u>87</u>	NOTICE TO COUNSEL re: motion hearing set for 7/3/19 at 9:30 a.m.: These proceedings will be recorded via the courtroom sound system. Any party desiring a court reporter will be responsible for securing such service. (kgc) (Entered: 06/28/2019)
07/01/2019	<u>88</u>	NOTICE of Filing Of Defendant's Comments Pursuant To Court Orders Of 19 June, 2019 And 24 June, 2019, by MARC M MOSZKOWSKI re <u>85</u> Order Setting Hearing on Motion. (BOLLER, MARY ALLIE) (Entered: 07/01/2019)
07/01/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>88</u> NOTICE of Filing Of Defendant's Comments Pursuant To Court Orders Of 19 June, 2019 And 24 June, 2019, by MARC M MOSZKOWSKI re <u>85</u> Order Setting Hearing on Motion. (MB) (Entered: 07/01/2019)
07/01/2019	<u>89</u>	OBJECTION TO DEFENDANT'S NOTICE OF INTENT TO SERVE SUBPOENA ON NON-PARTY WELLS FARGO BANK, N.A. by DEEPGULF

		INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) Modified on 7/2/2019 to modify title (jcw). (Entered: 07/01/2019)
07/02/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>89</u> OBJECTION TO DEFENDANT'S NOTICE OF INTENT TO SERVE SUBPOENA ON NON-PARTY WELLS FARGO BANK, N.A. (jcw) (Entered: 07/02/2019)
07/03/2019	<u>91</u>	Minute Entry for proceedings held before MAGISTRATE JUDGE MICHAEL J FRANK: Motion Hearing held on 7/3/2019 re <u>78</u> Second MOTION for Protective Order filed by MARC M MOSZKOWSKI. (Court Reporter PNS Recorder) (kgc) (Entered: 07/05/2019)
07/05/2019	<u>90</u>	MOTION to Quash by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 07/05/2019)
07/05/2019	<u>92</u>	ORDER denying <u>78</u> Motion for Protective Order. On July 17, 2019, Defendant shall appear for a deposition in the Northern District of Florida. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 7/5/2019. (jcw) (Entered: 07/05/2019)
07/05/2019		Set Deadlines re <u>90</u> MOTION to Quash. (Internal deadline for referral to judge if response not filed earlier: 7/19/2019 .) (sdw) (Entered: 07/05/2019)
07/09/2019	<u>93</u>	RESPONSE to Motion re <u>90</u> MOTION to Quash filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 07/09/2019)
07/09/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>93</u> RESPONSE to <u>90</u> MOTION to Quash filed by MARC M MOSZKOWSKI. (MB) (Entered: 07/09/2019)
07/11/2019	<u>94</u>	MOTION to Compel by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 07/11/2019)
07/11/2019	<u>95</u>	Plaintiff's Memorandum In Support <u>94</u> MOTION to Compel Response To Request For Production And MOTION For Sanctions, by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 07/11/2019)
07/11/2019	<u>96</u>	AFFIDAVIT of <i>Rustin Howard</i> by DEEPGULF INC, TOKE OIL AND GAS S.A.. (BALL, BRADEN) (Entered: 07/11/2019)
07/11/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>94</u> MOTION to Compel, <u>95</u> Plaintiff's Memorandum In Support <u>94</u> MOTION to Compel Response To Request For Production And MOTION For Sanctions, by DEEPGULF INC, TOKE OIL AND GAS S.A., <u>96</u> Affidavit Referred to MICHAEL J FRANK. (MB) (Entered: 07/11/2019)
07/16/2019	<u>97</u>	ORDER. Plaintiffs' motion to quash the subpoena issued to Wells Fargo Bank, N.A., (Doc. <u>90</u>) is DENIED. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 7/16/2019. (kjlw) (Entered: 07/16/2019)
07/16/2019	<u>98</u>	

		MOTION to Compel by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibit Exhibits) (BOLLER, MARY ALLIE) (Entered: 07/16/2019)
07/16/2019	<u>99</u>	MEMORANDUM in Support re <u>98</u> MOTION to Compel filed by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibit Exhibits) (BOLLER, MARY ALLIE) (Entered: 07/16/2019)
07/16/2019	<u>100</u>	ORDER REASSIGNING CASE. Case reassigned to JUDGE T KENT WETHERELL II for all further proceedings. JUDGE M CASEY RODGERS no longer assigned to case. Signed by CHIEF JUDGE MARK E WALKER on 7/16/2019. (erl)**Please use the new judge's initials for all future filings: 3:18cv1466-TKW/MJF. (Entered: 07/16/2019)
07/17/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>98</u> MOTION to Compel , <u>99</u> Memorandum in Support of Motion. Referred to MICHAEL J FRANK. (jew) (Entered: 07/17/2019)
07/17/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>98</u> MOTION to Compel, <u>99</u> MEMORANDUM in Support re <u>98</u> MOTION to Compel filed by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibits) Referred to MICHAEL J FRANK. (MB) (Entered: 07/17/2019)
07/23/2019	<u>101</u>	NOTICE <i>Notice of Impasse</i> by Alan Bart Bookman (BOOKMAN, ALAN) (Entered: 07/23/2019)
07/30/2019	<u>102</u>	RESPONSE to Motion re <u>98</u> MOTION to Compel filed by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 07/30/2019)
07/30/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>102</u> Response to Motion. (sdw) (Entered: 07/30/2019)
07/31/2019	<u>103</u>	ORDER re <u>98</u> MOTION to Compel; denying as moot <u>94</u> Motion to Compel. If Defendant opposes Plaintiffs' motion to compel (Doc. <u>94</u>), he mustfile a response in opposition on or before August 2, 2019. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 7/31/2019. (jew) (Entered: 07/31/2019)
07/31/2019		Set/Reset Deadlines as to <u>94</u> MOTION to Compel . (Internal deadline for referral to judge if response not filed earlier: 8/2/2019). (jew) (Entered: 07/31/2019)
07/31/2019		**Duplicate - ORDER denying <u>98</u> Motion to Compel. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 7/31/2019. (erl) (Entered: 10/09/2019)
08/02/2019	<u>104</u>	MOTION to Compel by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 08/02/2019)
08/02/2019	<u>105</u>	MEMORANDUM in Support re <u>104</u> MOTION to Compel filed by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 08/02/2019)
08/02/2019	<u>106</u>	RESPONSE to Motion re <u>94</u> MOTION to Compel filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 08/02/2019)
08/05/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re:

		<u>104</u> MOTION to Compel, <u>105</u> Memorandum in Support of <u>94</u> Motion to Compel, <u>106</u> Response to Motion re <u>94</u> MOTION To Compel. Referred to MICHAEL J FRANK. (MB) (Entered: 08/05/2019)
08/07/2019	<u>107</u>	ORDER denying without prejudice <u>94</u> Motion to Compel. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 8/7/2019. (jcw) (Entered: 08/07/2019)
08/08/2019	<u>108</u>	Joint MOTION for Extension of Time to File Dispositive Motions , Joint MOTION for Extension of Time to Complete Discovery by DEEPGULF INC. (BALL, BRADEN) (Entered: 08/08/2019)
08/09/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: <u>108</u> Joint MOTION for Extension of Time to File Dispositive Motions Joint MOTION for Extension of Time to Complete Discovery (MB) (Entered: 08/09/2019)
08/09/2019	<u>109</u>	ORDER granting <u>108</u> Joint MOTION for Extension of Time to File Dispositive Motions and to Complete Discovery filed by DEEPGULF INC. (Dispositive Motions to be filed by 11/15/2019 . Discovery due by 10/31/2019 .) Signed by JUDGE T KENT WETHERELL II on 8/9/2019. (sdw) (Entered: 08/09/2019)
08/13/2019	<u>110</u>	RESPONSE to Motion re <u>104</u> MOTION to Compel filed by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibit Exhibit "A") (BOLLER, MARY ALLIE) (Entered: 08/13/2019)
08/13/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>110</u> RESPONSE to Motion re <u>104</u> MOTION to Compel filed by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibit Exhibit "A") (MB) (Entered: 08/13/2019)
08/26/2019	<u>111</u>	ORDER denying without prejudice <u>104</u> Motion to Compel. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 8/26/2019. (jcw) (Entered: 08/26/2019)
08/29/2019	<u>112</u>	ORDER. Plaintiffs' motion to dismiss Defendant's counterclaims (Doc. <u>73</u>) is GRANTED. Plaintiffs' motion to strike Defendant's affirmative defenses (Doc. <u>71</u>) is GRANTED. Defendant may file a second-amended answer within 14 days of the date of this Order curing the deficiencies in the counterclaims and affirmative defenses, if he can do so in good faith. Signed by JUDGE T KENT WETHERELL II on 8/29/2019. (Second-Amended Answer due by 9/12/2019 .) (MB) (Entered: 08/30/2019)
09/06/2019	<u>113</u>	RESPONSE by DEEPGULF INC, TOKE OIL AND GAS S A re <u>111</u> Order on Motion to Compel . (BALL, BRADEN) (Entered: 09/06/2019)
09/09/2019	<u>114</u>	ORDER. Defendant shall have 14 days from the date of this Order to respond to Plaintiffs' objection (Doc. <u>113</u>) to the magistrate judge's Order. (Response due by 9/23/2019 .) Signed by JUDGE T KENT WETHERELL II on 9/9/2019. (sdw) (Entered: 09/09/2019)
09/11/2019	<u>115</u>	

		NOTICE of Filing Affidavit Of GINO ERNESTO FAVARO by DEEPGULF INC, TOKE OIL AND GAS S A re <u>113</u> Response/Reply (BALL, BRADEN) (Entered: 09/11/2019)
09/12/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: <u>115</u> Notice of Filing Affidavit Of GINO ERNESTO FAVARO by DEEPGULF INC, TOKE OIL AND GAS S A re <u>113</u> Response by DEEPGULF INC, TOKE OIL AND GAS S A re <u>111</u> Order on Motion to Compel, per <u>114</u> ORDER. (MB) (Entered: 09/12/2019)
09/12/2019	<u>116</u>	AMENDED ANSWER to <i>First 70</i> Amended Answer to Complaint, Counterclaim , COUNTERCLAIM against All Plaintiffs by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibit Exhibits) (BOLLER, MARY ALLIE) (Entered: 09/12/2019)
09/23/2019	<u>117</u>	RESPONSE by MARC M MOSZKOWSKI re <u>114</u> Order,, Set Deadlines/Hearings, <u>113</u> Response/Reply by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 09/23/2019)
09/24/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: <u>117</u> RESPONSE by MARC M MOSZKOWSKI re <u>114</u> Order,, Set Deadlines/Hearings, <u>113</u> RESPONSE by DEEPGULF INC, TOKE OIL AND GAS S A re <u>111</u> Order on Motion to Compel. (MB) (Entered: 09/24/2019)
09/25/2019	<u>118</u>	ORDER OF REMAND - That this case is REMANDED to the magistrate judge for further consideration of Plaintiffs' motion to compel and for sanctions (Doc. <u>104</u>). Signed by JUDGE T KENT WETHERELL II on 9/25/2019. (MB) (Entered: 09/25/2019)
09/25/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>104</u> MOTION to Compel, per <u>118</u> ORDER OF REMAND. Referred to MICHAEL J FRANK. (MB) (Entered: 09/25/2019)
09/25/2019	<u>119</u>	Plaintiff's RESPONSES to Defendant's Counter-Claim, by DEEPGULF INC, TOKE OIL AND GAS S A re <u>116</u> Amended Answer to Complaint, Counterclaim . (BALL, BRADEN) (Entered: 09/25/2019)
09/25/2019	<u>120</u>	Plaintiff's REPLY to Affirmative Defenses, by DEEPGULF INC, TOKE OIL AND GAS S A re <u>116</u> Amended Answer to Complaint, Counterclaim . (BALL, BRADEN) (Entered: 09/25/2019)
10/23/2019	<u>121</u>	MOTION to Amend/Correct by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 10/23/2019)
10/24/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: <u>120</u> Plaintiff's REPLY to Affirmative Defenses, by DEEPGULF INC, TOKE OIL AND GAS S A re <u>116</u> Amended Answer to Complaint, Counterclaim, <u>119</u> Plaintiff's RESPONSES to Defendant's Counter-Claim, by DEEPGULF INC, TOKE OIL AND GAS S A re <u>116</u> Amended Answer to Complaint, Counterclaim. (MB) (Entered: 10/24/2019)
10/24/2019		

		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: <u>121</u> MOTION to Amend/Correct by DEEPGULF INC, TOKE OIL AND GAS S A. (MB) (Entered: 10/24/2019)
10/24/2019	<u>122</u>	MOTION to Strike <u>115</u> Notice (Other) by MARC M MOSZKOWSKI. (Internal deadline for referral to judge if response not filed earlier: 11/7/2019). (BOLLER, MARY ALLIE) (Entered: 10/24/2019)
10/30/2019	<u>123</u>	RESPONSE to Motion re <u>121</u> MOTION to Amend/Correct filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 10/30/2019)
10/30/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: <u>123</u> RESPONSE to Motion re <u>121</u> MOTION to Amend/Correct filed by MARC M MOSZKOWSKI. (MB) (Entered: 10/30/2019)
11/04/2019	<u>124</u>	Emergency MOTION to Stay by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibit Exhibit "A") (BOLLER, MARY ALLIE) (Entered: 11/04/2019)
11/04/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: <u>124</u> Emergency MOTION to Stay (MB) (Entered: 11/04/2019)
11/04/2019	<u>125</u>	RESPONSE to Motion re <u>124</u> Emergency MOTION to Stay filed by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 11/04/2019)
11/04/2019	<u>126</u>	NOTICE of Telephonic Hearing on Motion <u>124</u> Emergency MOTION to Stay : Motion Hearing set for 11/5/2019 09:00 AM in U.S. Courthouse Pensacola before JUDGE T KENT WETHERELL II. (ijm) (Entered: 11/04/2019)
11/05/2019	<u>127</u>	ORDER. Defendant's emergency motion to stay (Doc. <u>124</u>) is DENIED, but as agreed by the parties at the hearing. Defendant's motion to amend (Doc. <u>121</u>) is referred to the magistrate judge because the document that is the subject of the motion relates to the motion to compel and for sanctions (Doc. <u>104</u>) that was remanded to the magistrate judge for further consideration. Plaintiffs' motion to strike (Doc. <u>122</u>) is under advisement and will be ruled on as soon as the Court has an opportunity to do so. Signed by JUDGE T KENT WETHERELL II on 11/5/2019. (MB) (Entered: 11/05/2019)
11/05/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>121</u> MOTION to Amend/Correct, <u>104</u> MOTION to Compel Referred to MICHAEL J FRANK. (MB) (Entered: 11/05/2019)
11/05/2019	<u>128</u>	Minute Entry for proceedings held before JUDGE T KENT WETHERELL II: Telephonic Motion Hearing held on 11/5/2019 re <u>124</u> Emergency MOTION to Stay. Order entered. (Court Reporter Julie Wycoff.) (pmc) (Entered: 11/05/2019)
11/05/2019	<u>129</u>	NOTICE Of Supplement Authority, by DEEPGULF INC, TOKE OIL AND GAS S A (BALL, BRADEN) (Entered: 11/05/2019)
11/05/2019	<u>131</u>	

		ORDER denying without prejudice <u>104</u> Motion for Sanctions. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 11/5/2019. (jcw) (Entered: 11/06/2019)
11/05/2019	<u>132</u>	ORDER. On or before 11/12/2019 , Plaintiffs shall file a memorandum and any supporting materials such that this court may determine "the reasonable expenses, including attorney's fees," if any, "caused by" the Defendant's delay in producing the relevant materials. After Plaintiffs file their memorandum and any supporting materials, Defendant shall have TEN (10) DAYS (11/22/2019) to respond. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 11/5/2019. (jcw) (Entered: 11/06/2019)
11/06/2019	<u>130</u>	ORDER DENYING <u>121</u> MOTION TO AMEND. Signed by JUDGE T KENT WETHERELL II on 11/6/2019. (sdw) (Entered: 11/06/2019)
11/08/2019	<u>133</u>	ORDER. Plaintiff's motion to strike (Doc. <u>122</u>) is DENIED without prejudice. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 11/8/2019. (kjlw) (Entered: 11/08/2019)
11/12/2019	<u>134</u>	RESPONSE by DEEPGULF INC, TOKE OIL AND GAS S A re <u>132</u> Order,,, Set Deadlines/Hearings,, . (BALL, BRADEN) (Entered: 11/12/2019)
11/12/2019	<u>135</u>	DECLARATION Of BRADEN K. BALL, JR. Re: <u>134</u> Response/Reply. (BALL, BRADEN) (Entered: 11/12/2019)
11/12/2019	<u>136</u>	Expert AFFIDAVIT in Respect To Attorney's Fees, by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 11/12/2019)
11/15/2019	<u>137</u>	MOTION for Summary Judgment by MARC M MOSZKOWSKI. (Internal deadline for referral to judge if response to summary judgment not filed earlier: 12/6/2019). (BOLLER, MARY ALLIE) (Entered: 11/15/2019)
11/15/2019	<u>138</u>	MEMORANDUM in Support re <u>137</u> MOTION for Summary Judgment filed by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibit Exhibits, # <u>2</u> Exhibit Deposition Excerpts) (BOLLER, MARY ALLIE) (Entered: 11/15/2019)
11/15/2019	<u>139</u>	MOTION for Summary Judgment by DEEPGULF INC, TOKE OIL AND GAS S A. (Internal deadline for referral to judge if response to summary judgment not filed earlier: 12/6/2019). (Attachments: # <u>1</u> Exhibit, # <u>2</u> Exhibit, # <u>3</u> Exhibit) (BALL, BRADEN) (Entered: 11/15/2019)
11/15/2019	<u>140</u>	AFFIDAVIT by DEEPGULF INC, TOKE OIL AND GAS S A. (Attachments: # <u>1</u> Exhibit, # <u>2</u> Exhibit) (BALL, BRADEN) (Entered: 11/15/2019)
11/21/2019	<u>141</u>	DEFENDANT'S RESPONSE To PLAINTIFFS' RESPONSE To Court Order <u>132</u> And Renewed MOTION For Sanctions, Order,,, Set Deadlines/Hearings,, <u>134</u> Response/Reply, <u>136</u> Affidavit, <u>135</u> Statement of Facts by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibit) (BOLLER, MARY ALLIE) (Entered: 11/21/2019)
11/22/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>141</u> DEFENDANT'S RESPONSE To PLAINTIFFS' RESPONSE To Court Order <u>132</u> And Renewed MOTION For Sanctions, Order,,, Set Deadlines/Hearings,,

		<u>134</u> Response/Reply, <u>136</u> Affidavit, <u>135</u> Statement of Facts by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibit) (MB) (Entered: 11/22/2019)
12/02/2019	<u>142</u>	ORDER re <u>132</u> Order. On or before 12/9/2019 , Plaintiffs shall file with this court an accounting of the attorney's fees and costs that were incurred directly as a result of Defendant's tardiness in providing the Excel spreadsheets in question. On or before 12/9/2019 , Plaintiffs shall file with this court a printout of the Excel spreadsheets in question or, if that is not feasible, Plaintiffs shall file a memorandum explaining why that is not feasible. On or before 12/9/2019 , Plaintiffs shall file with this court a memorandum. If Defendant seeks to assert a harmlessness defense to the imposition of sanctions pursuant to Rule 37(d), he must file with this court any supporting materials on or before 12/9/2019 . Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 12/2/2019. (jcw) (Entered: 12/02/2019)
12/06/2019	<u>143</u>	RESPONSE to Motion re <u>139</u> MOTION for Summary Judgment filed by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibit, # <u>2</u> Exhibit) (BOLLER, MARY ALLIE) (Entered: 12/06/2019)
12/06/2019		Set Deadlines re <u>143</u> RESPONSE to <u>139</u> Motion. Reply due by 12/13/2019 . (sdw) (Entered: 12/06/2019)
12/06/2019	<u>144</u>	RESPONSE to Motion re <u>137</u> MOTION for Summary Judgment filed by DEEPGULF INC, TOKE OIL AND GAS S A. (Attachments: # <u>1</u> Exhibit Exhibit A, # <u>2</u> Exhibit Exhibit B, # <u>3</u> Exhibit Exhibit C, # <u>4</u> Exhibit) (BALL, BRADEN) (Entered: 12/06/2019)
12/06/2019	<u>145</u>	AFFIDAVIT by DEEPGULF INC, TOKE OIL AND GAS S A. (Attachments: # <u>1</u> Exhibit Exhibit A) (BALL, BRADEN) (Entered: 12/06/2019)
12/06/2019		Set Deadlines re <u>144</u> Response to <u>137</u> Motion. Reply due by 12/13/2019 . (sdw) (Entered: 12/06/2019)
12/09/2019	<u>146</u>	NOTICE of Defendant's Supplemental Filing in Support of Harmlessness Defense To The Imposition Of Sanctions Pursuant To Rule 37(d), by MARC M MOSZKOWSKI re <u>142</u> Order,,,, Set Deadlines/Hearings,,, (Attachments: # <u>1</u> Exhibit) (BOLLER, MARY ALLIE) Modified on 12/9/2019 (MB). (Entered: 12/09/2019)
12/09/2019	<u>147</u>	RESPONSE by DEEPGULF INC, TOKE OIL AND GAS S A re <u>142</u> Order,,,, Set Deadlines/Hearings,,, . (Attachments: # <u>1</u> Exhibit Exhibit A, # <u>2</u> Exhibit Exhibit B, # <u>3</u> Exhibit Exhibit C, # <u>4</u> Exhibit Exhibit D, # <u>5</u> Exhibit Exhibit E, # <u>6</u> Exhibit Exhibit F, # <u>7</u> Exhibit Exhibit G, # <u>8</u> Exhibit Exhibit H, # <u>9</u> Affidavit Affidavit of Rus Howard) (BALL, BRADEN) (Entered: 12/09/2019)
12/10/2019		ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>146</u> NOTICE of Defendant's Supplemental Filing in Support of Harmlessness Defense To The Imposition Of Sanctions Pursuant To Rule 37(d), by MARC M MOSZKOWSKI re <u>142</u> Order,,,, Set Deadlines/Hearings,,, (Attachments: # <u>1</u> Exhibit), <u>147</u> RESPONSE by DEEPGULF INC, TOKE OIL AND GAS S A re <u>142</u> Order,,,, Set Deadlines/Hearings,,, (Attachments: # <u>1</u> Exhibit Exhibit A, # <u>2</u> Exhibit Exhibit B, # <u>3</u> Exhibit Exhibit C, # <u>4</u> Exhibit Exhibit D, # <u>5</u> Exhibit

		Exhibit E, # 6 Exhibit Exhibit F, # 7 Exhibit Exhibit G, # 8 Exhibit Exhibit H, # 9 Affidavit Affidavit of Rus Howard) (MB) (Entered: 12/10/2019)
12/13/2019	<u>148</u>	REPLY by DEEPGULF INC, TOKE OIL AND GAS S A re <u>143</u> Response to Motion . (BALL, BRADEN) (Entered: 12/13/2019)
12/13/2019	<u>149</u>	REPLY to Response to Motion re <u>137</u> MOTION for Summary Judgment filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 12/13/2019)
12/13/2019		***DISREGARD, inadvertently referred to the Magistrate Judge*** ACTION REQUIRED BY MAGISTRATE JUDGE: Chambers of MAGISTRATE JUDGE MICHAEL J FRANK notified that action is needed Re: <u>148</u> REPLY by DEEPGULF INC, TOKE OIL AND GAS S A re <u>143</u> Response to Motion. (BALL, BRADEN), <u>149</u> REPLY to Response to Motion re <u>137</u> MOTION for Summary Judgment filed by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (MB) Modified on 12/16/2019 (sdw). (Entered: 12/13/2019)
12/16/2019		Motions No Longer Referred: <u>137</u> MOTION for Summary Judgment , <u>139</u> MOTION for Summary Judgment . (sdw) (Entered: 12/16/2019)
12/16/2019		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: <u>144</u> Response to Motion, <u>149</u> Reply to Response to Motion, <u>148</u> Response, <u>140</u> Affidavit, <u>137</u> MOTION for Summary Judgment , <u>138</u> Memorandum in Support of Motion, <u>139</u> MOTION for Summary Judgment , <u>145</u> Affidavit, <u>143</u> Response to Motion. (sdw) (Entered: 12/16/2019)
01/27/2020	<u>150</u>	ORDER ON MOTIONS FOR SUMMARY JUDGMENT. Plaintiffs' motion for summary judgment (Doc. <u>139</u>) is GRANTED as to Count I of the complaint and Counterclaims I, III, and IV, and DENIED in all other respects. Defendant's motion for summary judgment (Doc. <u>137</u>) is GRANTED as to Counts II through VII of the complaint, and DENIED in all other respects. Count VIII is DISMISSED without prejudice. Additionally, because it appears that this case is now ready to be set for trial, it is FURTHER ORDERED that within 7 days of the date of this Order, the parties shall confer and advise the Court of several mutually agreeable dates during the weeks of February 10-14 and 17-21, 2020, for a telephonic case management conference to set this case for trial. (Notify Chambers by 2/3/2020 of mutual dates to set case for trial). Signed by JUDGE T KENT WETHERELL II on 1/27/2020. (MB) (Entered: 01/27/2020)
01/31/2020	<u>151</u>	NOTICE OF HEARING - A Telephonic Hearing in this case has been set. TELEPHONIC HEARING set for MONDAY, 2/10/2020 @ 08:30 AM C.S.T. before JUDGE T KENT WETHERELL II. (mb) (Entered: 01/31/2020)
02/10/2020	<u>152</u>	ORDER SCHEDULING TRIAL AND ESTABLISHING PRETRIAL DEADLINES AND PROCEDURES. A bench trial will be held in this case on 6/17/2020 at 09:00 AM . The pretrial conference is set for 6/2/2020 at 10:00 AM . The attorney conference required by paragraph 4 shall be held no later than 5/12/2020 . The pretrial stipulation and other papers required by paragraphs 5 and 6 shall be filed on or before 5/26/2020 . Signed by JUDGE T KENT WETHERELL II on 2/10/2020. (sdw) (Entered: 02/10/2020)
03/16/2020	<u>153</u>	ORDER granting in part and denying in part <u>104</u> Motion for Sanctions. On or before April 16, 2020, Defendant shall pay Plaintiffs \$1,000.00. Plaintiffs'

		Motion is DENIED in all other respects. Signed by MAGISTRATE JUDGE MICHAEL J FRANK on 3/16/2020. (jcw) (Entered: 03/16/2020)
05/26/2020	<u>154</u>	MOTION to Attend Trial by Video Conference by MARC M MOSZKOWSKI. (BOLLER, THOMAS) (Entered: 05/26/2020)
05/26/2020		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: <u>154</u> MOTION to Attend Trial by Video Conference (mb) (Entered: 05/26/2020)
05/26/2020	<u>155</u>	TRIAL BRIEF by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 05/26/2020)
05/26/2020	<u>156</u>	PRETRIAL Stipulation by MARC M MOSZKOWSKI. (BOLLER, THOMAS) (Entered: 05/26/2020)
05/26/2020	<u>157</u>	TRIAL BRIEF by MARC M MOSZKOWSKI. (BOLLER, THOMAS) (Entered: 05/26/2020)
05/27/2020	<u>158</u>	NOTICE OF HEARING - Take NOTICE that a telephonic hearing in this case has been set before Judge T KENT WETHERELL for Friday, 5/29/2020 @ 10:00 AM , before JUDGE T KENT WETHERELL II. (mb) (Entered: 05/27/2020)
05/28/2020	<u>159</u>	RESPONSE in Opposition re <u>154</u> MOTION to Attend Trial by Video Conference filed by DEEPGULF INC, TOKE OIL AND GAS S A. (BALL, BRADEN) (Entered: 05/28/2020)
05/28/2020	<u>160</u>	AMENDED NOTICE OF HEARING - TAKE NOTICE that a telephonic hearing in this case has been set before Judge T. Kent Wetherell on Friday, 5/29/2020 @ 10:15 AM. (mb) (Entered: 05/28/2020)
05/29/2020		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: <u>159</u> RESPONSE in Opposition re <u>154</u> MOTION to Attend Trial by Video Conference filed by DEEPGULF INC, TOKE OIL AND GAS S A. (mb) (Entered: 05/29/2020)
05/29/2020	<u>161</u>	Minute Entry for proceedings held before JUDGE T KENT WETHERELL II: Telephone Conference held on 5/29/2020 re <u>154</u> MOTION to Attend Trial by Video Conference. Court Denies Defense Motion. Order to follow. (Court Reporter Megan Hague). (pmc) (Entered: 05/29/2020)
05/29/2020	<u>162</u>	ORDER denying <u>154</u> Defendant's Motion to Attend Trial by video conference. The Court defers consideration of a potential continuance of the trial until the pretrial conference when the parties will have an opportunity to provide the Court with additional and better information about Defendant's present ability to travel to the United States and the efforts he made (both before and after the coronavirus pandemic) to get any necessary permissions to do so. In the meantime, the parties are encouraged to consider and discuss whether the problem resulting from any travel restrictions can be resolved by designating and introducing the relevant portions of Defendant's deposition testimony in lieu of live trial testimony. Signed by JUDGE T KENT WETHERELL II on 5/29/2020. (mb) (Entered: 05/29/2020)
06/02/2020	<u>163</u>	

		Minute Entry for proceedings held before JUDGE T KENT WETHERELL II: Final Pretrial Conference held on 6/2/2020. Order to follow. (Court Reporter Julie Wycoff.) (pmc) (Entered: 06/02/2020)
06/02/2020	<u>164</u>	FINAL PRETRIAL ORDER. The bench trial will begin at 9:00 a.m. on Wednesday, 6/17/2020 in Courtroom 4 North at the United States Courthouse (One North Palafox) in Pensacola, Florida before JUDGE T KENT WETHERELL II. Any motion to reconsider the substantive rulings in this Order shall be filed no later than Monday, 6/8/2020, at noon , with a response due no later than Friday, 6/12/2020, at 5:00 p.m. . Signed by JUDGE T KENT WETHERELL II on 6/2/2020. (mb) (Entered: 06/02/2020)
06/17/2020	<u>165</u>	Minute Entry for proceedings held before JUDGE T KENT WETHERELL II: Bench Trial held on 6/17/2020 (Counter Claim Ct. 2). 2 Exhibit binders placed in secured storage. Court finds in favor of DEEPGULF INC. Counsel to submit proposed judgment with the Court, Proposed Judgment due by 7/1/2020 (Court Reporter Julie Wycoff). (pmc) (Entered: 06/18/2020)
06/23/2020	<u>166</u>	NOTICE OF FILING OF OFFICIAL TRANSCRIPT of Proceedings, EXCERPT - JUDGE'S RULING FROM THE BENCH, held on 6/17/20, before Judge T. Kent Wetherell, II. Court Reporter/Transcriber Julie A. Wycoff, Telephone number 850-470-8196. <i>Transcript may be viewed at the court public terminal or purchased through the Court Reporter/Transcriber before the deadline for Release of Transcript Restriction. After that date it may be obtained through PACER.</i> Redaction Request due 6/30/2020 . Release of Transcript Restriction set for 9/28/2020 . (jaw) (Entered: 06/23/2020)
07/02/2020	<u>167</u>	FINAL JUDGMENT. Judgment is entered in favor of Plaintiff, DeepGulf, Inc., on Count I of the Complaint, and the Court declares that Plaintiff, DeepGulf, Inc., owns the following intellectual properties: United States Patent number: 9644792; United States Patent number: 8146667; United States Patent Publication number: 201200014751; United States Patent Publication number: 20120012225; United States Patent Publication number: 20060130729; and any and all undisclosed inventions and/or patentable ideas or methods conceived by Defendant beginning on September 15, 2005, through the date of this judgment. Defendant shall not use these intellectual properties for his personal gain without Defendant's express consent. Judgment is entered in favor of Defendant on Counts II through IX of the Complaint, and Plaintiffs shall go hence without day on those claims. Judgment is entered in favor of Plaintiffs on Counts I through IV of Defendant's Counterclaims, and Defendant shall go hence without day on those claims. The Clerk shall close the file. Signed by JUDGE T KENT WETHERELL II on 7/2/2020. (90 Day Exhibit Return Deadline set for 9/30/2020). (mb) (Entered: 07/02/2020)
07/02/2020	<u>168</u>	CORRECTED* FINAL JUDGMENT. Judgment is entered in favor of Plaintiff, DeepGulf, Inc., on Count I of the Complaint, and the Court declares that Plaintiff, DeepGulf, Inc., owns the following intellectual properties: United States Patent number: 9644792; United States Patent number: 8146667; United

		States Patent Publication number: 201200014751; United States Patent Publication number: 20120012225; United States Patent Publication number: 20060130729; and any and all undisclosed inventions and/or patentable ideas or methods conceived by Defendant beginning on September 15, 2005, through the date of this judgment. Defendant shall not use these intellectual properties for his personal gain without DeepGulf's express consent. Judgment is entered in favor of Defendant on Counts II through IX 1 of the Complaint, and Plaintiffs shall go hence without day on those claims. Judgment is entered in favor of Plaintiffs on Counts I through IV of Defendant's Counterclaims, and Defendant shall go hence without day on those claims. The Clerk shall close the file. Signed by JUDGE T KENT WETHERELL II on 7/2/2020. (mb) (Entered: 07/06/2020)
07/31/2020	<u>169</u>	NOTICE OF APPEAL as to <u>150</u> Order,,, Set Deadlines/Hearings,,, <u>130</u> Order on Motion to Amend/Correct, <u>168</u> Judgment,,, by DEEPGULF INC, TOKE OIL AND GAS S A. (Filing fee \$505 Receipt Number AFLNDC-5553138.) (BALL, BRADEN) (Entered: 07/31/2020)
08/03/2020	<u>170</u>	Appeal Instructions re: <u>169</u> Notice of Appeal : The Transcript Request Form is available on the Internet at http://www.flnd.uscourts.gov/forms/Attorney/ECCA_transcript_form_fillable.pdf **PLEASE NOTE** Separate forms must be filed for each court reporter. Transcript Order Form due by 8/17/2020 . (mb) (Entered: 08/03/2020)
08/03/2020	<u>171</u>	Transmission of Notice of Appeal and Docket Sheet to US Court of Appeals re <u>169</u> Notice of Appeal. (mb) (Entered: 08/03/2020)
08/03/2020	<u>172</u>	MOTION to Withdraw as Attorney by MARC M MOSZKOWSKI. (BOLLER, THOMAS) (Entered: 08/03/2020)
08/03/2020	<u>173</u>	MOTION to Withdraw as Attorney by MARC M MOSZKOWSKI. (BOLLER, MARY ALLIE) (Entered: 08/03/2020)
08/03/2020		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: <u>173</u> MOTION to Withdraw as Attorney , <u>172</u> MOTION to Withdraw as Attorney (mb) (Entered: 08/03/2020)
08/04/2020	<u>174</u>	ORDER GRANTING MOTIONS TO WITHDRAW AS COUNSEL. The motions <u>172</u> , <u>173</u> are GRANTED, and the Bollers shall have no further obligation to represent Defendant in this case after complying with paragraph 2. Within 2 days from the date of this Order, the Bollers shall send a copy of this Order to Defendant and file a notice with the Court certifying that they have done so. The notice shall include the address for serving future pleadings and orders on Defendant. (Deadline to file Notice of certificate of service to defendants due by 8/6/2020 .) Signed by JUDGE T KENT WETHERELL II on 8/4/2020. (mb) (Entered: 08/05/2020)
08/07/2020		ACTION REQUIRED BY DISTRICT JUDGE: Chambers of JUDGE T KENT WETHERELL II notified that action is needed Re: <u>174</u> Order. (certificate of service not filed) (sdw) (Entered: 08/07/2020)
08/07/2020	<u>175</u>	RESPONSE by MARC M MOSZKOWSKI re <u>174</u> Order,,, Set Deadlines/Hearings,, by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibit) (BOLLER, MARY ALLIE) (Entered: 08/07/2020)

08/07/2020	<u>176</u>	RESPONSE by MARC M MOSZKOWSKI re <u>174</u> Order,,, Set Deadlines/Hearings,, <u>175</u> Response/Reply by MARC M MOSZKOWSKI. (Attachments: # <u>1</u> Exhibit) (BOLLER, MARY ALLIE) (Entered: 08/07/2020)
08/07/2020	<u>177</u>	USCA Case Number 20-12897-G and PROCEDURAL LETTER re: <u>169</u> NOTICE OF APPEAL by DEEPGULF INC, TOKE OIL AND GAS S A. Set Deadlines: Clerk to check status of Appeal on 12/1/2020 . (sdw) (Entered: 08/31/2020)

1

IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC. and
TOKE OIL AND GAS, INC.,

Plaintiffs,

VS.

MARC M. MOSZKOWSKI,

Defendant.

Case No. 2018 CA 000543
Division: K

NOTICE OF REMOVAL

PLEASE TAKE NOTICE that Defendant Marc M. Moszkowski hereby removes to this Court the State Court action described below.

1. On April 3, 2018, an action was filed in the Circuit Court in and for Escambia County, Florida entitled *DeepGulf, Inc. and Toke Oil and Gas, Inc., Plaintiffs, vs. Marc M. Moszkowski, Defendant*, Case No. 2018 CA 000543.

2. Defendant was served with Summons on June 4, 2018 by a French Court Bailiff, and received a copy of Plaintiffs' Complaint on June 4. This Notice is timely.

3. A copy of all process, pleadings and orders served upon Defendant in the state court action is attached hereto as Exhibit "A".

4. The state court action is a civil action of which this Court has original jurisdiction under 28 U.S.C. §1332 and is one which may be removed to this Court by Defendant pursuant to the provisions of 28 U.S.C. §1441(b) in that it is a civil action between a citizen of a state and a citizen of a foreign state and the matter in controversy exceeds the sum of \$75,000, exclusive

of interest and costs, because the demand letters attached to the Complaint sought payment from Defendant of \$3,914,292.66.

5. Defendant is informed and believes that Plaintiff DeepGulf, Inc. was, and still is, a corporation organized under the laws of the State of Florida with its principal place of business in the State of Florida. Defendant Marc M. Moszkowski was, at the time of the filing of this action, and still is a citizen of the French Republic. As such there is complete diversity of citizenship between Plaintiff DeepGulf, Inc. and Defendant Marc M. Moszkowski.

6. The Complaint in the state court action also names as a plaintiff Toke Oil and Gas, Inc., which was fraudulently joined and should be disregarded for purposes of determining jurisdiction under 28 U.S.C. §1332 and 28 U.S.C. §1441(b) for one or more of the following reasons. (a) Defendant is not aware of the existence of Plaintiff Toke Oil and Gas, Inc. and he found no record of Toke Oil and Gas, Inc. on the Florida Department of State, Division of Corporations website. As a fictitious entity, the citizenship of this plaintiff, if any, should be disregarded. (b) There exists no claim upon which Toke Oil and Gas, Inc. could possibly recover against Defendant Moszkowski.

WHEREFORE, Defendant Marc M. Moszkowski prays that this action be removed to the United States District Court for the Northern District of Florida, Pensacola Division.



Marc M. Moszkowski, Pro Se
Defendant
Le Verdos
83300 Châteaudouble, France
Phone: (850)316 8462
Email: m.moszkowski@deepgulf.net

CERTIFICATE OF SERVICE

I hereby certify that a copy hereof is being furnished by hand-delivery to the Attorney for the
Plaintiffs this _____ day of June 2018.

Braden K. Ball, Jr.
Florida Bar No. 89000
LITVAK BEASLEY WILSON & BALL, LLP
226 East Government Street
Pensacola, Florida 32502
Office: (850) 432-9818
Facsimile: (850) 432-9830
braden@lawpensacola.com



Marc M. Moszkowski, Pro Se



NONCOMPETITION, NONDISCLOSURE AND DEVELOPMENTS AGREEMENT

In consideration and as a condition of my service or continued service as an employee, officer, director or consultant (such service is described herein as maintaining or being involved in a "Business Relationship") of DeepGulf, Inc. and any of its subsidiaries, divisions or affiliates (the "Company"), I hereby agree as follows:

1. Noncompetition. During the period of my Business Relationship with the Company and for one year following the termination of my Business Relationship, regardless of the reasons for my termination, I shall not, directly or indirectly, alone or as a consultant, partner, officer, director, employee, joint venturer, lender or stockholder of any entity, (a) accept employment with any business or entity that is in competition with the products or services being conceived, designed, created, developed, manufactured, marketed, distributed or sold by the Company, or (b) engage in any business or activity that is in competition with the products or services being conceived, designed, created, developed, manufactured, marketed, distributed or sold by the Company.

2. Nonsolicitation of Customers. During the period of my Business Relationship with the Company and for one year following the termination of my Business Relationship, regardless of the reasons for my termination, I shall not, directly or indirectly, alone or as a consultant, partner, officer, director, employee, joint venturer, lender or stockholder of any entity, solicit or do business with any customer of the Company or any potential customer of the Company (a) with whom I have had contact or (b) about whom I obtained information, or became familiar with through Confidential Information (as defined in Paragraph 4), during the course of my Business Relationship with the Company.

3. Nonsolicitation of Employees.

(a) During the period of my Business Relationship with the Company and for one year following the termination of my Business Relationship, regardless of the reasons for the termination, I will not, in any manner, hire or engage, or assist any company or business organization by which I am employed or which is directly or indirectly controlled by me to hire or engage, any person who is or was employed by the Company (or is or was an agent, representative, contractor, project consultant or consultant of the Company) at the time of the termination of my Business Relationship, was employed by the Company within 6 months of the termination of my Business Relationship, or is or was employed by the Company during the period of one year after the termination of my Business Relationship.

- 2 -

(b) During the period of my Business Relationship with the Company and for one year following the termination of my Business Relationship, regardless of the reasons for the termination, I will not, in any manner, solicit, recruit or induce, or assist any company or business organization by which I am employed or which is directly or indirectly controlled by me to solicit, recruit or induce, any person who is or was employed by the Company (or is or was an agent, representative, contractor, project consultant or consultant of the Company) at the time of the termination of my Business Relationship, was employed by the Company within 6 months of the termination of my Business Relationship, or is or was employed by the Company during the period of one year after the termination of my Business Relationship, to leave his or her employment, relationship or engagement with the Company.

4. Nondisclosure. I shall not at any time, whether during or after the termination of my Business Relationship with the Company, reveal to any person or entity any Confidential Information except to directors, officers and employees of the Company who need to know such Confidential Information, or as otherwise authorized by the Company in writing. The term "Confidential Information" shall include any information concerning the organization, business or finances of the Company or of any third party which the Company is under an obligation to keep confidential that is maintained by the Company as confidential. In furtherance of, and not by way of limitation to, the preceding sentence, Confidential Information shall include trade secrets or confidential information respecting inventions, products, designs, methods, know-how, techniques, systems, processes, specifications, blueprints, engineering data, software programs, works of authorship, customer lists, customer information, financial information, pricing information, personnel information, business plans, projects, plans and proposals. I shall keep confidential all matters entrusted to me and shall not use or attempt to use any Confidential Information except as may be required in the ordinary course of performing services to the Company, nor shall I use any Confidential Information in any manner which may injure or cause loss or may be calculated to injure or cause loss to the Company, whether directly or indirectly.

5. Company Property. I agree that during my Business Relationship with the Company I shall not make, use or permit to be used any Company Property otherwise than for the benefit of the Company. The term "Company Property" shall include all notes, memoranda, reports, lists, records, drawings, sketches, specifications, software programs, software code, data, computers, cellular telephones, pagers, credit and/or calling cards, keys, access cards, documentation or other materials of any nature and in any form, whether written, printed, electronic or in digital format or otherwise, relating to any matter within the scope of the business of the Company or concerning any of its dealings or affairs and any other Company property in my possession, custody or control. I further agree that I shall not, after the termination of my Business Relationship with the Company, use or permit others to use any such Company Property. I acknowledge and agree that all Company Property shall be and remain the sole and exclusive property of the Company. Immediately upon the termination of my Business Relationship with the Company, I shall deliver all Company Property in my possession, and all copies thereof, to the Company.

- 3 -

6. Assignment of Developments.

(a) If at any time or times during my Business Relationship with the Company, I shall (either alone or with others) make, conceive, create, discover, invent or reduce to practice any Development that (i) relates to the business of the Company or any customer of or supplier to the Company or any of the products or services being developed, manufactured or sold by the Company or which may be used in relation therewith; or (ii) results from tasks assigned to me by the Company; or (iii) results from the use of premises or assets (whether tangible or intangible) owned, leased or contracted for by the Company, then all such Developments and the benefits thereof are and shall immediately become the sole and absolute property of the Company and its assigns, as works made for hire or otherwise. The term "Development" shall mean any invention, modification, discovery, design, development, improvement, process, software program, work of authorship, documentation, formula, data, technique, know-how, trade secret or intellectual property right whatsoever or any interest therein (whether or not patentable or registrable under copyright, trademark or similar statutes or subject to analogous protection) relating to the business of the Company. I shall promptly disclose to the Company (or any persons designated by it) each such Development. I hereby assign all rights (including, but not limited to, rights to inventions, patentable subject matter, copyrights and trademarks) I may have or may acquire in the Developments and all benefits and/or rights resulting therefrom to the Company and its assigns without further compensation and shall communicate, without cost or delay, and without disclosing to others the same, all available information relating thereto (with all necessary plans and models) to the Company.

(b) Excluded Developments. I represent that the Developments identified in the Appendix, if any, attached hereto comprise all the Developments that I have made or conceived prior to my Business Relationship with the Company and not owned by any of my prior employers, which Developments are excluded from this Agreement. I understand that it is only necessary to list the title of such Developments and the purpose thereof but not details of the Development itself. IF THERE ARE ANY SUCH DEVELOPMENTS TO BE EXCLUDED, THE UNDERSIGNED SHOULD INITIAL HERE; OTHERWISE IT WILL BE DEEMED THAT THERE ARE NO SUCH EXCLUSIONS. _____.

7. Further Assurances. I shall, during and at any time after my Business Relationship with the Company, at the request and cost of the Company, promptly sign, execute, make and do all such deeds, documents, acts and things as the Company and its duly authorized officers may reasonably require:

(a) to apply for, obtain, register and vest in the name of the Company alone (unless the Company otherwise directs) patents, copyrights, trademarks or other analogous protection in any country throughout the world relating to a Development and when so obtained or vested to renew and restore the same; and

(b) to defend any judicial, opposition or other proceedings in respect of such applications and any judicial, opposition or other proceeding, petition or application for revocation of any such patent, copyright, trademark or other analogous protection.

- 4 -

If the Company is unable, after reasonable effort, to secure my signature on any application for patent, copyright, trademark or other analogous protection or other documents regarding any legal protection relating to a Development, whether because of my physical or mental incapacity or for any other reason whatsoever, I hereby irrevocably designate and appoint the Company and its duly authorized officers and agents as my agent and attorney-in-fact, to act for and in my behalf and stead to execute and file any such application or applications or other documents and to do all other lawfully permitted acts to further the prosecution and issuance of patent, copyright or trademark registrations or any other legal protection thereon with the same legal force and effect as if executed by me.

8. Relationship At Will. I understand that this Agreement does not constitute an implied or written employment contract and that my Business Relationship with the Company is on an "at-will" basis. Accordingly, I understand that either the Company or I may terminate my Business Relationship at any time, for any or no reason, with or without prior notice.

9. Severability. I hereby agree that each provision and the subparts of each provision herein shall be treated as separate and independent clauses, and the unenforceability of any one clause shall in no way impair the enforceability of any of the other clauses of the Agreement. Moreover, if one or more of the provisions contained in this Agreement shall for any reason be held to be excessively broad as to scope, activity, subject or otherwise so as to be unenforceable at law, such provision or provisions shall be construed by the appropriate judicial body by limiting or reducing it or them, so as to be enforceable to the maximum extent compatible with the applicable law as it shall then appear. I hereby further agree that the language of all parts of this Agreement shall in all cases be construed as a whole according to its fair meaning and not strictly for or against either of the parties.

10. Amendments; Waiver. Any amendment to or modification of this Agreement, or any waiver of any provision hereof, shall be in writing and signed by the Company. Any waiver by the Company of a breach of any provision of this Agreement shall not operate or be construed as a waiver of any subsequent breach of such provision or any other provision hereof.

11. Survival. This agreement shall be effective as of the date entered below. My obligations under this Agreement shall survive the termination of my Business Relationship with the Company regardless of the manner of such termination and shall be binding upon my heirs, executors, administrators and legal representatives.

12. Assignment. The Company shall have the right to assign this Agreement to its successors and assigns, and all covenants and agreements hereunder shall inure to the benefit of and be enforceable by said successors or assigns. I may not assign this Agreement.

- 5 -

13. Representations.

(a) I represent that my Business Relationship with the Company and my performance of all of the terms of this Agreement do not and will not breach any agreement to keep in confidence proprietary information acquired by me in confidence or in trust prior to my Business Relationship with the Company. I have not entered into, and I shall not enter into, any agreement either written or oral in conflict herewith.

(b) I agree that any breach of this Agreement by me will cause irreparable damage to the Company and that in the event of such breach the Company shall have, in addition to any and all remedies of law, the right to an injunction, specific performance or other equitable relief to prevent the violation of my obligations hereunder. The Company may apply for such injunctive relief in any court of competent jurisdiction without the necessity of posting any bond or other security.

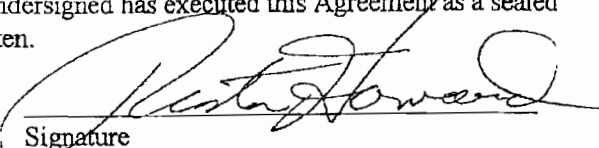
14. Governing Law; Forum Selection Clause. This Agreement and any claims arising out of this Agreement (or any other claims arising out of the relationship between the parties) shall be governed by and construed in accordance with the laws of the State of Florida and shall in all respects be interpreted, enforced and governed under the internal and domestic laws of such state, without giving effect to the principles of conflicts of laws of such state. Any claims or legal actions by one party against the other shall be commenced and maintained in any state or federal court located State of Florida, and I hereby submit to the jurisdiction and venue of any such court.

15. Entire Agreement. This Agreement sets forth the complete, sole and entire agreement between the parties on the subject matter herein and supersedes any and all other agreements, negotiations, discussions, proposals, or understandings, whether oral or written, previously entered into, discussed or considered by the parties.

[REMAINDER OF PAGE INTENTIONALLY LEFT BLANK]

- 6 -

IN WITNESS WHEREOF, the undersigned has executed this Agreement as a sealed instrument as of the date first above written.


Signature

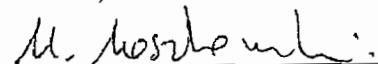
Rustin Howard
Print Name

Date: September 15, 2005

Address: c/o DeepGulf, Inc.
700 S. Palafox Street; Suite 160
Pensacola, FL 32502

ACKNOWLEDGED AND AGREED:

DEEPGULF, INC.

By: 
Name: Marc Moszkowski
Title: President

Date: September __, 2005

APPENDIX – TITLE/PURPOSE OF DEVELOPMENTS

The following is a complete list of all Developments and the purpose of those Developments:

R/H

No Developments

See Below

Developments and purpose:

NONCOMPETITION, NONDISCLOSURE AND DEVELOPMENTS AGREEMENT

In consideration and as a condition of my service or continued service as an employee, officer, director or consultant (such service is described herein as maintaining or being involved in a "Business Relationship") of DeepGulf, Inc. and any of its subsidiaries, divisions or affiliates (the "Company"), I hereby agree as follows:

1. Noncompetition. During the period of my Business Relationship with the Company and for one year following the termination of my Business Relationship, regardless of the reasons for my termination, I shall not, directly or indirectly, alone or as a consultant, partner, officer, director, employee, joint venturer, lender or stockholder of any entity, (a) accept employment with any business or entity that is in competition with the products or services being conceived, designed, created, developed, manufactured, marketed, distributed or sold by the Company, or (b) engage in any business or activity that is in competition with the products or services being conceived, designed, created, developed, manufactured, marketed, distributed or sold by the Company.

2. Nonsolicitation of Customers. During the period of my Business Relationship with the Company and for one year following the termination of my Business Relationship, regardless of the reasons for my termination, I shall not, directly or indirectly, alone or as a consultant, partner, officer, director, employee, joint venturer, lender or stockholder of any entity, solicit or do business with any customer of the Company or any potential customer of the Company (a) with whom I have had contact or (b) about whom I obtained information, or became familiar with through Confidential Information (as defined in Paragraph 4), during the course of my Business Relationship with the Company.

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(a) During the period of my Business Relationship with the Company and for one year following the termination of my Business Relationship, regardless of the reasons for the termination, I will not, in any manner, hire or engage, or assist any company or business organization by which I am employed or which is directly or indirectly controlled by me to hire or engage, any person who is or was employed by the Company (or is or was an agent, representative, contractor, project consultant or consultant of the Company) at the time of the termination of my Business Relationship, was employed by the Company within 6 months of the termination of my Business Relationship, or is or was employed by the Company during the period of one year after the termination of my Business Relationship.

- 2 -

(b) During the period of my Business Relationship with the Company and for one year following the termination of my Business Relationship, regardless of the reasons for the termination, I will not, in any manner, solicit, recruit or induce, or assist any company or business organization by which I am employed or which is directly or indirectly controlled by me to solicit, recruit or induce, any person who is or was employed by the Company (or is or was an agent, representative, contractor, project consultant or consultant of the Company) at the time of the termination of my Business Relationship, was employed by the Company within 6 months of the termination of my Business Relationship, or is or was employed by the Company during the period of one year after the termination of my Business Relationship, to leave his or her employment, relationship or engagement with the Company.

4. Nondisclosure. I shall not at any time, whether during or after the termination of my Business Relationship with the Company, reveal to any person or entity any Confidential Information except to directors, officers and employees of the Company who need to know such Confidential Information, or as otherwise authorized by the Company in writing. The term "Confidential Information" shall include any information concerning the organization, business or finances of the Company or of any third party which the Company is under an obligation to keep confidential that is maintained by the Company as confidential. In furtherance of, and not by way of limitation to, the preceding sentence, Confidential Information shall include trade secrets or confidential information respecting inventions, products, designs, methods, know-how, techniques, systems, processes, specifications, blueprints, engineering data, software programs, works of authorship, customer lists, customer information, financial information, pricing information, personnel information, business plans, projects, plans and proposals. I shall keep confidential all matters entrusted to me and shall not use or attempt to use any Confidential Information except as may be required in the ordinary course of performing services to the Company, nor shall I use any Confidential Information in any manner which may injure or cause loss or may be calculated to injure or cause loss to the Company, whether directly or indirectly.

5. Company Property. I agree that during my Business Relationship with the Company I shall not make, use or permit to be used any Company Property otherwise than for the benefit of the Company. The term "Company Property" shall include all notes, memoranda, reports, lists, records, drawings, sketches, specifications, software programs, software code, data, computers, cellular telephones, pagers, credit and/or calling cards, keys, access cards, documentation or other materials of any nature and in any form, whether written, printed, electronic or in digital format or otherwise, relating to any matter within the scope of the business of the Company or concerning any of its dealings or affairs and any other Company property in my possession, custody or control. I further agree that I shall not, after the termination of my Business Relationship with the Company, use or permit others to use any such Company Property. I acknowledge and agree that all Company Property shall be and remain the sole and exclusive property of the Company. Immediately upon the termination of my Business Relationship with the Company, I shall deliver all Company Property in my possession, and all copies thereof, to the Company.

- 3 -

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(b) Excluded Developments. I represent that the Developments identified in the Appendix, if any, attached hereto comprise all the Developments that I have made or conceived prior to my Business Relationship with the Company and not owned by any of my prior employers, which Developments are excluded from this Agreement. I understand that it is only necessary to list the title of such Developments and the purpose thereof but not details of the Development itself. IF THERE ARE ANY SUCH DEVELOPMENTS TO BE EXCLUDED, THE UNDERSIGNED SHOULD INITIAL HERE; OTHERWISE IT WILL BE DEEMED THAT THERE ARE NO SUCH EXCLUSIONS. _____.

7. Further Assurances. I shall, during and at any time after my Business Relationship with the Company, at the request and cost of the Company, promptly sign, execute, make and do all such deeds, documents, acts and things as the Company and its duly authorized officers may reasonably require:

(a) to apply for, obtain, register and vest in the name of the Company alone (unless the Company otherwise directs) patents, copyrights, trademarks or other analogous protection in any country throughout the world relating to a Development and when so obtained or vested to renew and restore the same; and

(b) to defend any judicial, opposition or other proceedings in respect of such applications and any judicial, opposition or other proceeding, petition or application for revocation of any such patent, copyright, trademark or other analogous protection.

- 4 -

If the Company is unable, after reasonable effort, to secure my signature on any application for patent, copyright, trademark or other analogous protection or other documents regarding any legal protection relating to a Development, whether because of my physical or mental incapacity or for any other reason whatsoever, I hereby irrevocably designate and appoint the Company and its duly authorized officers and agents as my agent and attorney-in-fact, to act for and in my behalf and stead to execute and file any such application or applications or other documents and to do all other lawfully permitted acts to further the prosecution and issuance of patent, copyright or trademark registrations or any other legal protection thereon with the same legal force and effect as if executed by me.

8. Relationship At Will. I understand that this Agreement does not constitute an implied or written employment contract and that my Business Relationship with the Company is on an "at-will" basis. Accordingly, I understand that either the Company or I may terminate my Business Relationship at any time, for any or no reason, with or without prior notice.

9. Severability. I hereby agree that each provision and the subparts of each provision herein shall be treated as separate and independent clauses, and the unenforceability of any one clause shall in no way impair the enforceability of any of the other clauses of the Agreement. Moreover, if one or more of the provisions contained in this Agreement shall for any reason be held to be excessively broad as to scope, activity, subject or otherwise so as to be unenforceable at law, such provision or provisions shall be construed by the appropriate judicial body by limiting or reducing it or them, so as to be enforceable to the maximum extent compatible with the applicable law as it shall then appear. I hereby further agree that the language of all parts of this Agreement shall in all cases be construed as a whole according to its fair meaning and not strictly for or against either of the parties.

10. Amendments: Waiver. Any amendment to or modification of this Agreement, or any waiver of any provision hereof, shall be in writing and signed by the Company. Any waiver by the Company of a breach of any provision of this Agreement shall not operate or be construed as a waiver of any subsequent breach of such provision or any other provision hereof.

11. Survival. This agreement shall be effective as of the date entered below. My obligations under this Agreement shall survive the termination of my Business Relationship with the Company regardless of the manner of such termination and shall be binding upon my heirs, executors, administrators and legal representatives.

12. Assignment. The Company shall have the right to assign this Agreement to its successors and assigns, and all covenants and agreements hereunder shall inure to the benefit of and be enforceable by said successors or assigns. I may not assign this Agreement.

- 5 -

13. Representations.

(a) I represent that my Business Relationship with the Company and my performance of all of the terms of this Agreement do not and will not breach any agreement to keep in confidence proprietary information acquired by me in confidence or in trust prior to my Business Relationship with the Company. I have not entered into, and I shall not enter into, any agreement either written or oral in conflict herewith.

(b) I agree that any breach of this Agreement by me will cause irreparable damage to the Company and that in the event of such breach the Company shall have, in addition to any and all remedies of law, the right to an injunction, specific performance or other equitable relief to prevent the violation of my obligations hereunder. The Company may apply for such injunctive relief in any court of competent jurisdiction without the necessity of posting any bond or other security.

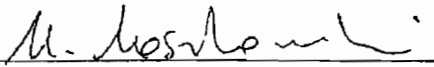
14. Governing Law; Forum Selection Clause. This Agreement and any claims arising out of this Agreement (or any other claims arising out of the relationship between the parties) shall be governed by and construed in accordance with the laws of the State of Florida and shall in all respects be interpreted, enforced and governed under the internal and domestic laws of such state, without giving effect to the principles of conflicts of laws of such state. Any claims or legal actions by one party against the other shall be commenced and maintained in any state or federal court located State of Florida, and I hereby submit to the jurisdiction and venue of any such court.

15. Entire Agreement. This Agreement sets forth the complete, sole and entire agreement between the parties on the subject matter herein and supersedes any and all other agreements, negotiations, discussions, proposals, or understandings, whether oral or written, previously entered into, discussed or considered by the parties.

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- 6 -

IN WITNESS WHEREOF, the undersigned has executed this Agreement as a sealed instrument as of the date first above written.


Signature

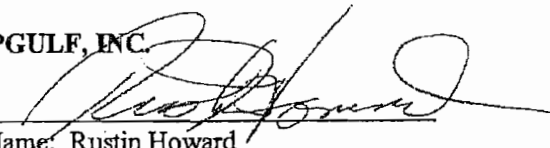
Marc Moszkowski
Print Name

Date: September 15, 2005

Address: c/o DeepGulf, Inc.
700 S. Palafox Street; Suite 160
Pensacola, FL 32502

ACKNOWLEDGED AND AGREED:

DEEPGULF, INC.

By: 
Name: Rustin Howard
Title: Chairman of the Board of Directors

Date: September __, 2005

APPENDIX – TITLE/PURPOSE OF DEVELOPMENTS

The following is a complete list of all Developments and the purpose of those Developments:



No Developments

See Below

Developments and purpose:

L B W B
LITVAK BEASLEY WILSON & BALL
LLP
ATTORNEYS AT LAW



KRAMER A. LITVAK *
ROBERT O. BEASLEY
PAUL A. WILSON†
BRADEN K. BALL, JR.

226 East Government Street
Pensacola, Florida 32502-3503

TELEPHONE: (850) 432-9818
FACSIMILE: (850) 432-9830

PENNY HENDRIX
PHILLIP A. PUGH
DEWITT D. CLARK

*ALSO ADMITTED IN ALABAMA
†LL.M. IN TAXATION
*BOARD CERTIFIED TAX ATTORNEY

January 31, 2018

Via International Registered Mail and Regular Mail

Marc Moszkowski
Le Verdos 83300
Chateaudouble
France

Marc Moszkowski
Chalet de Bu'vedere
Le Crey 73350,
Champagny-en-Vanoise
France

Re: Deepgulf, Inc.

DEMAND PURSUANT TO FLA. STAT. §772.11 (CIVIL THEFT STATUTE)

Dear Mr. Moszkowski:

Our firm has the privilege of representing Deepgulf, Inc. This letter is a civil remedy notice given pursuant to Fla. Stat. 772.11. You have stolen a business opportunity that you were to obtain for Deepgulf, Inc. Instead, you misappropriated such business opportunity for your own purposes.

Your actions constitute civil theft, subjecting you to liability for that civil theft. To date, the actual damages sustained as a result of this theft is \$345,000.00, as your compensation obtained based upon your misappropriation of my clients' business opportunity.

This letter constitutes written demand, pursuant to Fla. Stat. §772.11, that you pay \$1,035,000.00

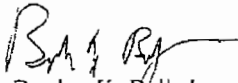
directly to this office within thirty (30) days from receipt of this notice. ¹ This amount represents three times the amount of known damages my client has incurred as a result of your actions, as provided by Florida law.

If such amount is not paid by the date stated above, I have been instructed by my client to file a lawsuit against you to include a count for civil theft. Please note that the civil theft statute also provides for recovery of attorney's fees and costs my clients spend in prosecuting such an action.

Should you wish to resolve this matter short of litigation, please promptly contact me.

Sincerely,

LITVAK, BEASLEY, WILSON & BALL, LLP

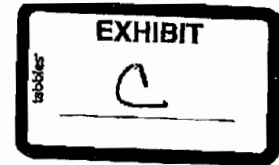

Braden K. Ball, Jr.

BKB:mea

¹ Payment should be by certified funds payable to "Braden K. Ball, Jr., P.A. Trust Account" and delivered to our office.



LITVAK BEASLEY WILSON & BALL
LLP
ATTORNEYS AT LAW



KRAMER A. LITVAK *
ROBERT O. BEASLEY
PAUL A. WILSON *
BRADEN K. BALL, JR.

226 East Government Street
Pensacola, Florida 32502-3503

TELEPHONE: (850) 432-9818
FACSIMILE: (850) 432-9830

PENNY HENDRIX
PHILLIP A. PUGH
DEWITT D. CLARK

*ALSO ADMITTED IN ALABAMA
*LL.M. IN TAXATION
*BOARD CERTIFIED TAX ATTORNEY

January 31, 2018

Via International Registered Mail and Regular Mail

Marc Moszkowski
Le Verdos 83300
Chateaudouble
France

Marc Moszkowski
Chalet de Bulvedere
Le Crey 73350,
Champagny-en-Vanoise
France

Re: Deepgulf, Inc.

DEMAND PURSUANT TO FLA. STAT. §772.11 (CIVIL THEFT STATUTE)

Dear Mr. Moszkowski:

Our firm has the privilege of representing Deepgulf, Inc. This letter is a civil remedy notice given pursuant to Fla. Stat. 772.11. You have stolen a business opportunity that you were to obtain for Deepgulf, Inc. Instead, you misappropriated such business opportunity for your own purposes.

Your actions constitute civil theft, subjecting you to liability for that civil theft. To date, the actual damages sustained as a result of this theft is \$959,764.22, which you distributed to the directors in the entity you formed to steal my client's business opportunity.

This letter constitutes written demand, pursuant to Fla. Stat. §772.11, that you pay \$2,879,292.66

directly to this office within thirty (30) days from receipt of this notice.¹ This amount represents three times the amount of known damages my client has incurred as a result of your actions, as provided by Florida law.

If such amount is not paid by the date stated above, I have been instructed by my client to file a lawsuit against you to include a count for civil theft. Please note that the civil theft statute also provides for recovery of attorney's fees and costs my clients spend in prosecuting such an action.

Should you wish to resolve this matter short of litigation, please promptly contact me.

Sincerely,

LITVAK, BEASLEY, WILSON & BALL, LLP

A handwritten signature in dark ink, appearing to read 'Braden K. Ball, Jr.', followed by a horizontal line.

Braden K. Ball, Jr.

BKB:mca

¹ Payment should be by certified funds payable to "Braden K. Ball, Jr., P.A. Trust Account" and delivered to our office.

Filing # 70140149 E-Filed 04/03/2018 09:48:25 AM

IN THE CIRCUIT COURT IN AND FOR ESCAMBIA COUNTY, FLORIDA

DEEPGULF, INC. and TOKE OIL AND GAS, INC.,

Plaintiffs,

Case No.:

vs.

Division:

MARC M. MOSZKOWSKI,

Defendant.

COMPLAINT

Plaintiffs DeepGulf, Inc. (hereinafter referred to as "DeepGulf") and Toke Oil and Gas, Inc., by and through their undersigned attorneys, sue Defendant Marc M. Moszkowski (hereinafter referred to as "Moszkowski") allege as follows:

JURISDICTION AND THE PARTIES

1. Plaintiff DeepGulf is a Florida Corporation with its principal place of business in Escambia County, Florida.
2. DeepGulf's, field of business includes but is not limited to energy transportation including handling and transportation of hydrocarbon in pipeline either onshore or offshore or on ships.
3. Plaintiff Toke Oil & Gas is a wholly owned subsidiary of DeepGulf domiciled in Timor Leste also known as East Timor in the United States.
4. Defendant Moszkowski is an Officer and Director of DeepGulf.
5. Moszkowski is a founder of DeepGulf,
6. During all times pertinent to the allegations in this Complaint, Moszkowski was residing in Escambia County, Florida.
7. During all times pertinent to the allegations in this Complaint, Moszkowski was and continues to be the President of DeepGulf.
8. Moszkowski held all the rights, powers and authorities of DeepGulf's Executive Officer by virtue of the CONSENT OF DIRECTORS AND SHAREHOLDERS IN LIEU OF FIRST MEETING OF DIRECTORS AND SHAREHOLDERS OF DEEPGULF, INC. on

December 1, 2004 till those rights, powers and authorities were removed from him during the Board of Directors Meeting held on December 26, 2017.

9. During all times pertinent to the allegations in this Complaint, Moszkowski was and continues to be a Director of DeepGulf.

COUNT I —INJUNCTIVE RELIEF—
INTELLECTUAL PROPERTY AND DEVELOPMENTS
AND BUSINESS OPPORTUNITY

10. Plaintiff DeepGulf reincorporates and restates Paragraphs 1 through 9 as if fully set forth herein.
11. On September 15, 2005, Moszkowski and DeepGulf, Inc. entered into a NONCOMPETITION, NONDISCLOSURE, AND DEVELOPMENTS AGREEMENT a true and correct copy of which is attached hereto as Exhibit "A."
12. Paragraph 14 of the NONCOMPETITION, NONDISCLOSURE, AND DEVELOPMENTS AGREEMENT addresses Governing Law, Forum Selection Clause, grant that the Governing law shall be Florida Law and the venue shall be any state or Federal court located in Florida.
13. Paragraph 13 of the NONCOMPETITION, NONDISCLOSURE, AND DEVELOPMENTS AGREEMENT, in addition to a legal remedy, provides for injunctive relief, specific performance and other equitable relief to prevent violation of his obligations.
14. The opening paragraph of the NONCOMPETITION, NONDISCLOSURE, AND DEVELOPMENTS AGREEMENT, defines Business Relationship as follows:
- a. In consideration and as a condition of my service or continued services as an employee, officer, director, or consultant (such service is described herein as maintaining or being involved in a "Business Relationship") of DeepGulf, Inc. and any of its subsidiaries, divisions or affiliates (the "Company"), I hereby agree as follows:
15. Paragraph 6 of the NONCOMPETITION, NONDISCLOSURE, AND DEVELOPMENTS AGREEMENT, addresses Assignment of Developments and provides that:

If at any or times during my Business Relationship with the Company, I shall, either alone or in concert with others make, conceive, create, discover, invent, or reduce to practice any Development that: (i) Relates to the Business of the Company or any customer of or supplier to the Company or any of the products or services being developed, manufactured, or sold by the Company or which may be used in relation therein; (ii) Or, results from tasks assigned to me by the Company; (iii) Or, results from the use of premises or assets, either tangible or intangible, owned, leased, or contracted for by the Company, **then all such Developments and the benefits thereof are and shall immediately become the sole and absolute property of the Company** and its assigns, as works made for hire or otherwise. The term "Development" shall mean any invention, modification, design, development, improvement, trade secret or intellectual property rights, products, designs, methods, know-how, techniques, systems, processes, specifications, blueprints, software programs, discovery whatsoever or any interest therein, whether patentable or registerable under copyright, trademark, or similar statutes or subject to analogous protection, relating to the business of the Company. I shall promptly disclose to the Company or any person or persons designated by the Company each such Development. I hereby assign all rights including, but not limited to, rights to inventions, patentable subject matter, copyrights and trademarks, I may have or may acquire in the Developments and all benefits and/or rights resulting therefrom to the Company and its assigns without further compensation and shall communicate, without cost or delay, and without disclosing to others the same, all available information, including plans and models, relating thereto to the Company.

16. During the time when Moszkowski was serving as an officer and director of DeepGulf, Moszkowski filed several patent applications, some of which have been granted:

a. **Method of fully expelling compressed gas from a tank**

- i. Patent number: 9644792
- ii. Abstract: The method of transferring compressed gas at from a first tank to a second tank without decompressing the compressed gas and then repressuring the compressed gas comprising filling the second tank with a fluid, connecting a first fluid connection on the first tank to a second fluid connection on the second tank with a first line with one or more first valves, connecting a first gas connection on the first tank to a second gas connection on the second tank with a second line with one or more second valves, opening the first valves and the second valves to allow the compressed gas

to pressurize the fluid, and pumping the fluid in the second tank into the first tank, thereby causing the compressed gas in the first tank to be displaced into the second tank.

- iii. Type: Grant
- iv. Filed: June 3, 2015
- v. Date of Patent: May 9, 2017

b. Dual gradient pipeline evacuation method

- i. Patent number: 8146667
- ii. Abstract: The method of removing a first liquid from a subsea pipeline which has a central portion lower than each of the ends of the subsea pipeline by pumping a second lower density fluid into the pipeline and the either removing the second lower density fluid by either displacing it with gas or evaporating the second lower density fluid to a gas.
- iii. Type: Grant
- iv. Filed: July 19, 2010
- v. Date of Patent: April 3, 2012

c. Method of providing an outlet on a subsea pipeline

- i. Publication number: 20120014751
- ii. Abstract: The method of providing an accessible outlet on a subsea pipeline which has an unknown rotational orientation comprising connecting a first end of a flexible hose to the subsea pipeline, providing a multiplicity of connected bend restrictor sections around the flexible hose to restrict the bending of the hose, and providing buoyancy to the end of the hose such that the second end of the hose will remain accessible for future operations.
- iii. Type: Application
- iv. Filed: July 19, 2010
- v. Publication date: January 19, 2012

d. Method of filling CNG tanks

- i. Publication number: 20120012225

- ii. Abstract: The method of charging a tank with a gas product up to a desired pressure and temperature without increasing the gas in the tank to a pressure and temperature higher than a desired pressure and temperature, comprising pressurizing the incoming gas to be put into the tank to a pressure equal to or higher than the pressure of the resident gas already in the tank, cooling the incoming gas to a temperature lower than the resident gas, mixing the incoming gas with the resident gas up to the desired pressure such that the pressure and temperature of the combined gas will be increased without increasing the temperature and pressure of the resident gas to a pressure and temperature higher than the desired pressure or temperature.
- iii. Type: Application
- iv. Filed: July 19, 2010
- v. Publication date: January 19, 2012

e. Dynamic positioning connection

- i. Publication number: 20060130729
 - ii. Abstract: A method of providing for the dynamic positioning of a vessel comprising providing a dynamically positioned service boat, linking the service boat to the vessel by a rigid link with a first connection between the link and the vessel, a second connection between the link and the service boat, the combination of connections having 3 degrees of rotational freedom, said supply boat having one degree of axial freedom relative to said vessel, and using the power of the service boat to dynamically position said vessel in a desired location.
 - iii. Type: Application
 - iv. Filed: December 20, 2004
 - v. Publication date: June 22, 2006
- f. It is believed that there are other inventions and / or patentable ideas or methods which have not been disclosed yet to DeepGulf

17. Each and every invention in Paragraph 16 is a "Business of the Company" as defined in Paragraph 6 of the NONCOMPETITION, NONDISCLOSURE, AND DEVELOPMENTS AGREEMENT as described in Exhibit "A" which includes but is not limited to energy transportation including handling and transportation of hydrocarbon in pipeline or on ships either onshore or offshore.
18. Moszkowski, acting as President of DeepGulf communicated business plans, technologies, methodologies, processes, and know how to various individuals who were under the protection of nondisclosure and non-compete agreements.
19. Such information was sent under aviso or declaration that included the terminology "Commercial In Confidence" in the header of every page of these communications. Moszkowski represented to the Board of Directors of DeepGulf that this was the proper terminology in Asia to indicate the information was proprietary and confidential and the property of DeepGulf.

WHEREFORE, Plaintiff demands that this honorable court declare that the intellectual property described in Paragraph 16 is owned by DeepGulf, that Defendant be enjoined from utilizing any of the intellectual property described in Paragraph 16 for his personal gain, that Defendant return all software, hardware and other intellectual property, including customer list and other information to DeepGulf, and such other and further relief as this Court deems necessary and proper.

COUNT II—BREACH OF NON-COMPETITION AGREEMENT

20. Plaintiff DeepGulf reincorporates and restates Paragraphs 1 through 9 as if fully set forth herein.
21. Paragraph 1 of the NONCOMPETITION, NONDISCLOSURE, AND DEVELOPMENTS AGREEMENT that is attached hereto as Exhibit "A" reads as follows:

Paragraph 1. Non-competition. During the period of my Business Relationship with the Company and for one year following the termination of my Business Relationship, regardless of the reason or reasons for my termination, I shall not, alone or as a consultant, partner, officer, director, employee, joint venture lender or stockholder of any entity, (a) accept employment with any business or entity that is in competition with the products or services being conceived, designed, created, developed, manufactured, marketed, distributed, or sold by the Company, or (b) engage in any business or activity that is in competition with the products or

services being conceived, designed, created, developed, manufactured, marketed, distributed, or sold by the Company.

22. Paragraph 2 of the NONCOMPETITION, NONDISCLOSURE, AND DEVELOPMENTS

AGREEMENT that is attached hereto as Exhibit "A" reads as follows:

Paragraph 2. Non-solicitation of Customers. During the period of my Business Relationship with the Company and for one year following the termination of my Business Relationship, regardless of the reason or reasons for my termination, I shall not, alone or as a consultant, partner, officer, director, employee, joint venture lender or stockholder of any entity, solicit or do business with any customer or potential customer of the Company (a) with whom I have had contact or (b) about whom I have obtained information, or became familiar with through Confidential Information (as defined in Paragraph 4.), during the course of my Business Relationship with the Company.

23. Paragraph 5 of the NONCOMPETITION, NONDISCLOSURE, AND DEVELOPMENTS

AGREEMENT that is attached hereto as Exhibit "A" reads as follows:

Paragraph 5 Non-disclosure. I shall not at any time, whether during or after the termination of my Business Relationship with the Company, reveal to any person or entity any Confidential Information except to directors, officers and employees of the Company who a need to know the Confidential Information or as otherwise authorized in writing by the Company. The term "Confidential Information" shall include any information concerning the organization, business or finances of the Company or any other third party which the Company is under an obligation to keep confidential that is maintained by the Company as confidential. In furtherance of, and not by way of limitation to, the preceding sentence, Confidential Information shall include trade secrets or confidential information respecting inventions, products, designs, methods, know-how, techniques, systems, processes, engineering data, specifications, blueprints, software programs, works of authorship, customer lists, customer information, financial information, pricing information, personnel information, business plans, projects, plans, and proposals. I shall keep confidential all matters entrusted to me and shall not use or attempt to use any Confidential Information except as may be required in the ordinary course of providing services to the Company, nor shall I use any Confidential Information in any manner which may injure or cause loss, or may be calculated to injure or cause loss to the Company, either directly or indirectly.

24. In various board conversation in the presence of Rus Howard and Bill Lott, Moszkowski repeatedly expressed his intent to leave the company, establish a new company that would then compete with DeepGulf to complete its projects using DeepGulf technology.

25. In various board conversation in the presence of Rus Howard and Bill Lott, Moszkowski repeatedly expressed his intent to leave the company, and work for a competitor company to bring the projects to fruition not for the benefit of DeepGulf.
26. In various board conversation in presence of Rus Howard and Bill Lott, Moszkowski repeatedly expressed his intent to leave the company, establish a new company that would then compete with DeepGulf but would reward some DeepGulf shareholders and exclude other DeepGulf shareholders.
27. Paragraph 8 of the NONCOMPETITION, NONDISCLOSURE, AND DEVELOPMENTS AGREEMENT that is attached hereto as Exhibit "A" reads as follows:

Paragraph 8 Further Assurances. I shall, during and at any time after my Business Relationship with the Company, at the request and cost of the Company, promptly sign, execute, make, and do all such deeds, documents, acts, and things as the Company and its duly authorized officers may reasonably require: To apply for, obtain, register, and vest in the name of the Company alone, unless otherwise directed by the Company, patents, copyrights, trademarks, or other analogous protections in any country throughout the world relating to the Development and when so obtained or vested to renew and restore the same;

WHEREFORE, Plaintiff demands that this honorable court declare that Defendant be enjoined from utilizing any of the intellectual property described in Paragraph 15 for his personal gain, that Defendant return all software, hardware and other intellectual property, including customer list and other information to DeepGulf, and such other and further relief as this Court deems necessary and proper.

COUNT III—CIVIL THEFT

28. This is an action against Defendant for treble damages pursuant to Section 772.11, Florida Statutes, for Civil Theft.
29. Plaintiff DeepGulf reincorporates and restates Paragraphs 1 through 9 as if fully set forth herein.
30. On or about September 10, 2007, DeepGulf received an inquiry from a potential customer about DeepGulf's Patented Ultra-deepwater J-Flex Pipelay system and the possibility of using it to lay pipe between Sunrise gas field and East Timor.

31. Rus Howard on behalf of DeepGulf passed this inquiry on to Moszkowski.
32. Upon information and belief, in addition, the potential customer had clicked the "contact us" button on the DeepGulf website that sent an email to deepgulf@deep-gulf.com which was received by Moszkowski.
33. On October 15, 2007, DeepGulf sent Moszkowski to East Timor to investigate the opportunity.
34. Moszkowski has repeatedly declared in various emails and letters that DeepGulf has not paid for his travel expenses to East Timor.
35. DeepGulf instructed Moszkowski to submit an expense report with receipts to enable reimbursement.
36. Moszkowski has not submitted an expense report or provided any receipts that would enable DeepGulf to write him a reimbursement check.
37. On February 2, 2008, at a DeepGulf Board Meeting, Moszkowski gave information regarding the potential for pipeline operation in East Timor following his recent time spent researching the project. He informed the Board, and adamantly still maintains, it would not be possible to do business in Timor as a US corporation. Based upon this information, the Board acted, and a resolution was passed to create a subsidiary company to be named Toke Petroleum.
38. In Timor, Moszkowski established Toke Oil and Gas and made himself an owner and the President Director General, rather than DeepGulf.
39. Upon information and belief and based on documents provided and represented by Moszkowski to be the Founding Documents of Toke Oil and Gas, the earliest of them dated December 8, 2007 the three Founders of Toke Oil and Gas are VoGue Lda. Company, Hali Group S.a. Company, and Moszkowski an individual.
40. Upon information and belief and based on documents provided and represented by Moszkowski to be the Founding Documents of Toke Oil and Gas, Moszkowski, an individual, received 30,000 shares or 33% of Toke Oil and Gas.
41. Upon information and belief and based on documents provided and represented by Moszkowski to be the Founding Documents of Toke Oil and Gas, the initial meeting of Shareholders was dated January 2008 wherein Directors were appointed and Moszkowski was appointed President-Director.

42. Moszkowski led the Board of DeepGulf to believe that he established and was holding Toke Oil and Gas in his name for the benefit of DeepGulf, and that it would have been reckless to hold that interest in DeepGulf's name.
43. Toke Oil and Gas completed three contracts with total revenue of \$14.9 million US dollars. The last project was completed in May, 2012. During those projects, Moszkowski distributed \$1.304 million in "Director Salaries". At the same time, Moszkowski was also receiving his full time DeepGulf salary. While the President Director General, Moszkowski caused Toke Oil & Gas to pay Director Salaries without the knowledge and approval of the DeepGulf Board.
44. Moszkowski caused \$345,000 of monies allocated to Directors Salaries to be paid to himself.
45. The Board has sought to uncover the details of all monies spent.
46. Moszkowski continues to conceal this information and refuses to provide the records. He strenuously and repeatedly states that any and all records and documentation regarding Toke Oil and Gas are his, and his alone, despite DeepGulf's acquisition of Toke Oil & Gas' shares in May, 2012.
47. Moszkowski knowingly obtained and / or used Plaintiff's property with the intent to, either temporarily or permanently: (a) deprive Plaintiff of a right to the property or a benefit from the property, and / or (b) appropriate Plaintiff's property to Defendant's own use or to the use of other persons not entitled to use of the property.
48. More than thirty days before filing this action, Plaintiff made written demand upon Defendant for the treble damage amount by regular U.S. Mail and Certified U.S. Mail. A true and correct copy of the demand is attached hereto as Exhibit "B."
49. Defendant has failed and refused to comply with Plaintiff's demand as required by Section 772.11(1), Florida Statutes and is liable for treble damages and reasonable attorney's fees and costs pursuant to the provisions of the statute.

WHEREFORE, Plaintiff requests that this honorable court enter a judgment against Defendant for treble damages, court costs, attorney's fees, and for such other and further relief as this Court deems just and proper.

COUNT IV—CIVIL THEFT

COUNT VI—CONVERSION

59. This is an action for damages that exceed \$15,000, which is brought in the alternative to Count IV.
60. Plaintiff DeepGulf reincorporates and restates Paragraphs 1 through 9 and 30 through 43 as if fully set forth herein.
61. Defendant exercised over the property of Plaintiff an ownership that was inconsistent with Plaintiff's right or possession of that property.
62. Defendant's actions, in which Defendant converted to its own use that property, deprived Plaintiff of Plaintiff's property.

WHEREFORE, Plaintiff demands judgment against Defendant for damages, court costs, and such other and further relief as this Court deems proper and just.

COUNT VII—FRAUDULENT MISREPRESENTATION

63. Plaintiff DeepGulf reincorporates and restates Paragraphs 1 through 9 as if fully set forth herein.
64. DeepGulf began to seek additional funding for its business on August 6, 2012. Preparation for this round of funding began in 2011.
65. Timor Leste is a country in the Indonesian Archipelago just North of Australia. "Leste" is the Portuguese word for the English word "East." East Timor is the English name of the Country called Timor Leste in the national language of Portuguese.
66. Moszkowski sought and secured three contracts from East Timor and was the project manager of all three projects performed in East Timor.
67. Jointly during the time period referred to in Paragraph 64, preparation of a Private Placement Memorandum (hereinafter the "PPM") seeking funding for DeepGulf was a joint effort of Rus Howard and Moszkowski. Moszkowski provided all the technical information and the history of DeepGulf. Mr. Howard put the information received from Moszkowski into the PPM.
68. Other than Moszkowski, no other member of the Board of Directors nor the management team has visited East Timor, or negotiated contracts with East Timor, or talked directly to any DeepGulf client.

69. All information about the company and the projects was generated by Moszkowski or came from him to the rest of the management team.
70. Plaintiff and Rus Howard's sole source of information was Moszkowski.
71. Moszkowski prohibited Rus Howard from contacting clients and any individual in East Timor, Indonesia to obtain or confirm information
72. The PPM makes various representations that the Board of Directors for DeepGulf has later discovered to be false and misleading.
73. The PPM states, "the Company (DeepGulf, Inc.) was invited to Timor-Leste to evaluate whether the Company would be able to use its technologies to lay a pipeline to meet the needs of the Country of Timor-Leste which hoped to lay a large gas pipeline from the Greater Sunrise oil field to the Shores of Timor-Leste. In order to determine the feasibility of the project and to enable comprehensive planning of the infrastructure for this and future projects, the Company's Timorese subsidiary TOKE completed three projects in the Timor Sea and in Timor-Leste during the years 2008 through 2012."
74. Moszkowski has represented that the three projects completed in East Timor were DeepGulf projects and that project revenue totaled U.S. \$14.9 million.
75. Moszkowski represented to investment bankers that DeepGulf completed three projects in East Timor or in the Timor Sea with revenue of 15 million US Dollars.
76. Moszkowski has represented to shareholder's, the Board or Directors, potential investors, investment bankers, government officials that the three projects completed in Timor were DeepGulf's projects and that revenue was 15 million US dollars.
77. Moszkowski lead the board to believe that he held shares in Toke Oil and Gas for the benefit of DeepGulf from the foundation of the company in 2008.
78. DeepGulf was a Toke Oil and Gas shareholder of record since 2010.
79. Moszkowski negotiated DeepGulf's purchase of 30,000 shares or 33% of Toke Oil and Gas from Vincente Ximenes on or about August 12, 2010.
80. Moszkowski negotiated DeepGulf's purchase of an additional 30,000 shares or 33% of Toke Oil and Gas from Vincente Ximenes on or about May 25, 2012.
81. DeepGulf purchased an additional 30,000 shares or 33% of Toke Oil and Gas from Moszkowski on or about May 25, 2012, making DeepGulf the sole owner of Toke Oil and Gas.

82. On or about July 17, 2017, the Board of Directors requested that the records of the transactions of the three projects in East Timor be turned over to the Board for examination, Moszkowski refused to deliver a copy of Toke Oil & Gas' records.
83. Moszkowski insists that despite earlier representations to the public and to investors that the projects were DeepGulf project he now asserts that the projects were Toke Oil & Gas' projects and not DeepGulf projects.
84. Moszkowski asserts that because Toke Oil & Gas was an independent offshore company at the time of the projects DeepGulf has no rights to the records.
85. Furthermore, Moszkowski currently asserts that Toke Oil & Gas is not a DeepGulf subsidiary.
86. Moszkowski also asserts that the purchase of Toke Oil & Gas' shares was not completed and therefore DeepGulf is not the owner of Toke Oil & Gas and has no right to Toke Oil & Gas' records.
87. Moszkowski asserts the DeepGulf was a subcontractor to Toke Oil & Gas and has no rights to the records of the Contractor.
88. Moszkowski continues to refuse to provide documents relating to Toke Oil & Gas to Plaintiffs.
89. Moszkowski fraudulently misrepresented and concealed material information about DeepGulf, Toke Oil & Gas, their relationship to each other, the three projects, who owned and owns Toke, who performed the projects, the revenue generated by the projects and to whom it belonged, and DeepGulf's purchases of Toke Oil & Gas shares.
90. DeepGulf raised money based on the PPM that incorporated false and misleading information from Moszkowski about the projects and DeepGulf's role in the projects.
91. Moszkowski hid facts and provided false and misleading information to shareholders, which induced them to invest.

WHEREFORE, Plaintiffs demand judgment against Defendant for damages, court costs, and such other and further relief as this Court deems proper and just.

COUNT VIII—DECLARATORY RELIEF

92. Plaintiffs reincorporate Paragraphs 1 through 9 and 77 through 81 and 85 as if fully set forth herein.

93. There is a present, actual need for a declaration regarding the rights, title, and interest of Plaintiffs and Defendant in Toke Oil & Gas.

94. Plaintiffs' ownership rights in Toke Oil & Gas are in doubt because of declarations made by Defendant.

WHEREFORE, Plaintiffs request that this court declare the rights, title and interest of Plaintiffs and Defendant in Toke Oil & Gas and for such further relief as this Court deems necessary and proper.

COUNT IX—ACCOUNTING

95. Plaintiff reincorporates and restates Paragraphs 1 through 9 as if fully set forth herein.

96. This is an action for an Accounting.

97. Defendant has a fiduciary duty to Plaintiff and entered into several complex transactions with Plaintiff.

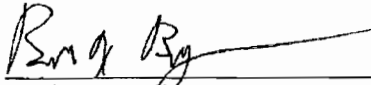
98. Florida law and equity require Defendant to account for his use of the assets of Plaintiff.

WHEREFORE, Plaintiff demands:

- a. judgment for an accounting of the amounts due from Defendant;
- b. for an order requiring production of documents related and relevant to the accounting;
- c. for a lien on the proceeds received by Defendant; for judgment requiring Defendant to pay the amounts found to be due to Plaintiff in the accounting and after trial on issues of law found to exist from the accounting;

- d. for their attorneys' fees, as allowed by law, pre- and post-judgment interest on the liquidated amounts found to be owed, costs;
- e. such other orders as shall be proven to be appropriate at the conclusion of the accounting; and
- f. any such other relief as the Court deems necessary and proper.

Signed this 2nd day of April, 2018.



Braden K. Ball, Jr.
Florida Bar No. 89000
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Pensacola, Florida 32502
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AVIS: Ceci est une traduction de documents originaux créés en anglais et exécutés dans l'État de Floride aux États-Unis d'Amérique dans. Au cas d'une divergence de traduction, les documents anglais originaux ont priorité.

**DANS LA COUR DU CIRCUIT DANS ET POUR LE COMTÉ D'ESCAMBIA,
FLORIDE**

DEEPGULF, INC. Et TOKE OIL AND GAS, INC.,

Plaignants , Affaire n °:

vs. Division:

MARC M. MOSZKOWSKI,

Défendeur.

PLAINT

Les plaignants DeepGulf, Inc. (ci-après appelé "DeepGulf") et Toke Oil and Gas, Inc., par et par l'intermédiaire de leurs avocats soussignés, poursuivent le défendeur Marc M. Moszkowski (ci-après dénommé "Moszkowski"):

COMPÉTENCE ET PARTIES

1. Le plaignant DeepGulf est une société de Floride dont le principal établissement est le comté d'Escambia, Floride.
2. Le secteur d'activité de DeepGulf comprend, sans s'y limiter, le transport d'énergie, y compris la manutention et le transport d'hydrocarbures dans des pipelines soit sur terre , soit en mer, soit sur des bateaux.
3. Le plaignant Toke Oil & Gas est une filiale en propriété complète de DeepGulf domiciliée au Timor Leste, également connu sous le nom de Timor Oriental aux États-Unis.
4. Le défendeur Moszkowski est un directeur et administrateur de DeepGulf.
5. Moszkowski est un fondateur de DeepGulf,

6. Pendant toute la période pertinente aux allégations contenues dans cette plainte, Moszkowski résidait dans le comté d'Escambia, Floride.
7. Pendant toute la période pertinente aux allégations contenues dans cette plainte, Moszkowski était et continue à être le président de DeepGulf.
8. Moszkowski détenait tous les droits, pouvoirs et autorités du directeur général de DeepGulf en vertu du CONSENTEMENT DES ADMINISTRATEURS ET DES ACTIONNAIRES EN LIEU ET PLACE DE LA PREMIÈRE RÉUNION DES ADMINISTRATEURS ET ACTIONNAIRES DE DEEPGULF, INC. le 1 décembre 2004 jusqu'à ces droits, pouvoirs et autorités lui ont été retirés lors de la réunion du conseil d'administration organisée le 26 décembre 2017.
9. Pendant toute la période pertinente aux allégations contenues dans cette plainte, Moszkowski était et continue d'être un administrateur de DeepGulf.

CHEF D'ACCUSATION I - RELANCE INJONCTIVE –
PROPRIÉTÉ INTELLECTUELLE ET DEVELOPPEMENT
ET OPPORTUNITÉ COMMERCIALE

10. Le plaignant DeepGulf réincorpore et réitère les paragraphes 1 à 9 comme s'ils étaient entièrement ci-inclus.
11. Le 15 septembre 2005, Moszkowski et DeepGulf, Inc. ont conclu un ACCORD DE NON-CONCURRENCE, DE NON- DIVULGATION ET DE DÉVELOPPEMENT dont une copie authentique et exacte est jointe aux présentes à titre de pièce «A».
12. Le paragraphe 14 de l'ACCORD DE NON-COMPRÉHENSION, DE NON-DIVULGATION ET DE DÉVELOPPEMENT traite du droit applicable, de la clause de sélection du forum, stipule que la loi applicable sera la loi de la Floride et que le lieu du proces sera n'importe quel tribunal fédéral ou d'État situé en Floride.
13. Le paragraphe 13 de l'ACCORD DE NON-CONCURRENCE, DE NON-DIVULGATION ET DE DÉVELOPPEMENT, en plus d'un recours juridique, prévoit une mesure injonctive, une exécution spécifique et d'autres mesures de réparation équitables pour empêcher la violation de ses obligations.

14. Le premier paragraphe de l'ACCORD DE NON-CONCURRENCE, DE NON-DIVULGATION ET DE DÉVELOPPEMENT définit la relation d'affaires comme suit:

En contrepartie et en tant que condition de mon service ou de mes services continus en tant qu'employé, administrateur, directeur ou consultant (ce service est décrit ici comme le maintien ou l'implication dans une «Business Relationship») de DeepGulf, Inc. et de ses filiales, divisions ou sociétés affiliées (la «Société»), j'accepte par le présent document comme suit:

15. Le paragraphe 6 de l'ACCORD DE NON-CONCURRENCE, DE NON-DIVULGATION ET D'ÉVOLUTION, traite de la cession de faits nouveaux et prévoit ce qui suit:

Si, à un moment ou à un autre de mes relations professionnelles avec la Société, je ferai, soit seul soit en concert avec autres, concevoir, créer, découvrir, inventer ou réduire pour pratiquer tout développement qui: (i) se rapporte à l'activité du Société ou tout client ou fournisseur de la Société ou de l'un des produits ou services développés, fabriqués ou vendus par la Société ou qui peuvent être utilisés en relation avec ceux-ci: (ii) Ou, résultats de tâches qui me sont assignées par la Société ; (iii) Ou résulte de l'utilisation de locaux ou d'actifs, corporels ou incorporels, possédés, loués ou contractés par la Société, **alors tous ces Développements et leurs avantages sont et deviendront immédiatement la propriété exclusive et absolue de la Société** et ses bénéficiaires, comme travaux réalisés pour la location ou autrement. Le terme «Développement» désigne toute invention, modification, conception, développement, amélioration, secret commercial ou droits de propriété intellectuelle, produits, modèles, méthodes, savoir-faire, techniques, systèmes, processeurs, spécifications, plans, logiciels, découverte quelle qu'elle soit ou tout intérêt y afférent, qu'il soit brevetable ou enregistrable en vertu de droits d'auteur, de marques de commerce ou de lois similaires ou sous réserve d'une protection analogue, ayant un lien aux activités de la Société. Je divulguerai rapidement à la Société ou à toute personne ou personnes désignées par la Société chacune de ces Développements. J'attribue par le présent document tous les droits, y compris mais pas exclusivement, sur les inventions, les objets brevetables, les droits d'auteur et les marques, je peux acquérir ou acquérir dans les Développements et tous les avantages et / ou droits qui en découlent pour la Société et ses ayants bénéficiaires sans compensation supplémentaire et communiquera, sans frais ni délais, et sans divulguer à des autres le même, toutes les informations disponibles, y compris les plans et modèles, y afférents.

16. Pendant la période où M. Moszkowski était directeur et administrateur de DeepGulf, M. Moszkowski a déposé plusieurs demandes de brevet, dont certaines ont été accordées:

a. Méthode d'expulsion entièrement de gaz comprimé d'un réservoir

- i. Numéro de brevet: 9644792
- ii. Résumé : L'invention concerne une méthode de transfert de gaz comprimé d'un premier réservoir vers un second réservoir sans décompression du gaz

comprimé. puis une nouvelle pression du gaz comprimé comprenant le remplissage du second réservoir avec un fluide, branchant un premier raccord fluide sur le premier réservoir à un second raccord fluide sur le second réservoir avec une première ligne avec une ou plusieurs premières soupapes, branchant une première connexion de gaz sur le premier réservoir à une deuxième connexion de gaz sur le second réservoir avec une deuxième ligne avec une ou plusieurs secondes soupapes, ouvrant les premières soupapes et les deuxièmes soupapes pour permettre le gaz comprimé de pressuriser le fluide, et de pomper le fluide dans le second réservoir dans le premier réservoir, provoquant ainsi le déplacement du gaz comprimé dans le premier réservoir dans le second réservoir.

- iii. Type: Subvention
- iv. Classé: 3 Juin 2015
- v. Date du brevet: 9 Mai 2017

b. Méthode d'évacuation de pipeline double gradient

- i. Numéro de brevet: 8146667
- ii. Résumé :L'invention concerne une méthode d'élimination d'un premier liquide d'une pipeline sous-marine dont la partie centrale est inférieure à chacune des extrémités de la pipeline sous-marine par pompage d'un second fluide de densité inférieure dans la pipeline avec du gaz ou en évaporant le deuxième fluide de densité inférieure à un gaz.
- iii. Type: Subvention
- iv. Classé: 19 juillet 2010
- v. Date du brevet: 3 avril 2012

c. Méthode de fournir une sortie sur un pipeline sous-marin

- i. Numéro de publication: 20120014751
- ii. Résumé :L'invention concerne une méthode de fourniture d'une sortie accessible sur une pipeline sous-marine ayant une orientation rotationnelle inconnue comprenant le raccord d'une première extrémité d'un tuyau flexible à la pipeline sous-marine, fournant une pluralité de sections de

restriction de courbure connectées autour du tuyau flexible, et fournissant la flottabilité à l'extrémité du tuyau de telle sorte que la deuxième extrémité du tuyau restera accessible pour des opérations futures.

- iii. Type: Application
- iv. Classé: 19 Juillet 2010
- v. Date de publication: 19 Janvier 2012

d. Méthode de remplissage des réservoirs de GNC

- i. Numéro de publication: 20120012225
- ii. Résumé :L'invention concerne une méthode consistant à charger un réservoir avec un gaz jusqu'à une pression et une température désirées sans augmenter le gaz dans le réservoir à une pression et une température supérieures à la pression et à la température désirées, comprenant la pressurisation du gaz entrant à une pression égale ou supérieure à la pression du gaz résidant déjà dans le réservoir, refroidissant le gaz entrant à une température inférieure au gaz résidant, mélangeant le gaz entrant avec le gaz résidant jusqu'à la pression désirée de manière à ce que la pression et la température du gaz combiné sera augmentée sans augmenter la température et la pression du gaz résident à une pression et une température supérieures à la pression ou température désirée.
- iii. Type: Application
- iv. Classé: 19 Juillet 2010
- v. Date de publication: 19 Janvier 2012

e. Raccord de positionnement dynamique

- i. Numéro de publication: 20060130729
- ii. Résumé : L'invention concerne une méthode de positionnement dynamique d'un navire comprenant un bateau de service positionné dynamiquement, reliant le bateau de service au navire par un lien rigide avec une première connexion entre le lien et le navire, une seconde connexion entre le lien et le bateau de service, la combinaison des connexions ayant 3 degrés de liberté de rotation, ledit bateau d'approvisionnement ayant un degré de liberté axiale par rapport audit navire, et utilisant l'énergie du bateau de

service pour positionner dynamiquement ledit navire dans un emplacement désiré.

iii. Type: Application

iv. Classé: 20 décembre 2004

v. Date de publication: 22 juin 2006

f. Nous pensons qu'il y a autres inventions et / ou idées ou méthodes brevetables qui n'ont pas encore été divulguées à DeepGulf

17. Chaque invention du paragraphe 16 est une «entreprise de la compagnie» telle que définie au paragraphe 6 de l'ACCORD DE NON-CONCURRENCE, DE NON-DIVULGATION ET DE DÉVELOPPEMENT tel que décrit à la pièce «A» qui comprend, sans s'y limiter, le transport d'hydrocarbures dans des pipelines ou sur des navires à terre ou en mer.

18. Moszkowski, agissant à titre de président de DeepGulf, a communiqué des plans de développement, des technologies, des méthodes, des processus et du savoir-faire à diverses personnes sous la protection d'ententes de non-divulgaration et de non-concurrence.

19. Ces informations ont été envoyées sous forme d'avis ou de déclaration qui incluait la terminologie "Commercial In Confidence" dans l'en-tête de chaque page de ces communications. Moszkowski a déclaré au conseil d'administration de DeepGulf que c'était la bonne terminologie en Asie pour indiquer que l'information était exclusive et confidentielle et qu'elle était la propriété de DeepGulf.

PAR CONSÉQUENT, le plaignant demande que cette honorable tribunal déclare que la propriété intellectuelle décrite à l'article 16 est détenue par DeepGulf, que le défendeur soit exhorté d'utiliser toute propriété intellectuelle décrite au paragraphe 16 pour son hausse personnelle, que le défendeur retourne tout logiciel, matériel et d'autres droits de propriété intellectuelle, y compris une liste de clients et d'autres renseignements à DeepGulf, et tout autre redressement que la présente Cour juge nécessaire et approprié.

CHEF D'ACCUSATION II – RUPTURE DE L'ACCORD DE NON-CONCURRENCE

20. Le plaignant DeepGulf réincorpore et réitère les paragraphes 1 à 9 comme s'ils étaient entièrement énoncés aux présentes.

21. Le paragraphe 1 de l' ACCORD DE NON-CONCURRENCE, DE NON-DIVULGATION ET DE DÉVELOPPEMENT ci-joint en tant que pièce "A" se lit comme suit:

Paragraphe 1. Non-concurrence. Pendant la période de mes relations professionnelles avec la Société et pendant un an après la fin de ma relation professionnelles, quel que soit la raison ou les raisons de ma cessation d'emploi, je ne dois pas, seul ou en tant que consultant, associé, directeur, employé, (a) accepter un emploi dans une entreprise ou une entité qui est en concurrence avec les produits ou services conçus, conçus, créés, développés, fabriqués, commercialisés, distribués ou vendus par la Société, ou (b) s'engager dans toute activité ou activité qui est en concurrence avec les produits ou services conçus, conçus, créés, développés, fabriqués, commercialisés, distribués ou vendus par la Société.

22. Le paragraphe 2 de l' ACCORD DE NON-CONCURRENCE, DE NON-DIVULGATION ET DE DÉVELOPPEMENT qui est joint aux présentes en tant que pièce "A" se lit comme suit:

Paragraphe 2. Non-sollicitation des clients. Pendant la période de mes relations professionnelles avec la Société et pendant un an après la fin de ma relation professionnelles, quel que soit la raison ou les raisons de ma cessation d'emploi, je ne dois pas, seul ou en tant que consultant, associé, directeur, employé, coentrepreneur ou actionnaire de toute entité, solliciter ou faire affaire avec tout client ou client potentiel de la Société (a) avec qui j'ai eu des contacts ou (b) à propos duquel j'ai obtenu des informations ou me suis familiarisé avec des Informations Confidentielles (tel que défini au paragraphe 4.), dans le cadre de mes relations professionnelles avec la Société.

23. Le paragraphe 5 de l' ACCORD DE NON-CONCURRENCE, DE NON-DIVULGATION ET DE DÉVELOPPEMENT ci-joint à titre de pièce "A" se lit comme suit:

Paragraphe 5 Non-divulgation. Je ne dois à aucun moment, que ce soit pendant ou après la fin de mes relations professionnelles avec la Société, divulguer à toute personne ou entité toute information confidentielle sauf aux administrateurs, directeurs et employés de la Société qui ont besoin de connaître les Informations Confidentielles ou autrement autorisé par écrit par la Société. Le terme «Informations Confidentielles» doit inclure toute information concernant l'organisation, les affaires ou les finances de la Société ou de tout autre tiers que la Société est tenue de garder confidentielle et qui est maintenue confidentielle par la Société. En accord avec la phrase précédente et sans la limiter, les informations confidentielles incluent des secrets commerciaux ou des informations confidentielles concernant des inventions, produits, modèles, méthodes, savoir-faire, techniques, systèmes, processus, données d'ingénierie, spécifications, plans, logiciels, œuvres d'auteurs, listes de clients, informations sur les clients, informations financières, informations sur les prix, informations sur le personnel, plans d'affaires, projets, plans et propositions. Je garderai confidentielles toutes les affaires qui me sont confiées et je n'utiliserai ni ne tenterai d'utiliser des Informations Confidentielles, sauf dans la mesure où cela est nécessaire dans le cadre de la fourniture de services à la Société, ni utiliser des Informations Confidentielles de quelque manière qui cause une perte ou nuire à la

Société, ou peut être calculée à causer des dommages à la Société, soit directement soit indirectement.

24. Lors de diverses conversations au conseil d'administration en présence de Rus Howard et de Bill Lott, Moszkowski a exprimé à plusieurs reprises son intention de quitter l'entreprise, d'établir une nouvelle société qui concurrencerait DeepGulf pour achever ses projets en utilisant la technologie DeepGulf.

25. Lors de diverses conversations au conseil d'administration en présence de Rus Howard et de Bill Lott, Moszkowski a exprimé à plusieurs reprises son intention de quitter l'entreprise et de travailler pour une entreprise concurrente afin de mener à bien les projets pas au profit de DeepGulf.

26. Lors de diverses conversations au conseil d'administration en présence de Rus Howard et Bill Lott, Moszkowski a exprimé à plusieurs reprises son intention de quitter la société, d'établir une nouvelle société qui concurrencerait DeepGulf mais récompenserait certains actionnaires de DeepGulf et exclurait d'autres actionnaires de DeepGulf.

27. Le paragraphe 8 de l'ACCORD DE NON-CONCURRENCE, DE NON-DIVULGATION ET DE DÉVELOPPEMENT ci-joint en tant que pièce "A" se lit comme suit:

Paragraphe 8 Autres assurances. Je dois, au cours et à tout moment après ma relation professionnelle avec la Société, à la demande et aux frais de la Société, signer rapidement, exécuter, tous les actes, documents, actes et choses que la Société et Les agents autorisés peuvent raisonnablement exiger: Pour demander, obtenir, enregistrer et acquérir au nom de la Société seule, sauf indication contraire de la Société, les brevets, droits d'auteur, marques ou autres protections analogues dans tout pays du monde concernant le Développement et quand ainsi obtenu ou acquis pour renouveler et restaurer le même;

PAR CONSÉQUENT, le plaignant demande que cette honorable cour déclare que le défendeur soit exhorté d'utiliser toute propriété intellectuelle décrite au paragraphe 15 pour son hausse personnelle, que le défendeur retourne tous les logiciels, matériels et autres propriétés intellectuelles, y compris la liste des clients et autres informations à DeepGulf, et tout autre redressement que la Cour juge nécessaire et approprié.

CHEF D'ACCUSATION III-VOL CIVIL

28. Il s'agit d'une action contre le défendeur pour dommages-intérêts triples en vertu de l'article 772.11, Florida Statutes, pour Civil Theft.
29. Le plaignant DeepGulf réincorpore et réitère les paragraphes 1 à 9 comme s'ils étaient entièrement énoncés aux présentes.
30. Le 10 septembre 2007 ou vers cette date, DeepGulf a reçu une demande d'un client potentiel concernant le système breveté J-Flex Pipelay de DeepGulf et la possibilité de l'utiliser pour poser des tuyaux entre le gisement de gaz de Sunrise et le Timor oriental.
31. Rus Howard, au nom de DeepGulf, a transmis cette demande à Moszkowski.
32. Sur la foi d'informations et de convictions, en outre, le client potentiel avait cliqué sur le bouton "contactez-nous" sur le site Web de DeepGulf qui a envoyé un courriel à deepgulf@deep-gulf.com qui a été reçu par Moszkowski.
33. Le 15 Octobre 2007, DeepGulf a envoyé Moszkowski au Timor oriental pour enquêter sur l'opportunité.
34. Moszkowski a déclaré à plusieurs reprises dans divers courriels et lettres que DeepGulf n'a pas payé ses frais de voyage au Timor oriental.
35. DeepGulf a demandé à Moszkowski de soumettre un rapport de dépenses avec des reçus pour permettre le remboursement.
36. Moszkowski n'a pas soumis un rapport de dépenses ni fourni de reçus permettant à DeepGulf de lui faire parvenir un chèque de remboursement.
37. Le 2 février 2008, lors d'une réunion du Conseil d'administration de DeepGulf, Moszkowski a donné des informations sur le potentiel d'exploitation d'un pipeline au Timor oriental suite à son récent travail de recherche sur le projet. Il a informé le Conseil, et toujours catégoriquement maintient, qu'il ne serait pas possible de faire des affaires au Timor en tant que société américaine. Sur la base de cette information, le Conseil a agi et une résolution a été adoptée pour créer une filiale qui s'appellera Toke Petroleum.
38. Au Timor, Moszkowski a établi Toke Oil and Gas et s'est fait propriétaire et président directeur général, plutôt que DeepGulf.
39. Sur la foi d'informations et de convictions et sur la base des documents fournis et représentés par Moszkowski comme étant les documents fondateurs de Toke Oil and Gas, le plus ancien daté du 8 décembre 2007, les trois fondateurs de Toke Oil and Gas sont VoGue Lda. Company, Hali Group S.a. Company, et Moszkowski un individu.

40. Sur la foi d'informations et de convictions et sur la base des documents fournis et représentés par Moszkowski comme étant les documents fondateurs de Toke Oil and Gas, Moszkowski, un particulier, a reçu 30 000 actions ou 33% de Toke Oil and Gas.
41. Sur la foi d'informations et de convictions et sur la base des documents fournis et représentés par Moszkowski comme étant les documents fondateurs de Toke Oil and Gas, la première assemblée des Actionnaires était datée de janvier 2008 dans laquelle les administrateurs étaient nommés et Moszkowski était nommé Président-Directeur.
42. Moszkowski a causé le conseil d'administration de DeepGulf à croire qu'il avait établi et détenait Toke Oil and Gas en son nom au profit de DeepGulf, et qu'il aurait été imprudent de détenir cet intérêt dans le nom de DeepGulf.
43. Toke Oil and Gas a conclu trois contrats totalisant des revenus de 14,9 millions de dollars américains. Le dernier projet a été achevé en mai 2012. Au cours de ces projets, Moszkowski a distribué 1,304 million de dollars en «salaires des directeurs». Dans le même temps, Moszkowski recevait également son salaire à temps plein de DeepGulf. Tandis que le directeur général du président, Moszkowski, a fait payer à Toke Oil & Gas les salaires du directeur à l'insu et sans l'approbation du conseil d'administration de DeepGulf.
44. Moszkowski a fait verser à lui-même 345 000 \$ d'argent affecté aux salaires des directeurs.
45. Le conseil d'administration cherché à découvrir les détails de tous les fonds dépensés.
46. Moszkowski continue de dissimuler cette information et refuse de fournir les documents. Il déclare énergiquement et à plusieurs reprises que tous les dossiers et la documentation concernant Toke Oil and Gas lui appartiennent, et lui seul, malgré l'acquisition par DeepGulf des actions de Toke Oil & Gas en mai 2012.
47. Moszkowski a sciemment obtenu et / ou utilisé les biens du plaignant dans l'intention, temporairement ou définitivement: (a) de priver le plaignant d'un droit à la propriété ou d'un bénéfice de la propriété, et / ou (b) de s'approprier la propriété du plaignant à l'usage du défendeur ou à l'usage d'autres personnes qui n'ont pas le droit d'utiliser la propriété.
48. Plus de trente jours avant le dépôt de la présente action, le plaignant a fait une demande écrite au défendeur pour le montant des dommages-intérêts triples par courrier ordinaire américain et courrier américain certifié. Une copie authentique et exacte de la demande est jointe aux présentes en tant que pièce "B".

49. Le défendeur a échoué et a refusé de se conformer à la demande du plaignant tel que requis par l'article 772.11 (1), les statuts de la Floride et est responsable des dommages-intérêts triples et les honoraires d'avocat raisonnables et les coûts conformément aux dispositions de la loi.

PAR CONSÉQUENT, le plaignant demande que cette honorable cour rende un jugement contre la défenderesse pour les dommages-intérêts triples, les frais de justice, les honoraires d'avocat, et pour tout autre redressement que le tribunal juge juste et approprié.

CHEF D'ACCUSATION IV-VOL CIVIL

50. Il s'agit d'une action contre le défendeur pour les dommages-intérêts triples conformément à l'article 772.11, Florida Statutes, pour Civil Theft.

51. Le plaignant DeepGulf réincorpore et réitère les paragraphes 1 à 9 et 30 à 43 comme s'ils étaient entièrement énoncés aux présentes.

52. Moszkowski a sciemment obtenu et / ou utilisé les biens du plaignant avec l'intention, temporairement ou définitivement: (a) de priver le plaignant d'un droit à la propriété ou d'un bénéfice de la propriété et / ou (b) de s'approprier la propriété du plaignant à l'usage du défendeur ou à l'usage d'autres personnes qui n'ont pas le droit d'utiliser la propriété.

53. Plus de trente jours avant le dépôt de la présente action, le plaignant a fait une demande écrite au défendeur pour le montant des dommages-intérêts triples par courrier ordinaire américain et courrier américain certifié. Une copie authentique et exacte de la demande est jointe aux présentes en tant que pièce "C".

54. Le défendeur a échoué et a refusé de se conformer à la demande du plaignant tel que requis par l'article 772.11 (1), les statuts de la Floride et est responsable des dommages-intérêts triples et les honoraires d'avocat raisonnables et les coûts conformément aux dispositions de la loi.

PAR CONSÉQUENT, le plaignant demande que cette honorable cour rende un jugement contre le défendeur pour les dommages-intérêts triples, les frais de justice, les honoraires d'avocat, et pour tout autre redressement que le tribunal juge juste et approprié.

CHEF D'ACCUSATION V-CONVERSION

55. Il s'agit d'une action en dommages-intérêts supérieure à 15 000 \$, qui est présentée à titre subsidiaire au chef III.

56. Le plaignant DeepGulf réincorpore et réitère les paragraphes 1 à 9 et 30 à 47 comme s'ils étaient entièrement énoncés aux présentes.

57. Le défendeur a exercé sur la propriété du plaignant une propriété qui était incompatible avec le droit du plaignant ou la possession de cette propriété.

58. Les actions du défendeur, dans lesquelles le défendeur s'est converti à son propre usage de cette propriété, ont privé le plaignant de la propriété du plaignant.

PAR CONSÉQUENT, le plaignant réclame un jugement contre le défendeur pour les dommages-intérêts, les frais de justice et toute autre mesure de redressement que la Cour juge appropriée et juste.

CHEF D'ACCUSATION VI-CONVERSION

59. Il s'agit d'une action en dommages-intérêts supérieure à 15 000 \$, qui est présentée à titre subsidiaire au chef IV.

60. Le plaignant DeepGulf réincorpore et réitère les paragraphes 1 à 9 et 30 à 43 comme s'ils étaient entièrement énoncés aux présentes.

61. Le défendeur a exercé sur la propriété du plaignant une propriété qui était incompatible avec le droit du plaignant ou la possession de cette propriété.

62. Les actions du défendeur, dans lesquelles le défendeur s'est converti à son propre usage cette propriété, ont privé le plaignant de la propriété du plaignant.

PAR CONSÉQUENT, le plaignant réclame un jugement contre le défendeur pour les dommages-intérêts, les frais de justice et toute autre mesure de redressement que le tribunal juge appropriée et juste.

CHEF D'ACCUSATION VII - DÉCLARATION FRAUDULEUSE

63. Le plaignant DeepGulf réincorpore et réitère les paragraphes 1 à 9 comme s'ils étaient entièrement énoncés aux présentes.
64. DeepGulf a commencé à chercher des fonds supplémentaires pour ses activités le 6 août 2012. La préparation de cette série de financement a commencée en 2011.
65. Le Timor Leste est un pays de l'archipel indonésien situé juste au nord de l'Australie. "Leste" est le mot portugais pour le mot anglais "East". Timor oriental est le nom anglais du pays appelé Timor Leste dans la langue nationale du portugais.
66. Moszkowski a sollicité et obtenu trois contrats du Timor oriental et a été le chef de projet des trois projets exécutés au Timor oriental.
67. Conjointement pendant la période visée au paragraphe 64, la préparation d'un mémorandum de placement privé (ci-après le «PPM») visant à obtenir un financement pour DeepGulf était un effort conjoint de Rus Howard et Moszkowski. Moszkowski a fourni toutes les informations techniques et l'histoire de DeepGulf. M. Howard a mis les informations reçues de Moszkowski dans le PPM.
68. A part de Moszkowski, aucun autre membre du Conseil d'administration ou de l'équipe de direction n'a visité le Timor oriental, ni négocié de contrats avec le Timor oriental, ni parlé directement à un client de DeepGulf.
69. Toutes les informations sur l'entreprise et les projets ont été générées par Moszkowski ou sont venues de lui au reste de l'équipe de direction.
70. Moszkowski était la seule source d'information du plaignant et de Rus Howard.
71. Moszkowski a interdit à Rus Howard de contacter des clients et toute personne au Timor oriental, en Indonésie, pour obtenir ou confirmer des informations
72. Le PPM fait diverses représentations que le Conseil d'administration de DeepGulf a ensuite découvert comme étant fausses et trompeuses.
73. Le PPM déclare que "la Société (DeepGulf, Inc.) a été invitée au Timor-Leste pour évaluer si la Société serait capable d'utiliser ses technologies pour poser un pipeline répondant aux besoins du Timor-Leste qui espérait de construire un grand gazoduc depuis le champ pétrolier Greater Sunrise jusqu'aux rives du Timor-Leste. Afin de déterminer la faisabilité du projet et de permettre une planification complète de l'infrastructure de ce projet et des projets futurs, la filiale timoraise de la société TOKE a achevé trois projets dans la mer de Timor et au Timor-Leste entre 2008 et 2012. "

74. Moszkowski a indiqué que les trois projets achevés au Timor oriental étaient des projets DeepGulf et que les recettes du projet s'élevaient à 14,9 millions de dollars des États-Unis.

75. Moszkowski a représenté aux banques d'investissement que DeepGulf avait achevé trois projets au Timor oriental ou dans la mer de Timor avec un chiffre d'affaires de 15 millions de dollars américains.

76. Moszkowski a représenté aux actionnaires, au Conseil d'administration, aux investisseurs potentiels, aux banquiers d'affaires, aux représentants du gouvernement que les trois projets réalisés à Timor étaient les projets de DeepGulf et que le chiffre d'affaires était de 15 millions de dollars américains.

77. Moszkowski a causé le conseil à croire qu'il détenait des actions de Toke Oil and Gas au profit de DeepGulf depuis la création de la société en 2008.

78. DeepGulf était actionnaire de Toke Oil and Gas depuis 2010.

79. Moszkowski a négocié l'acquisition par DeepGulf de 30 000 actions ou de 33% de Toke Oil and Gas auprès de Vincente Ximenes le ou vers le 12 août 2010.

80. Moszkowski a négocié l'acquisition par DeepGulf de 30 000 actions supplémentaires ou de 33% de Toke Oil and Gas auprès de Vincente Ximenes le ou vers le 25 mai 2012.

81. DeepGulf a acheté à Moszkowski 30 000 actions additionnelles ou 33% de Toke Oil and Gas le ou vers le 25 mai 2012, faisant de DeepGulf le seul propriétaire de Toke Oil and Gas.

82. Le ou vers le 17 juillet 2017, le conseil d'administration a demandé que les dossiers des transactions des trois projets au Timor oriental soient transmis au Conseil pour examen, Moszkowski a refusé de livrer une copie des registres de Toke Oil & Gas.

83. Moszkowski insiste sur le fait qu'en dépit des représentations antérieures auprès du public et des investisseurs que les projets étaient le projet DeepGulf, il affirme maintenant que les projets étaient des projets de Toke Oil & Gas et non des projets de DeepGulf.

84. Moszkowski affirme que parce que Toke Oil & Gas était une société offshore indépendante au moment des projets, DeepGulf n'a aucun droit sur les enregistrements.

85. De plus, Moszkowski affirme actuellement que Toke Oil & Gas n'est pas une filiale de DeepGulf.

86. Moszkowski affirme également que l'achat des actions de Toke Oil & Gas n'était pas terminé et que DeepGulf n'est donc pas propriétaire de Toke Oil & Gas et n'a aucun droit sur les registres de Toke Oil & Gas.

87. Moszkowski affirme que DeepGulf était un sous-traitant de Toke Oil & Gas et n'a aucun droit sur les registres de l'entrepreneur.

88. Moszkowski continue de refuser de fournir des documents ayant un lien avec Toke Oil & Gas aux plaignants.

89. Moszkowski a frauduleusement déformé et dissimulé des informations importantes sur DeepGulf, Toke Oil & Gas, leur relation les uns aux autres, les trois projets, qui détenait et détient Toke, qui exécutait les projets, les revenus générés par les projets et à qui ils appartenaient, et les achats par DeepGulf d'actions de Toke Oil & Gas.

90. DeepGulf a collecté de l'argent sur la base du PPM qui incorporait des informations fausses et trompeuses de Moszkowski au sujet des projets et du rôle de DeepGulf dans les projets.

91. Moszkowski a dissimulé des faits et fourni des informations fausses et trompeuses aux actionnaires, ce qui les a incités à investir.

PAR CONSÉQUENT, les plaignants réclament un jugement contre le défendeur pour les dommages-intérêts, les frais judiciaires et tout autre redressement que le tribunal juge approprié et juste.

CHEF D'ACCUSATION VIII - DÉCLARATION DÉCLARATOIRE

92. Les plaignants réincorporent les paragraphes 1 à 9 et 77 à 81 et 85 comme s'ils étaient entièrement énoncés aux présentes.

93. Il existe actuellement un besoin réel d'une déclaration concernant les droits, titres et intérêts des plaignants et du défendeur dans Toke Oil & Gas.

94. Les droits de propriété des plaignants dans Toke Oil & Gas sont mis en doute en raison des déclarations faites par le Défendeur.

PAR CONSÉQUENT, les plaignants demandent que ce tribunal déclare les droits, titres et intérêts des plaignants et défenderesse dans Toke Oil & Gas et pour toute autre réparation que la Cour juge nécessaire et appropriée.

CHEF D'ACCUSATION IX-COMPTABILITÉ

95. Le plaignant réincorporera et reformulera les paragraphes 1 à 9 comme s'ils étaient entièrement énoncés aux présentes.

96. Ceci est une action pour une comptabilité.

97. Le Défendeur a une obligation fiduciaire envers le plaignant et a conclu plusieurs transactions complexes avec le plaignant.

98. La loi et l'équité en Floride exigent que le défendeur rende compte de son utilisation des actifs du plaignant.

PAR CONSÉQUENT, le plaignant demande:

- a. jugement pour la comptabilisation des sommes dues par le défendeur;
- b. pour une décision exigeant la production de documents liés et pertinents à la comptabilité;
- c. pour un privilège sur les recettes reçues par le défendeur; pour le jugement obligeant le Défendeur à payer les montants constatés dus au plaignant dans la comptabilité et après le procès sur les questions de droit constatées dans la comptabilité;
- d. pour les honoraires d'avocat, comme le permet la loi, les intérêts avant et après jugement sur les montants liquidés qui sont jugés dus, les coûts;
- e. les autres décisions dont il sera prouvé qu'ils sont appropriés à la fin de la comptabilité; et
- f. toute autre réparation que le tribunal juge nécessaire et appropriée.

Signé ce ____ jour de Mars 2018.

Braden K. Ball, Jr.
Barrie de Floride No. 89000
LITVAK BEASLEY WILSON & BALL, LLP
226 East Government Street Pensacola, Floride 32502
Bureau: (850) 432-9818
Télécopieur: (850) 432-9830
Avocat pour les plaignants
Courriel principal: braden@lawpensacola.com
Courriel secondaire: mandrews@lawpensacola.com

AVIS: Ceci est une traduction de documents originaux créés en anglais et exécutés dans l'État de Floride aux États-Unis d'Amérique. Dans le cas d'une divergence de traduction, les originaux anglais ont priorité.

ACCORD DE NON-CONCURRENCE, DE NON- DIVULGATION ET DE DÉVELOPPEMENT

En contrepartie et comme condition de mon service ou de mon service continu en tant qu'employé, administrateur, directeur ou consultant (ce service est décrit ici comme étant le maintien ou la participation à une « Business Relationship ») de DeepGulf, Inc. et de ses filiales, divisions, ou sociétés affiliées (la « Société »), j'accepte par le present document ce qui suit:

1. Non-concurrence. Pendant la période de mes Business Relationship avec la Société et pendant un an après la fin de ma Business Relationship , quel que soit la raison ou les raisons de ma cessation d'emploi, je ne dois pas, seul ou en tant que consultant, associé, directeur, employé, (a) accepter un emploi dans une entreprise ou une entité qui est en concurrence avec les produits ou services conçus, conçus, créés, développés, fabriqués, commercialisés, distribués ou vendus par la Société, ou (b) s'engager dans toute activité ou activité qui est en concurrence avec les produits ou services conçus, conçus, créés, développés, fabriqués, commercialisés, distribués ou vendus par la Société.

2. Non-sollicitation de Clients. Pendant la période de mes Business Relationship avec la Société et pendant un an après la fin de ma Business Relationship , quel que soit la raison ou les raisons de ma cessation d'emploi, je ne dois pas, seul ou en tant que consultant, associé, directeur, employé, coentrepreneur ou actionnaire de toute entité, solliciter ou faire affaire avec tout client ou client potentiel de la Société (a) avec qui j'ai eu des contacts ou (b) à propos duquel j'ai obtenu des informations ou me suis familiarisé avec des Informations Confidentielles (tel que défini au paragraphe 4.), dans le cadre de mes Business Relationship avec la Société.

3. Non-sollicitation des Employés

a. Pendant la période de mes Business Relationship avec la Société et pendant un an après la fin de ma Business Relationship , quel que soit la raison ou les raisons de ma cessation d'emploi, je ne ferai appel à aucune compagnie ou entreprise l'organisation par laquelle je suis employé ou qui est directement ou indirectement contrôlée par moi pour engager ou engager une personne qui est ou était employée par la Société (ou est ou était un agent, représentant, entrepreneur, consultant de projet ou consultant de la Société) au moment de la cessation de mes Business Relationship , était à l'emploi de la Société dans les six mois suivant la fin de ma Business Relationship ou est ou était employé par la Société pendant la période d'un an suivant la fin de ma Business Relationship.

b. Pendant la période de mes Business Relationship avec la Société et pendant un an après la fin de ma Business Relationship, quel que soit la raison ou les raisons de ma cessation d'emploi, je ne ferai appel à aucune compagnie ou entreprise l'organisation par laquelle je suis employé ou qui est directement ou indirectement contrôlée par moi pour engager ou engager une personne qui est ou était employée par la Société (ou est ou était un agent, représentant, entrepreneur, consultant de projet ou consultant de la Société) au moment de la cessation de mes Business Relationship, était à l'emploi de la Société dans les six mois suivant la fin de ma Business Relationship, ou est ou était employé par la Société pendant la période d'un an suivant la fin de ma Business Relationship, quitter son emploi, sa relation ou son engagement avec la Société.

4. Non-divulgateion. Je ne révélerai pas à une personne ou à une entité des informations confidentielles pendant ou après la fin de mes relations commerciales avec la Société, sauf aux administrateurs, directeurs et employés de la Société qui ont besoin de connaître les Informations Confidentielles ou autrement autorisé par écrit par la Société. Le terme «Informations Confidentielles» doit inclure toute information concernant l'organisation, les affaires ou les finances de la Société ou de tout autre tiers que la Société est tenue de garder confidentielle et qui est maintenue confidentielle par la Société. En accord avec la phrase précédente et sans la limiter, les informations confidentielles incluent des secrets commerciaux ou des informations confidentielles concernant des inventions, produits, modèles, méthodes, savoir-faire, techniques, systèmes, processus, données d'ingénierie, spécifications, plans, logiciels, œuvres d'auteurs, listes de clients, informations sur les clients, informations financières, informations sur les prix, informations sur le personnel, plans d'affaires, projets, plans et propositions. Je garderai confidentielles toutes les affaires qui me sont confiées et je n'utiliserai ni ne tenterai d'utiliser des Informations Confidentielles, sauf dans la mesure où cela est nécessaire dans le cadre de la fourniture de services à la Société, ni utiliser des Informations Confidentielles de quelque manière qui cause ou nuire la Société une perte, ou peut être calculée à causer des dommages à la Société, soit directement soit indirectement.

5. Propriété de l'entreprise. J'accepte que durant mes Business Relationship avec la Société, je ne ferai, n'utilisera ou n'autoriserai à utiliser aucune propriété de la Société, sauf pour le bénéfice de la Société. Le terme «propriété de la société» comprend toutes les notes, notes, rapports, listes, dossiers, dessins, croquis, spécifications, logiciels, codes logiciels, données, ordinateurs, téléphones cellulaires, téléavertisseurs, cartes de crédit / débit / d'appel, clés, accès, cartes, badges d'identification, documents ou tout autre matériel de toute nature et sous quelque forme que ce soit, qu'il soit écrit, imprimé, électronique ou numérique ou autre, relatif à toute question entrant dans le cadre des affaires de la Société ou concernant ses transactions ou affaires et toute autre propriété de la Société en ma possession, la garde ou le contrôle. De plus, je reconnais que, après la cessation de mes Business Relationship avec la Société, je ne dois pas utiliser ou autoriser d'autres personnes à utiliser de telles propriétés de la Société. Je reconnais et accepte que tous les biens de la Société doivent être et rester la propriété unique et exclusive de

la Société. Immédiatement après la cessation de mes Business Relationship avec la Société, je livrerai à la Compagnie toutes les propriétés de la Société en ma possession et toutes les copies de celles-ci.

6. Affectation des Développements.

a. Si, à un moment ou à un autre de mes Business Relationship avec la Société, je ferai, soit seul soit en concert avec autres, concevoir, créer, découvrir, inventer ou réduire pour pratiquer tout développement qui: (i) se rapporte aux affaires du Société ou tout client ou fournisseur de la Société ou de l'un des produits ou services développés, fabriqués ou vendus par la Société ou qui peuvent être utilisés en relation avec ceux-ci: (ii) Ou, résultats de tâches qui me sont assignées par la Société; (iii) Ou résulte de l'utilisation de locaux ou d'actifs, corporels ou incorporels, possédés, loués ou contractés par la Société, alors tous ces Développements et leurs avantages sont et deviendront immédiatement la propriété exclusive et absolu de la Société et ses bénéficiaires comme travaux réalisés pour la location ou autrement. Le terme «Développement» désigne toute invention, modification, conception, développement, amélioration, secret commercial ou droits de propriété intellectuelle, produits, modèles, méthodes, savoir-faire, techniques, systèmes, processus, spécifications, plans, logiciels, découverte quelle qu'elle soit ou tout intérêt y afférent, qu'il soit brevetable ou enregistrable en vertu de droits d'auteur, de marques de commerce ou de lois similaires ou sous réserve d'une protection analogue, ayant trait aux activités de la Société. Je divulguerai rapidement à la Société ou à toute personne ou personnes désignées par la Société chacune de ces Développements. J'attribue par le présent document tous les droits, y compris mais pas exclusivement, sur les inventions, les objets brevetables, les droits d'auteur et les marques, je peux acquérir ou acquérir dans les Développements et tous les avantages et / ou droits qui en découlent pour la Société et ses bénéficiaires sans compensation supplémentaire et communiquera, sans frais ni délais, et sans divulguer à des autres le même, toutes les informations disponibles, y compris les plans et modèles, y afférents.

b. Développements Exclus. Je déclare que les Développements identifiés dans l'Annexe, le cas échéant, ci-joint comprennent tous les Développements que j'ai fait ou conçus avant mes Relations Commerciales avec la Société et qui n'appartiennent à aucun de mes anciens employés, lesquels Développements sont exclus du présent Contrat. Je comprends qu'il est seulement nécessaire d'énumérer le titre de ces Développements et le but de ceux-ci mais pas les détails du Développement lui-même. SI DE TELS DEVELOPPEMENTS SONT EXCLUS, LES SOUSSIGNES DEVRAIENT INITIALISER ICI; AUTREMENT, IL SERA CONSIDERE QU'IL N'Y A PAS DE TELLES EXCLUSIONS. _____

7. Autres Assurances. Je dois, au cours et à tout moment après ma Business Relationship avec la Société, à la demande et aux frais de la Société, signer rapidement, exécuter, tous les actes, documents, actes et choses que la Société et les agents autorisés peuvent raisonnablement exiger:

a. Pour demander, obtenir, enregistrer et acquérir au nom de la Société seule, sauf indication contraire de la Société, brevets, droits d'auteur, marques ou autres protections analogues dans tout pays dans le monde en rapport avec le développement et lorsque ainsi obtenu ou investi pour renouveler et restaurer le même;

b. Et, pour défendre toute procédure judiciaire, d'opposition ou autre concernant de telles demandes et toute procédure judiciaire, d'opposition ou autre, demande ou demande de révocation de tels brevets, droits d'auteur, marques ou autres protections analogues.

c. Si la Société est incapable, après un effort raisonnable, d'obtenir ma signature sur toute demande de brevets, droits d'auteur, marques, autres protections analogues ou autres documents concernant toute protection légale relative au Développement, que ce soit en raison de mon incapacité physique ou mentale, pour toute autre raison, je nomme et nomme irrévocablement la Société et ses dirigeants et agents dûment autorisés comme mon agent et mandataire, pour agir en mon nom et à sa place et pour exécuter et déposer une telle demande ou demande, ou d'autres documents, et de faire tous les autres actes légalement permis pour poursuivre la poursuite et la délivrance de brevets, droits d'auteur ou marques de commerce ou toute autre protection juridique sur ce avec la même force juridique et effet que si elle est exécutée par moi.

8. Relation A Volonté. Je comprends que cet Accord ne constitue pas un contrat de travail implicite ou écrit et que ma Business Relationship avec la Société est sur une base «à volonté». Par conséquent, je comprends que la Société ou moi-même pouvons mettre fin à ma Business Relationship à tout moment, pour quelque raison que ce soit, avec ou sans préavis.

9. Divisibilité. J'accepte que chaque disposition et les sous-parties de chaque disposition doivent être traitées comme des clauses distinctes et indépendantes, et l'inapplicabilité de l'une des clauses n'empêche en aucune manière l'applicabilité de toute autre clause ou clauses du présent Accord. En outre, si une ou plusieurs dispositions contenues dans le présent Accord sont, pour une raison quelconque, jugées inapplicables en droit, cette disposition ou ces dispositions seront interprétées par l'organe judiciaire compétent en limitant ou en interdisant les réduire, de manière à être exécutoires dans toute la mesure compatible avec la loi applicable telle qu'elle apparaîtra alors. Je reconnais par la présente que le libellé de toutes les parties du présent Accord doit dans tous les cas être interprété dans son ensemble dans son sens le plus juste et non strictement pour ou contre l'une ou l'autre des parties.

10. Modification; Renonciation. Toute modification ou modification du présent Accord, ou toute renonciation à toute disposition des présentes, doit être faite par écrit et signée par la Société. Toute renonciation par la Société d'une violation de toute disposition de ce Accord ne doit pas fonctionner ou être interprétée comme une renonciation à toute violation ultérieure de cette disposition ou de toute disposition des présentes.

11. Survie. Le présent Accord entrera en vigueur à la date indiquée ci-dessous. Mes obligations en vertu du présent Accord survivront à la résiliation de ma Business Relationship avec la Société, quelle que soit la manière de cette résiliation et seront obligatoires pour mes héritiers, exécuteurs testamentaires, administrateurs et représentants légaux.

12. Affectation. La Société aura le droit de céder le présent Accord à ses successeurs et ayants droit, et tous les engagements et conventions stipulés ci-dessous bénéficieront et seront exécutoires par lesdits successeurs et ayants droit. Je ne peux pas attribuer ce Accord.

13. Représentations.

a. Je déclare que ma Business Relationship avec la Société et mon exécution de toutes les conditions du présent Accord ne viole pas et ne viole aucun accord pour garder en confiance les informations confidentielles que j'ai acquises en confiance ou en confiance avant ma Business Relationship avec la Société. Je n'ai pas conclu et je ne conclurai aucun accord écrit ou verbal en conflit avec les présentes.

b. J'accepte que toute violation de cet Accord par moi causera un dommage irréparable à la Société et qu'en cas de tel manquement, la Société aura, en plus de tous les recours autorisés par la loi, le droit à une injonction, une exécution spécifique, ou un autre redressement équitable pour empêcher la violation de mes obligations en vertu des présentes. La Société peut demander une telle mesure d'injonction auprès de tout tribunal compétent sans qu'il soit nécessaire de déposer une caution ou une autre garantie.

14. Droit Applicable: Clause De Sélection Du Forum. Le présent Accord et toutes les réclamations découlant du présent Accord, ou toute autre réclamation découlant de la relation entre les parties, doit être régie et interprétée conformément aux lois de l'État de Floride et doit à tous égards être interprétée, appliquée, et gouverné selon les lois internes et internes de cet état, sans donner effet aux principes de conflits de lois de cet état. Toute réclamation ou action en justice intentée par une partie contre l'autre doit être introduite ou maintenue dans tout tribunal d'état ou fédéral situé dans l'État de Floride, et je me sou mets par la présente à la juridiction et au lieu de ce tribunal.

15. Entente Complète. Cet Accord établit l'accord complet, unique et entier entre les parties sur l'objet des présentes et remplace tout autre accord, négociations, discussions, propositions, accords, qu'ils soient oraux ou écrits, précédemment conclu, discuté ou considéré par les parties.

[RESTE DE LA PAGE INTENTIONNELLEMENT LAISSE VIDE]

EN FOI DE QUOI, le soussigné a exécuté le présent Accord en tant qu'instrument scellé à la date indiquée ci-dessus.

<Marc Moszkowski>
Signature

Marc Moszkowski
Nom d'impression

Daté: September 15, 2005

Adresse: c/o DeepGulf, Inc.
700 S. Palafox Street; Suite 160
Pensacola, FL 32502

RECONNU ET AGRÉÉ:

DEEPGULF, INC.

By: <Rustin Howard>

Nom: Rustin Howard

Titre: Président du Conseil d'administration

Daté: September 15, 2005

ANNEXE - TITRE / OBJET DE L'ÉVOLUTION

Ce qui suit est une liste complète de tous les développements et le but de ces développements.

Aucun développement: _____ <MM> (initiales)

Voir ci-dessous: _____ (initiales)

Développements Et Objectifs

L B W B
LITVAK BEASLEY WILSON & BALL
LLP
ATTORNEYS AT LAW

KRAMER A. LITVAK *†
ROBERT O. BEASLEY
PAUL A. WILSON†
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226 East Government Street
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PENNY HENDRIX
PHILLIP A. PUGH †
DEWITT D. CLARK

†ALSO ADMITTED IN ALABAMA
‡LL.M. IN TAXATION
*BOARD CERTIFIED TAX ATTORNEY

January 30, 2018

Par Coursier Recommandé Et Coursier International

Marc Moszkowski
Le Verdos 83300
Chateaudouble
France

Marc Moszkowski
Chalet de Bulvedere
Le Crey 73350,
Champagny-en-Vanoise
France

Re: Deepgulf, Inc.

DEMANDE CONFORMEMENT A FLA. STAT. §772.11 (STATUT DE VOL CIVIL)

Cher Monsieur Moszkowski:

Notre cabinet a le privilège de représenter Deepgulf, Inc. Cette lettre est un avis de recours civil donné conformément à Fla Stat. 772.11. Vous avez volé une opportunité d'affaires que vous deviez obtenir pour Deepgulf, Inc. Au lieu de cela, vous avez détourné une telle opportunité commerciale à vos propres fins.

Vos actions constituent un vol civil, vous exposant à la responsabilité de ce vol civil. À ce jour, les dommages réels subis à la suite de ce vol sont de 345,000 \$ (United States Dollars), car votre indemnité a été obtenue en fonction de votre détournement de l'occasion d'affaires de mes clients.

Cette lettre constitue une demande écrite, conformément à Fla Stat. §772.11, que vous payez 1,035,000 \$ (United States Dollars), directement à ce bureau avant la fin des trente (30) jours suivant la réception de cet avis. ¹ Ce montant représente trois fois le montant des dommages connus que mon client a subis à la suite de vos actions, tel que prévu par la loi de Floride.

Si ce montant n'est pas payé à la date indiquée ci-dessus, mon client m'a chargé de déposer une plainte contre vous afin d'inclure un dénombrement pour vol civil. S'il vous plaît noter que la statue du vol civil prévoit également le recouvrement des honoraires d'avocat et les coûts que mes clients passent dans la poursuite d'une telle action.

Si vous souhaitez résoudre cette affaire sans litige, s'il vous plaît contactez-moi rapidement.

Cordialement,

LITVAK, BEASLEY, WILSON & BALL, LLP

Braden K. Ball, Jr.

BKB:mca

AVIS: Ceci est une traduction de documents originaux créés et exécutés dans l'État de Floride aux États-Unis d'Amérique dans la langue anglaise. Dans le cas d'une divergence de traduction, les originaux anglais ont priorité.

¹ Le paiement doit être effectué par des fonds certifiés payables à "Braden K. Ball, Jr., P.A. Trust Account » et livré à notre bureau.

L B W B
LITVAK BEASLEY WILSON & BALL
LLP
ATTORNEYS AT LAW

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Vos actions constituent un vol civil, vous exposant à la responsabilité de ce vol civil. À ce jour, les dommages réels subis à la suite de ce vol sont de 959,764.22 \$ (United States Dollars), car votre indemnité a été obtenue en fonction de votre détournement de l'occasion d'affaires de mes clients.

Cette lettre constitue une demande écrite, conformément à Fla Stat. §772.11, que vous payez 2,879,292.66 \$ (United States Dollars), directement à ce bureau avant la fin des trente (30) jours suivant la réception de cet avis. ¹ Ce montant représente trois fois le montant des dommages connus que mon client a subis à la suite de vos actions, tel que prévu par la loi de la Floride.

Si ce montant n'est pas payé à la date indiquée ci-dessus, mon client m'a chargé de déposer une plainte contre vous afin d'inclure un dénombrement pour vol civil. S'il vous plaît noter que la statue du vol civil prévoit également le recouvrement des honoraires d'avocat et les coûts que mes clients passent dans la poursuite d'une telle action.

Si vous souhaitez résoudre cette affaire sans litige, s'il vous plaît contactez-moi rapidement.

Cordialement,

LITVAK, BEASLEY, WILSON & BALL, LLP

Braden K. Ball, Jr.

BKB:mca

AVIS: Ceci est une traduction de documents originaux créés et exécutés dans l'État de Floride aux États-Unis d'Amérique dans la langue anglaise. Dans le cas d'une divergence de traduction, les originaux anglais ont priorité.

¹ Le paiement doit être effectué par des fonds certifiés payables à "Braden K. Ball, Jr., P.A. Trust Account » et livré à notre bureau.

IN THE CIRCUIT COURT IN AND FOR ESCAMBA COUNTY, FLORIDA

DEEPGULF, INC., et al.

PLAINTIFF,

Vs.

CASE NO: 2018 CA 000543

DIVISION: K

MARC M MOSZKOWSKI

DEFENDANT,

SUMMONS PERSONAL SERVICE ON A NATURAL PERSON

TO DEFENDANT: MARC M MOSZKOWSKI

CHALET DE BULVEDERE

LE CREY 73350

CHAMPAGNY-EN VANOISE, FF

IMPORTANT

A lawsuit has been filed against you. You have 20 calendar days after this summons is served on you to file a written response to the attached complaint with the clerk of this court. A phone call will not protect you. Your written response, including the case number given above and the names of the parties, must be filed if you want the court to hear your side of the case. If you do not file your response on time, you may lose the case, and your wages, money, and property may thereafter be taken without further warning from the court. There are other legal requirements. You may want to call an attorney right away. If you do not know an attorney, you may call an attorney referral service or a legal aid office (listed in the phone book).

If you choose to file a written response yourself, at the same time you file your written response to the court you must also mail or take a copy of your written response to the "Plaintiff/Plaintiff's Attorney" named below.

IMPORTANTE

Usted ha sido demandado legalmente. Tiene 20 días, contados a partir del recibo de esta notificación, para contestar la demanda adjunta, por escrito, y presentarla ante este tribunal. Una llamada telefónica no lo protegerá. Si usted desea que el tribunal considere su defensa, debe presentar su respuesta por escrito, incluyendo el número del caso y los nombres de las partes interesadas. Si usted no contesta la demanda a tiempo, pudiese perder el caso y podría ser despojado de sus ingresos y propiedades, o privado de sus derechos, sin previo aviso del tribunal. Existen otros requisitos legales. Si lo desea, puede usted consultar a un abogado inmediatamente. Si no conoce a un abogado, puede llamar a una de las oficinas de asistencia legal que aparecen en la guía telefónica.

Si desea responder a la demanda por su cuenta, al mismo tiempo en que presenta su respuesta ante el tribunal, deberá usted enviar por correo o entregar una copia de su respuesta a la persona denominada abajo como "Plaintiff/Plaintiff's Attorney" (Demandante o Abogado del Demandante).

IMPORTANT

Des poursuites judiciaires ont été entreprises contre vous. Vous avez 20 jours consécutifs à partir de la date de l'assignation de cette citation pour déposer une réponse écrite à la plainte ci-jointe auprès de ce tribunal. Un simple coup de téléphone est insuffisant pour vous protéger. Vous êtes obligés de déposer votre réponse écrite, avec mention du numéro de dossier ci-dessus et du nom des parties nommées ici, si vous souhaitez que le tribunal entende votre cause. Si vous ne déposez pas votre réponse écrite dans le délai requis, vous risquez de perdre la cause ainsi que votre salaire, votre argent, et vos biens peuvent être saisis par la suite, sans aucun préavis ultérieur du tribunal. Il y a d'autres obligations juridiques et vous pouvez requérir les services immédiats d'un avocat. Si vous ne connaissez pas d'avocat, vous pourriez téléphoner à un service de référence d'avocats ou à un bureau d'assistance juridique (figurant à l'annuaire de téléphones).

Si vous choisissez de déposer vous-même une réponse écrite, il vous faudra également, en même temps que cette formalité, faire parvenir ou expédier une copie de votre réponse écrite au "Plaintiff/Plaintiff's Attorney" (Plaignant ou à son avocat) nommé ci-dessous.

PLAINTIFF/PLAINTIFF'S ATTORNEY:

BRADEN K BALL JR
LITVAK BEASLEY WILSON & BALL LLP
226 E GOVERNMENT ST
PENSACOLA, FL 32591

The STATE OF FLORIDA

TO EACH SHERIFF OF THE STATE: You are commanded to serve this Summons and a copy of the Complaint in this lawsuit on the above named Defendant.

CASUM2053P

Witness, my hand and the seal of this Court on this 3rd day of April, 2018

PAM CHILDERS

CLERK OF THE CIRCUIT COURT

By: *Rene McBride*
Deputy Clerk



If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact Court Administration, ADA Liaison Escambia County, 190 Governmental Center, 5th Floor, Pensacola, FL 32502, (850) 595-4400 Fax (850) 595-0360 ADA.Escambia@flcourts1.gov, at least 7 days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than 7 days; if you are hearing or voice impaired, call 711.

ACTAZUR
E. BERGE-W. RAMOINO-N. WISS
HUISSIERS DE JUSTICE ASSOCIES
Résidences GIORDANENGO
27 Avenue Carnot - Entrée A
83300 DRAGUIGNAN



☎ : STANDARD : 04 94 68 00 16

☎ : CONSTATS : 04 94 68 15 18

☎ : Fax : 04 94 68 98 85

URGENCE CONSTAT :

06.20.570.738

Mail : huissiersdraguignan@orange.fr

www.huissiers-var.fr

Horaires d'ouverture de l'Etude :

7 h 30 - 18 h 00 NON STOP

FERMETURE 17H le vendredi

IBAN:FR76 1910 6000 1043 6081 3290 385
AGRIFRPP891 (CREDIT AGRICOLE)

SIRET DRAGUIGNAN 343 197 927 (87 D 91)
TVA INTRACOMMUNAUTAIRE: FR 00 343.197.927

REFERENCE A RAPPELER :

Dossier : 110609

Affaire : DEEPGULF, INC/MOSZKOWSKI

Service : 6

Responsable : MA

/ 222-0106

**ACTE
D'HUISSIER
DE
JUSTICE**

COPIE



Coût - Décret n° 2016-230 du 26/02/16 :

SIGNIFICATION D'ASSIGNATION et D'AVIS DE CONVOCATION

L'AN DEUX MILLE DIX-HUIT ET LE

Spécial

Nous, Société Civile Professionnelle ACTAZUR, Edouard BERGE - William RAMOINO - Nathan WISS, Huissiers de Justice Associés à la résidence de Draguignan, y demeurant 27 Avenue Carnot, résidences Giordanengo, Entrée A - 83300 DRAGUIGNAN, l'un d'eux soussigné

A LA DEMANDE :

1/ Société DEEPGULF, Inc dont le siège social est 431 East Zaragoza St. Unit B PENSACOLA FL 32502 FLORIDE USA, agissant poursuites et diligences de son représentant légal domicilié audit siège en cette qualité.

2/ Société TOKE OIL and GAS, Inc dont le siège social est 431 East Zaragoza St. Unit B PENSACOLA FL 32502 FLORIDE USA, agissant poursuites et diligences de son représentant légal domicilié audit siège en cette qualité.

Elisant domicile en mon étude

A : Monsieur MOSZKOWSKI Marc né(e) le 25/06/1954 à COEVORDEN, Ingénieur, demeurant Le Verdos 83300 CHATEAUDOUBLE

parlant « à » comme il est dit au procès-verbal de signification

NOUS VOUS SIGNIFIONS PAR LE PRESENT :

-une assignation traduite en français ainsi que les pièces A, B, C

-une assignation en anglais et l'avis de convocation

Aux fins qu'il n'en ignore et qu'il en ait connaissance parfaite et légale.

SOUS TOUTES RESERVES

ACTAZUR
E. BERGE-W. RAMOINO-N. WISS
HUISSIERS DE JUSTICE ASSOCIES
Résidences GIORDANENGO
27 Avenue Carnot - Entrée A
83300 DRAGUIGNAN



☎ : STANDARD : 04 94 68 00 16
☎ : CONSTATS : 04 94 68 15 18
☎ : Fax : 04 94 68 98 85
URGENCE CONSTAT : 06.20.570.738
Mail : huissiersdragnan@orange.fr

IBAN:FR76 1910 6000 1043 6081 3290 385
AGRIFRPP891 (CREDIT AGRICOLE)

Membre d'une Association de Gestion Agréée par l'Administration fiscale
Le règlement des versements et honoraires par chèque est accepté

SIRET DRAGUIGNAN 343 197 927 (87 D 91)
TVA INTRACOMMUNAUTAIRE: FR 00 343.197.927

REFERENCE A RAPPELER :

Dossier : **110609** / 06-18-05-11745
Affaire : DEEPGULF, INC/MOSZKOWSKI*
/ 222-0106

**ACTE
D'HUISSIER
DE
JUSTICE**

COPIE



Coût - Décret n° 2016-230 du 26/02/16 :

Emol. Art R444-3 C Com 51.48
Transp. Art A.444-48 7.67
Copies de pièces annexes 42.90
Total H.T. 102.05
Total TVA 20.41
Affr. Art A.444-48(1) 1.72
T.F. Art 302 bis Y CGI 14.89
Total Eurs TTC. 139.07

**MODALITES DE REMISE DE L'ACTE
SIGNIFICATION D'ASSIGNATION**

Cet acte a été remis

par ☒ Huissier de Justice
☐ Clerc assermenté

A :
Monsieur MOSZKOWSKI Marc

Dans les conditions indiquées à la rubrique marquée ci-dessous d'une croix suivant les déclarations qui lui ont été faites.

M'étant transporté chez le destinataire, à l'adresse indiquée en tête des présentes, j'ai remis l'acte :



I - REMISE A PERSONNE

Au destinataire (personne physique) ainsi déclaré

☐ rencontré à l'étude sur justification de son identité

☐ sur procuration à l'étude à sur justification des identités



Au destinataire (personne morale)

à Nom :

Prénom :

qui a déclaré être :

☐ Représentant légal

☐ Fondé de pouvoir

☐ habilité à recevoir l'acte

la lettre prévue par l'article 658 du C.P.C comportant les mentions de l'article 655 du C.P.C a été adressée avec une copie de l'acte de signification au plus tard le premier jour ouvrable suivant la date du présent.



II - REMISE A DOMICILE ELU

Au domicile élu par le destinataire :

à

Qualité :

la lettre prévue par l'article 658 du C.P.C comportant les mentions de l'article 655 du C.P.C a été adressée avec une copie de l'acte de signification au plus tard le premier jour ouvrable suivant la date du présent.



III REMISE A PERSONNE PRESENTE

N'ayant pu, lors de mon passage, avoir de précisions suffisantes sur le lieu où se trouvait le destinataire, et ces circonstances rendant impossible la signification à personne, l'acte a été remis sous enveloppe fermée ne portant d'autre indication que d'un côté les nom et adresse du destinataire de l'acte et de l'autre côté le cachet de l'Huissier de Justice apposé sur la fermeture du pli.

A une personne présente :

Nom :

Prénom :

Qualité :

Qui a accepté de recevoir copie de l'acte.

Un avis de passage daté a été laissé ce jour au domicile, conformément à l'article 655 du C.P.C et la lettre prévue par l'article 658 du C.P.C comportant les mêmes mentions que l'avis de passage a été adressée au destinataire avec copie de l'acte de signification au plus tard le premier jour ouvrable suivant la date du présent.

Visa des mentions relatives à la signification

L'expédition certifiée conforme de l'acte signifiée au destinataire comporte 66 feuilles

ACTAZUR
E. BERGE-W. RAMOINO-N. WISS



Edouard BERGE



William RAMOINO



Nathan WISS

9

UNITED STATES DISTRICT COURT

for the
Northern District of Florida
Pensacola Division

DEEPGULF, INC.
TOKE OIL AND GAS, INC.

Case No. 3:18-cv-1466-MCR-GRJ

Jury Trial: No

Plaintiffs

v.

MARC M. MOSZKOWSKI

Defendant

I. THE PARTIES

A. THE PARTY FILING THIS ANSWER TO THE COMPLAINT

The Defendant:

Name:	Marc Moszkowski
Street Address:	Domaine du Verdos
Zip Code and Town:	83300 Châteaudouble, France
U.S. telephone number:	(850) 316 8462
E-mail Address:	m.moszkowski@deepgulf.net

Absence of legal representation:

The Defendant has sought legal representation since February 2018, to represent him first in Florida Circuit Court, and later in U.S. District Court. He has contacted 19 business law and litigation attorneys in Florida, as well as a major Law School through a third party. Since the Plaintiff has deprived the Defendant of his salaries and savings since 2013, and has endeavored to make it impossible for the Defendant to earn any professional income, the

Defendant has sought representation on a contingent fees basis. The attorneys he has contacted either ignored his request for assistance or declined assisting him. Some of them had conflicts of interest. One declined after learning from the Defendant that he could not pay a retainer that amounted to 5 years of his current gross income, plus an hourly rate equal to two weeks of said income.

Plaintiff's company bylaws stipulate however that the company must provide legal defense for the Defendant, who is the President of the company. The Plaintiffs have not provided nor offered such defense to date.

As a consequence, the Defendant has no alternative to defending himself on his own behalf, despite his lack of legal training.

B. THE PARTIES FILING THE COMPLAINT AND THEIR RELATIONSHIP WITH THE DEFENDANT

The Defendant is Plaintiff DeepGulf, Inc.'s largest shareholder, one of its three Directors, and its President:

The Defendant is Plaintiff DeepGulf, Inc.'s largest shareholder. He owns 46.2% of the voting stock. He is one of the three Directors. Although the Defendant learned in a letter sent to the Shareholders by the other two Directors on February 5th, 2018 that the Board of Directors had decided to begin legal proceedings against him, he has no record of any Board of Directors meeting nor of any minutes of meeting in which two of the three Directors would have made the decision that the company bring suit against the third one.

The Defendant is not a U.S. citizen, nor is he a U.S. resident. He is of French citizenship and he currently resides in France. He is not authorized by U.S. law to reside at the company's place of business in the U.S., since the Plaintiff failed to, neglected to, or conspired not to, obtain a U.S. visa for the Defendant to remain in the U.S. after February 2017, despite Plaintiff DeepGulf, Inc.'s Chairman of the Board's repeated assurances to the contrary. As a consequence, the Defendant had to leave the country abruptly on February 15th, 2017, nearly 20 years after arriving in the United States, abandoning in the process all but one bag of his belongings behind.

The Defendant believes the second Plaintiff has no legal existence:

The Defendant is not aware of the existence of the second plaintiff, Toke Oil and Gas, Inc., and it is unclear to him in which capacity the hypothetical entity brought suit against him. He found no record of Toke Oil and Gas, Inc. on the Florida Department of State, Division of Corporations website, and he thinks said company does not exist. However, the summons received from the Plaintiff stipulates that both DeepGulf, Inc. and Toke Oil & Gas, Inc. have their registered address at the private domicile of Plaintiff DeepGulf, Inc.'s Chairman of the Board, at 431 East Zaragoza St., Unit B, Pensacola, Florida 32502. The Defendant, who is a

Director and the President of the company, was not aware of this address for the existing company, DeepGulf, Inc. The legal address for DeepGulf, Inc. was 25 W. Cedar St., Suite 440, Pensacola, Florida 32502 and the Defendant, in his capacities of Director and President, has not been properly informed of the change of address by the Board of Directors.

In contrast, a company by the name Toke Oil & Gas S.A. existed in East Timor but ceased to exist around 2013. At any rate, as far as the Defendant knows, Toke Oil & Gas S.A. had two Directors only, including the Defendant, and the manner in which Toke Oil & Gas (S.A. or Inc.) could have decided to bring suit against one of its two Directors by the action of the other Director only is unclear to the Defendant.

II. THE DEFENDANT'S ANSWER, AFFIRMATIVE DEFENSES, AND COUNTERCLAIM

A. ANSWERING THE CLAIMS FOR RELIEF

See EXHIBIT A: "ANSWERING THE CLAIMS FOR RELIEF".

B. AFFIRMATIVE DEFENSES

1. Statute of limitations

The accusations of theft and conversion relate to events that were fully reported in financial documents sent to Plaintiff DeepGulf, Inc.'s Chairman of the Board as early as January 26th, 2011 for the years 2008 to 2010, and on May 25th, 2012 for the year 2011, more than 7 years 2 months and more than 5 years 10 months before the complaint. The last event of which the Defendant is accused occurred more than 6 years 4 months before the Plaintiff's complaint. In the weeks following their production, the Defendant discussed said financial documents extensively with Plaintiff DeepGulf, Inc.'s Chairman of the Board who also told the Defendant that said financial documents were used and incorporated by the Plaintiff in its own financial reports.

As per Florida Statute 772.17 and 28 U.S. Code § 1658, the five-year statute of limitations unequivocally applies.

2. Duress

2.1. No compensation since 2013. The Defendant has been kept by Plaintiff DeepGulf, Inc. without any salary or compensation since April 2013, despite the significant revenue the Defendant later returned to the company by having all his personal consulting fees credited to the company. Additionally,

the Defendant has consistently paid for company's expenses personally, be it for Internet presence, traveling expenses, or living expenses. The Defendant has been all but abandoned by the Plaintiff professionally since late 2014, and he was forced to leave the United States abruptly in February 2017, as a direct consequence of the Plaintiff's willful negligence to secure a proper visa for the Defendant, despite repeated assurances by the Plaintiff to the contrary. The Defendant abandoned in the process all his belongings behind, to the exception of one bag, almost 20 years after he arrived in the United States.

- 2.2. No representation. The Defendant has vainly tried to secure representation on contingent fees in Pensacola for this lawsuit but, firstly, hasn't succeeded in finding a law firm which would not have a conflict of interest regarding one or several of the company's more than 40 Shareholders, and, secondly, the lack of salary received from Plaintiff DeepGulf, Inc. since 2013 as well as the substantial amounts advanced to the company by the Defendant but never reimbursed by the Plaintiff result in the financial impossibility for the Defendant to retain non contingent representation, while the Plaintiff did ensure he was properly represented through a Board of Directors decision for which the Defendant, as a Director, was never consulted. It is to be noted that the Plaintiff's representation and legal costs are currently being paid for with monies undeniably owed the Defendant. The Plaintiff currently owes the Defendant as much as \$800,000 before interest.

Article XI of Plaintiff DeepGulf, Inc.'s bylaws stipulates however that the company must provide legal defense for the Defendant, who is the President of the company. The Plaintiffs have not provided nor offered such defense to date.

- 2.3. Deprivation of rightful income. Counts I and II of the Complaint, as well as the experience of past company events conspire to deprive the Defendant of any opportunity to earn any personal income at all, even in activities unrelated to the object of the company, a situation that effectively further prevents the Defendant from securing proper representation in this lawsuit and keeps him in a condition reminiscent of ancient indentured servitude, although for an indefinite term in this case. During said company events, not only was the Defendant deprived by the Plaintiff of all his consulting fees while being kept without any income, the Plaintiff also attempted to substitute for salaries due to the Defendant a personal loan from a third party at an usurious interest rate and then had said third party frivolously sue the Defendant in French Court for the repayment of the purported loan, which he never paid the Defendant, plus interest at a 20% annual rate [*in a judgement rendered on July 4th, 2018, the French judge vindicated the Defendant by (a) rejecting all demands in the lawsuit, and (b) sentencing the plaintiff to pay all associated court costs*].

- 2.4. Petty vindictiveness. As a further instance of the Plaintiff's unwarranted personal vindictiveness and determined objective to strip the Defendant of any possible revenue, the Plaintiff denied the Defendant the use of the 1995 vehicle he had purchased personally six years before the founding of the company and had entrusted in good faith to the company a year and a half prior to the Complaint for regulatory reasons having to do with his alien status. The Plaintiff appropriated the vehicle at the house of the ex-third Director in November 2017 after the Defendant had been forced to leave U.S. soil by the Plaintiff's negligence to secure a visa for the Defendant.
- 2.5. Cruelty and intimidation. It appears that the Plaintiff was well aware of the Defendant's dire financial and psychological circumstances, especially after he was forced penniless out of the country he had considered home for the past two decades, a situation which the Chairman of the Board had discussed with the then third Director who was attempting to mediate the dispute. It now seems probable that one of the aims of the Chairman of the Board's utter vindictiveness and absurd lawsuits was to intimidate the Defendant with such strength that the Defendant would be brought by intense pressure to inflict some irreparable harm upon himself, thus resolving the dispute to the Plaintiff's advantage, since the Shareholders would have taken such regrettable action as an admission of guilt on the part of the Defendant.

3. Fraud on the minority

Plaintiff DeepGulf, Inc. has committed fraud on the minority through the following actions on the part of its Chairman of the Board:

- 3.1. Allowing the number of Directors to be reduced from 4 to 3, with the ultimate objective to gain the support of a new third Director for the Chairman of the Board, in order for him to control the board;
- 3.2. Scaring off the long time third Director, who was trying to officiate as a mediator between the two parties, through threats of a lawsuit if he talked with the Defendant directly, out of the Chairman of the Board's presence;
- 3.3. Manipulating the Board of Directors through proxies obtained from some of the investors, and installing a close friend and associate of his on the Board of Directors, thus acquiring a virtual permanent majority;
- 3.4. Preventing the Defendant from obtaining similar proxies, through the withholding of all contact information for nearly half the Shareholders;
- 3.5. Attempting to prevent the Defendant from communicating with the investors; withholding addresses for nearly half the investors.

4. Breach of confidentiality

Some of the confidential emails sent by Plaintiff DeepGulf, Inc.'s Chairman of the Board to the Defendant in the course of the dispute a short time prior to the filing of the complaint were copied to a third party unknown to the Defendant. Quite inexplicably, the confidential emails were copied to the campaign address of a member of the Florida House of Representatives who is running for Attorney General of the State of Florida. The practice stopped after the Defendant made concerned remarks about the matter. The Defendant considers that the practice of copying confidential corporate material in the course of an internal dispute not only to a third party unknown to the Defendant, but also to a State Representative who is running for the office of chief legal officer in the State in which the Plaintiff was preparing to bring suit against the Defendant, was intended either to intimidate the Defendant, or as an injudicious attempt to sway the judicial system in favor of the Plaintiff.

5. Failure to mediate

The Plaintiff has resisted all attempts by the Defendant to have the personal dispute between Plaintiff DeepGulf, Inc.'s Chairman of the Board and the Defendant mediated through a third Director who was later driven to leave the Board of Directors due to Plaintiff DeepGulf, Inc.'s Chairman of the Board's threats of a lawsuit if he talked to the Defendant. Of the three Directors on the Board, two of them, the Defendant and the ex-third Director, attempted for months to have the dispute mediated, but in vain.

Other individuals involved in Plaintiff's business, with knowledge of the dispute and of company facts, were similarly threatened of legal action by the Chairman of the Board if they ever communicated with the Defendant.

The Director who took the vacant seat, for whose election the Chairman of the Board secured proxies from the Shareholders, half of whom were not accessible to the Defendant, consistently refused any candid phone conversation with the Defendant.

The Defendant has repeatedly attempted to candidly discuss all company issues with the Plaintiff's Directors and Shareholders. The Defendant sent a total of ten letters consisting of exhaustive information regarding the company to the Shareholders and Directors of Plaintiff DeepGulf, Inc. between November 19th, 2017 and February 5th, 2018, providing a full account of all the various issues, as well as numerous emails to the Directors, which he copied to the Shareholders for whom he had an email address. The information contained in these letters has been either consistently ignored or selectively misconstrued by the Directors other than the Defendant.

6. Speculative claims

The Plaintiff absurdly claims that the amounts paid to the active Directors and officers of foreign company Toke Oil & Gas S.A., which was Plaintiff DeepGulf, Inc.'s client in East Timor, and was not owned by DeepGulf, Inc., belonged somehow to the Plaintiff, which is mere speculation that cannot survive close scrutiny. The history of both companies clearly demonstrates that DeepGulf, Inc. was not, and could not, have been entitled to any of the normal expenditures of Toke Oil & Gas S.A.'s in the normal conduct of its business, and that, thanks to the Defendant's actions, Plaintiff DeepGulf, Inc. received payments from its client Toke Oil and Gas S.A. that exceeded contractual obligations by at least 30%.

7. False claims

Throughout the Complaint, the Plaintiff makes false claims that can only be explained by either a desire to mislead or by an utter misunderstanding of the realities of business as conducted in East Timor. Such claims regard the history of both DeepGulf, Inc. and Toke Oil & Gas S.A., the nature of the projects in East Timor, the contractual relationship between DeepGulf, Inc. and Toke Oil & Gas S.A., and the realities of the political environment in East Timor.

8. Failure to convene proper meetings of the Board of Directors

The Plaintiff has failed to convene meetings of the Board of Directors in due time and with sufficient notice. The Plaintiff's Board of Directors took the decision to sue the Defendant, who is one of three Directors, without said Director being party to the Board of Directors' meeting in the course of which the decision was taken. Likewise, now defunct Toke Oil & Gas S.A. (Toke Oil and Gas, Inc. never existed) had two Directors only, one being the Defendant, and the manner in which non-existing Toke Oil and Gas, Inc. could have decided to bring suit against one of its two Directors by the action of the other Director only is unclear to the Defendant.

C. COUNTERCLAIM

The Defendant is DeepGulf, Inc.'s principal shareholder, President, Head Engineer, suspended (Chief) Executive Officer, Project Director, and only technical and commercial officer of the company. The Defendant hereby declares that Plaintiff DeepGulf, Inc.'s accusations and Plaintiffs' lawsuit were prompted by considerations far removed from any alleged misbehavior on the part of the Defendant, and were rather motivated by the following reasons on the part of Plaintiff DeepGulf, Inc.'s Chairman of the Board:

- i. A desire to retaliate personally after the Defendant made it clear starting in August 2016 that he wanted Plaintiff DeepGulf, Inc.'s Chairman of the Board to

step down as Chairman of the Board and divest at least 2/3 of his stock, which he had obtained virtually without any payment on his part, to the benefit of the active sponsors of the company's, as a consequence of his irresponsible attitude during the past several years since the end of 2014;

- ii. A desire to destroy the Defendant's reputation;
- iii. A desire to force the Defendant out of the United States nearly 20 years after he arrived, as demonstrated when Plaintiff DeepGulf, Inc.'s Chairman of the Board abruptly dropped the Defendant's visa petition, unbeknownst to the Defendant;
- iv. A desire to intimidate the Defendant with such intensity that the banished and penniless Defendant would be likely to inflict irreversible harm upon himself;
- v. An attempt to deprive the Defendant of patent authorship, as demonstrated when he tried illegally to force his own name on a patent application;
- vi. An attempt to divert attention from the Chairman of the Board's own management of \$1,356,000 of company monies consisting of net cash flow and investors' capital, for which he has refused for several years to provide any explanation to the Defendant, who is the company's President, by way of audited accounting records;
- vii. An attempt to artificially shift responsibility from himself to the Defendant for representations made to the investors;
- viii. An attempt to artificially shift responsibility from himself to the Defendant for the expenditure of the investors' capital;
- ix. An attempt to eschew the reimbursement to the Defendant of the close to \$800,000 the company undeniably owes the Defendant for unpaid salaries since April 2013, and for the cash the Defendant personally injected in the company in the form of either personal cash spent on behalf of the company, or the crediting to the company of consulting fees that were due to the Defendant personally, for which the Defendant received no compensation;
- x. An attempt to grab the Defendant's personal real estate assets for his own benefit and that of the investors.

In addition to the points enumerated above, the Defendant hereby declares that there is a long list of indefensible deeds on the part of Plaintiff DeepGulf, Inc.'s Chairman of the Board since 2004, among them:

- xi. Manipulating the Defendant into giving away all the Defendant's past, current, and future intellectual property to the company, as well as all the benefits of the Defendant's future achievements, without any significant counterpart from the Plaintiff's Chairman of the Board;

- xii. Reserving the entirety of Plaintiff DeepGulf, Inc.'s financial management to himself without allowing any overlook by the Defendant, who is the President of the company; monopolizing bank account and other financial transactions while the Defendant never carried out any bank account transaction and is unaware of whether he ever had legal access to the company's bank accounts as the President of the company;
- xiii. Allowing the number of Directors to be reduced from 4 to 3, with the ultimate objective to gain the support of a new third Director in order to control the board;
- xiv. Scaring off the long time third Director who was trying to officiate as a mediator between the two parties, through threats of a lawsuit if he talked with the Defendant directly, out of the Chairman of the Board's presence;
- xv. Manipulating the Board of Directors through proxies obtained from the investors, and installing a close friend and associate of his on the Board of Directors, thus acquiring a virtual permanent majority;
- xvi. Preventing the Defendant from obtaining similar proxies, through the withholding of the email addresses and contact information of nearly half the Shareholders;
- xvii. Warning or threatening repeatedly the Defendant's business associates against cooperating with the Defendant for the development of Plaintiff DeepGulf, Inc., in effect attempting to destroy DeepGulf, Inc.'s business;
- xviii. Seemingly reporting the Defendant to the IRS for the Defendant's foreign income, despite the fact that, as a foreigner working and receiving his foreign compensation in a foreign country, the Defendant was not required to report this foreign income to the IRS, since it was non-taxable in the U.S. [*Note: all of the Defendant's U.S. income was comprehensively declared to the IRS and all income taxes were paid during the period the Defendant received a salary from the company*];
- xix. Spending funds on an unmeritorious and frivolous lawsuit while the company owes the Defendant close to \$800,000 before interest;
- xx. Trying to take personal credit for some of the intellectual property developed by the Defendant;
- xxi. Keeping the Defendant without any salary since April 2013, including during the long periods when the Defendant found employment as an engineering consultant, working 16 hours a day for months on end at the bottom of the engine compartments of an offshore construction barge in Singapore and West Africa, in very harsh and unsanitary conditions, while having 100% of the Defendant's \$1,000 a day net fee credited to the company; attempting to substitute for part of the legitimate salaries the Defendant should have derived from that income a personal loan from a close friend and associate of the

Chairman of the Board's at an usurious and illegal interest rate; having said close friend and associate of his sue the Defendant in French Court for the repayment of the alleged loan, plus interest at the annual rate of 20%, despite the fact that the alleged loan was never paid to the Defendant by said close friend and associate of the Chairman of the Board's [*in a judgement rendered on July 4th, 2018, the French judge vindicated the Defendant by (a) rejecting all demands in the lawsuit, and (b) sentencing the plaintiff to pay all associated court costs*];

- xxii. Being either unable, or unwilling, to obtain a permanent resident visa (Green Card) for the Defendant during the 13 years the Defendant has been the company's President, his presence in the United States being allowed only through a series of short term temporary non-immigrant, non-resident, visas. The Defendant arrived in the U.S. in 1998 and a lack of visa forced him to leave the United States abruptly in 2017 with just one bag of personal items, abandoning all his other belongings behind after nearly 20 years of presence in the United States.

WHEREFORE, the Defendant, Marc M. Moszkowski, demands:

1. A judgement requiring the invalidation of Plaintiff DeepGulf, Inc.'s and nonexistent Plaintiff Toke Oil and Gas, Inc.'s claims and demands pursuant to their Complaint;
2. A judgement requiring Plaintiff DeepGulf, Inc. to pay the Defendant the amount of \$800,000 that is currently owed the Defendant by the company, plus interest, at the highest interest rate allowed by U.S. law;
3. A judgement requiring Plaintiff DeepGulf, Inc. to pay the Defendant \$4,000,000 for defamation of character and false accusations of embezzlement; for the attempted malicious destruction of his career; for attempted intimidation, or attempted corruption, as demonstrated when the Plaintiff's Chairman of the Board involved in the dispute a State Representative who is running for Florida Attorney General; for the Defendant's abrupt eviction from U.S. soil; for masquerading due unpaid salaries as personal loans and for the subsequent foreign lawsuit;
4. A judgement requiring Plaintiff DeepGulf, Inc.'s Chairman of the Board to divest his ownership in the company and sell it for a symbolic \$1 to the individuals who actively supported the company during the time he abandoned the company;
5. A judgement awarding the Defendant damages for Plaintiff DeepGulf, Inc.'s failure to follow through with the visa application;

6. A judgement requiring Plaintiff DeepGulf, Inc. to provide legal defense for the Defendant and pay all attorney fees therefor, as per Article XI of Plaintiff DeepGulf, Inc.'s bylaws;
7. A judgement requiring Plaintiff DeepGulf, Inc. to pay all court and prejudgment costs and post interest at the highest interest rate allowed by U.S. law;
8. Any such other relief as the Court deems necessary and proper.

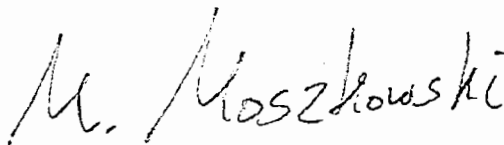
III. CERTIFICATION AND CLOSING

Under Federal Rule of Civil Procedure 11, by signing below, I certify to the best of my knowledge, information, and belief that this answer: (1) is not being presented for an improper purpose, such as to harass, cause unnecessary delay, or needlessly increase the cost of litigation; (2) is supported by existing law or by a non-frivolous argument for extending, modifying, or reversing existing law; (3) the factual contentions have evidentiary support or, if specifically so identified, will likely have evidentiary support after a reasonable opportunity for further investigation or discovery; and (4) the answer otherwise complies with the requirements of Rule 11.

I agree to provide the Clerk's Office with any changes to my address where case-related papers may be served. I understand that my failure to keep a current address on file with the Clerk's Office may result in the dismissal of my case.

Date of signing: August 21st, 2018

Signature of Defendant:

A handwritten signature in black ink that reads "M. Moszkowski". The signature is written in a cursive, slightly slanted style.

Printed Name of Defendant: MARC MOSZKOWSKI

(the last page of this document is the Certificate of Service to the Plaintiffs)

CERTIFICATE OF SERVICE

The Plaintiffs' Complaint was filed as Case No. 2018 CA 000543 in the Circuit Court in and for Escambia County, Florida, on April 2nd, 2018 by Attorney Braden K. Ball, of Litvak, Beasley, Wilson & Ball, LLP in Pensacola, Florida.

However, as of today, August 21st, 2018, the Civil Docket for Case #: 3:18-cv-01466-MCR-GRJ in the U.S. District Court for the Northern District of Florida in Pensacola states that the Plaintiffs are represented Pro Se, although the Defendant understands a corporation is an artificial person created by law, which cannot act as a natural person in representing its own case.

Were the Defendant to deliver a copy of this document personally to the existing Plaintiff, DeepGulf, Inc., he paradoxically would have to deliver it to himself, since he is the President of the company. As for Plaintiff Toke Oil and Gas, Inc., it seems to have no legal existence.

Notwithstanding the above contradictions, the Defendant is presenting in good faith a copy of this document to the Attorney of record in the Florida Circuit Court case, assuming said Attorney is perhaps still the Attorney of record in the U.S. District Court case despite the information on the Civil Docket, which states that the Plaintiffs are acting on their own behalf.

I hereby certify that a copy hereof has been furnished by hand-delivery to the assumed Attorney for the Plaintiff this August 21st, 2018.

Attorney for Plaintiffs

Braden K. Ball, Jr.
Florida Bar No. 89000
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Secondary E-mail: mandrews@lawpensacola.com

9-1

UNITED STATES DISTRICT COURT

for the
Northern District of Florida
Pensacola Division

DEEPGULF, INC.

Case No. 3:18-cv-1466-MCR-GRJ

TOKE OIL AND GAS, INC.

Jury Trial: No

Plaintiffs

v.

MARC M. MOSZKOWSKI

Defendant

EXHIBIT A

ANSWERING THE CLAIMS FOR RELIEF

I, Marc Moszkowski, Defendant, answer to the complaint as follows:

Jurisdiction and the Parties

Paragraphs 1, 2, 4, 5, 7, 8, and 9 are general statements, which are admitted.

Paragraph 3 is denied: the Defendant is not aware of the existence of Plaintiff Toke Oil and Gas, Inc., which could therefore never have been a wholly owned subsidiary of DeepGulf, Inc.'s, and neither could East Timorese company Toke Oil & Gas S.A., for reasons described in Count VIII below.

It is unclear to the Defendant in which capacity the hypothetical entity Toke Oil and Gas, Inc. brought suit against him. He found no record of Toke Oil and Gas, Inc. on the Florida Department of State, Division of Corporations website. However, the summons received from the Plaintiff stipulates that both DeepGulf, Inc. and Toke Oil & Gas, Inc. have their registered address at the private domicile of Plaintiff DeepGulf, Inc.'s Chairman of the Board, at 431 East Zaragoza St., Unit B, Pensacola, Florida 32502. The Defendant, who is a Director and the President of the company, has not been informed by the Board of Directors of this change of

address for the existing company, DeepGulf, Inc. The legal address for Plaintiff DeepGulf, Inc. was 25 W. Cedar St., Suite 440, Pensacola, Florida 32502.

In contrast, a company by the name Toke Oil & Gas S.A. existed in East Timor but ceased to exist around 2013. At any rate, as far as the Defendant knows, Toke Oil & Gas S.A. had two Directors only, one of them being the Defendant, and the manner in which Toke Oil & Gas (S.A. or Inc.) could have decided to bring suit against one of its two Directors by the action of the other Director only is unclear to the Defendant.

Paragraph 6 is denied: the Defendant was not residing in Escambia County, Florida, during all times pertinent to the allegations in the Complaint. The Defendant was forced to leave the United States in February 2017 since, despite all its assurances to the contrary, the Plaintiff neglected to, or conspired not to, obtain a visa that would have allowed the Defendant to remain on U.S. soil. During all times pertinent to the allegations of the Complaint, the Defendant has spent only 1/3 of the time in Florida.

As per the terms of his visas since the incorporation of the company, the Defendant was a non-resident alien and never was a resident in the United States, nor did he own housing of any sort, nor did he pay rent for housing anywhere in the United States.

Count I: Injunctive relief - Intellectual property and developments and business opportunity

Count I is denied.

Paragraph 10 relates to paragraphs 1 to 9 and is admitted as a general statement, except for paragraphs 3 and 6, which are denied

Paragraphs 11 to 19 are general statements, which are admitted.

The insinuation that the Defendant has used any of the company's intellectual property for his own benefit is denied, since the Defendant has not left the company, nor has he worked for a competitor company to bring the projects to fruition not for the benefit of the Plaintiff.

The Defendant is the President of Plaintiff DeepGulf, Inc. and continues to dedicate all his efforts to the success of the company. The Defendant receives no compensation nor support whatsoever from the company and he continues to pay out of pocket for expenses related to the company's continued business.

While all company intellectual property was developed by the Defendant, most of it was developed while he was neither employed nor salaried by the company. The Defendant has not received any salary since April 2013, although he has consistently used his own funds to keep the company moving forward.

There exist no software, nor any hardware, to be returned.

Count II: Breach of non-competition agreement

Count II is denied.

Paragraph 20 relates to paragraphs 1 to 9 and is admitted as a general statement, except for paragraphs 3 and 6, which are denied.

Paragraphs 21 to 23 and 27 are general statements, which are admitted.

Paragraphs 24 to 26 are denied, since the intent of the Defendant was not to leave the company, which he never did, nor establish a new company, which he never did, nor work for a competitor company, which he never did, although the Defendant expressed his desire to have the Chairman of the Board divest 2/3 of his stock in the company in favor of the individuals who kept supporting the professional activities of the Defendant while the Chairman of the Board had abandoned him resourceless since the end of 2014.

The accusation of breach of non-competition agreement is denied, since notwithstanding the fact that the Defendant is not authorized by law to reside at the company's place of business since the Plaintiff failed to obtain a U.S. visa for him, despite his repeated assurances to the contrary, the Defendant has not left the company, nor has he worked for a competitor company to bring the projects to fruition not for the benefit of the company.

Count III: Civil theft

Count III is denied.

Paragraph 29 relates to paragraphs 1 to 9 and is admitted as a general statement, except for paragraphs 3 and 6, which are denied.

Paragraphs 30 to 38 are denied as being either untruthful, inaccurate, or misleading.

Paragraphs 39 and 40 are admitted as general statements.

Paragraphs 41 to 49 are denied as being wholly or partly either untruthful, inaccurate, or misleading.

The accusation of civil theft of his own salaries by the Defendant is denied, since not only did the Defendant not obtain any property illegally or improperly, the property the Defendant is accused of having stolen from the Plaintiff as a salary did not belong to the Plaintiff, nor was it ever meant to belong to the Plaintiff.

Count IV: Civil theft

Count IV is denied.

Paragraph 29 relates to paragraphs 1 to 9 which are admitted as a general statement, except for paragraphs 3 and 6, which are denied, and paragraphs 30 to 43, which are denied, except paragraphs 39 and 40, which are admitted as general statements.

The accusation of civil theft by the Defendant of the salaries paid to Plaintiff's client Toke Oil and Gas S.A.'s other rightful owners and Directors is denied, since not only did said Directors not obtain any property illegally or improperly, nor did the Defendant receive any of the proceeds thereof, the property the Defendant is accused of having stolen from the Plaintiff in the form of salaries paid to the other rightful owners and Directors of Toke Oil and Gas S.A. did not belong to the Plaintiff, nor was it ever meant to belong to the Plaintiff.

Count V: Conversion

Count V is denied.

Paragraph 56 relates to paragraphs 1 to 9 which are admitted as general statements, except for paragraphs 3 and 6, which are denied, and paragraphs 30 to 47, which are denied, except paragraphs 39 and 40, which are admitted as general statements.

Paragraph 57 and 58 are denied as being untruthful.

The accusation of conversion of his own salaries by the Defendant is denied, since not only did the Defendant not obtain any property illegally or improperly, the property the Defendant is accused of having converted from the Plaintiff as a salary did not belong to the Plaintiff, nor was it ever meant to belong to the Plaintiff.

Count VI: Conversion

Count VI is denied.

Paragraph 60 relates to paragraphs 1 to 9 which are admitted as general statements, except for paragraphs 3 and 6, which are denied, and paragraphs 30 to 43, which are denied, except paragraphs 39 and 40, which are admitted as general statements.

The accusation of conversion by the Defendant of the salaries paid to Plaintiff's client Toke Oil and Gas S.A.'s other rightful owners and Directors is denied, since not only did said Directors not obtain any property illegally or improperly, nor did the Defendant receive any of the

proceeds thereof, the property the Defendant is accused of having converted from the Plaintiff in the form of salaries paid to the other rightful owners and Directors of Toke Oil and Gas S.A. did not belong to the Plaintiff, nor was it ever meant to belong to the Plaintiff.

Count VII: Fraudulent misrepresentation

Count VII is denied.

Paragraph 63 relates to paragraphs 1 to 9 and is admitted as a general statement, except for paragraphs 3 and 6, which are denied.

Paragraphs 64 and 65 are admitted as general statements.

Paragraph 66 is denied as being inaccurate.

Paragraph 67 is denied as being misleading, since the PPM was entirely prepared by DeepGulf, Inc.'s Chairman of the Board. The Defendant provided to the Chairman of the Board the information the latter requested from the Defendant.

Paragraphs 68 to 70 are admitted as general statements.

Paragraph 71 is denied as being untruthful, inaccurate, and misleading

Paragraph 72 is denied as being untruthful

Paragraphs 73 to 76 are admitted as general statements

Paragraph 77 is denied as being falsely insinuating

Paragraph 78 is admitted as a general statement

Paragraphs 79 to 91 are denied as being untruthful, inaccurate, or misleading

The accusation of fraudulent misrepresentation is denied, since nothing in the representations made by the Defendant to any third party or to the company was or is erroneous, let alone fraudulent. The Defendant was induced in 2012 by Plaintiff DeepGulf, Inc.'s Chairman of the Board to declare Toke Oil & Gas S.A.'s projects as DeepGulf, Inc.'s, a statement to which there was no reason to object, since Plaintiff DeepGulf, Inc. had become on paper the owner of at least 2/3 of Toke Oil & Gas S.A. in 2012, and was planning to acquire all of it.

Count VIII: Declaratory relief

Count VIII is denied

Paragraph 92 relates to paragraphs 1 to 9 which are admitted as general statements, except for paragraphs 3 and 6, which are denied, and paragraphs 77 to 81, as well as 85, which are denied, except paragraph 78, which is admitted as a general statement.

Paragraphs 93 and 94 are admitted.

To the best of the Defendant's knowledge, Toke Oil and Gas, Inc. has no legal existence. In contrast, a company by the name of Toke Oil & Gas S.A. existed in East Timor. DeepGulf, Inc. cannot own East Timorese company Toke Oil & Gas S.A., since Toke Oil & Gas S.A. most probably ceased to exist in 2013 after its planned acquisition by DeepGulf, for multiple reasons:

1. There was no planned Timorese ownership of the company, as required by Timorese law, since DeepGulf, Inc., a U.S. corporation, planned to own 100% of the Timorese company, and the Plaintiff claims it did;
2. There was no Timorese director, nor Timorese employee in the company, as required by Timorese law;
3. There was no investment in East Timor by the foreign owner, DeepGulf, Inc., as required by Timorese law;
4. Fees and dues ceased to be paid in East Timor for the maintenance of the company, as required by Timorese law;
5. No financial documents have been produced in East Timor for the company since 2012, as required by Timorese law;
6. No tax whatsoever has been paid in East Timor by the company since 2012, as required by Timorese law;
7. In addition, the transfer of the last 1/3 of shares to DeepGulf, Inc. has never been completed.

Count IX: Accounting

Count IX is denied.

Paragraph 95 relates to paragraphs 1 to 9 which are admitted as general statements, except for paragraphs 3 and 6, which are denied.

Paragraph 97 is admitted as a general statement.

Paragraph 98 is denied as untruthful and misleading, since the assets to which the paragraph refers never belonged to the Plaintiff, who had no right to them whatsoever.

Count IX is denied, since existing financial documents for Toke Oil and Gas S.A. were sent to Plaintiff DeepGulf, Inc.'s Chairman of the Board as early as January 26th, 2011, for the years 2008 to 2010, and on May 25th, 2012 for the year 2011, more than 7 years 2 months and more than 5 years 10 months before Plaintiff's complaint, including a very clear reference to the salaries paid to Toke Oil & Gas S.A.'s Directors, the last of which occurred more than 6 years 4 months before Plaintiffs' complaint. In the weeks and months following their production, the Defendant discussed said financial documents extensively with Plaintiff DeepGulf, Inc.'s Chairman of the Board who also told the Defendant that said financial documents were used and incorporated by the Plaintiff in its own financial reports.

END OF EXHIBIT A: "ANSWERING THE CLAIMS FOR RELIEF"

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IN THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, INC.,

Plaintiffs,

v.

CASE NO. 3:18-CV-1466-MCR-GRJ

MARC M. MOSZKOWSKI,

Defendant.

_____ /

PLAINTIFFS' REPLY TO AFFIRMATIVE DEFENSES

Comes now, Plaintiffs, Deepgulf and Toke Oil and Gas, Inc, and replies to the Affirmative Defenses asserted by Defendant, Marc M. Moszkowski, and states as follows:

1. Equitable Tolling. To the extent the Affirmative Defenses of Statute of Limitations has merit, the Statute of Limitations has been tolled by virtue of Defendant's fraudulent concealment of the claim in that Plaintiffs were not aware and could not have reasonable been aware of Defendant's actions that was the basis for Plaintiff's claims until 2017.



BRADEN K. BALL, JR.

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Facsimile: (850) 432-9830

Attorneys for Plaintiffs

Primary E-mail: braden@lawpensacola.com

Secondary E-mail: mandrews@lawpensacola.com

CERTIFICATE OF SERVICE

I **HEREBY CERTIFY** that I have on this 11th day of September, 2018 served a copy of the foregoing Reply to the Defendant, Marc M. Moszkowski, m.moszkowski@deepgulf.net, Le Verdos, 83300 Châteaudouble, France, via e-mail, First Class Mail and the Court's e-filing system.



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14

IN THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, INC.,

Plaintiffs,

v.

CASE NO. 3:18-CV-1466-MCR-GRJ

MARC M. MOSZKOWSKI,

Defendant.

**ANSWER TO DEFENDANT'S COUNTERCLAIM AND REPLY TO
AFFIRMATIVE DEFENSES**

Plaintiffs, Deepgulf and Toke Oil and Gas, Inc., by and through its undersigned attorney, answers the Counterclaim of Defendant, Marc M. Moszkowski, and states as follows:

COUNTERCLAIM

- i. Denied.
- ii. Denied.
- iii. Denied.
- iv. Denied.
- v. Denied.
- vi. Denied.
- vii. Denied.

viii. Denied.

ix. Denied.

x. Denied.

xi. Denied.

xii. Denied.

xiii. Denied.

xiv. Denied.

xv. Denied.

xvi. Denied.

xvii. Denied.

xviii. Denied.

xix. Denied.

xx. Denied.

xxi. Denied.

xxii. Denied.

1. Denied.

2. Denied.

3. Denied.

4. Denied.

5. Denied.

6. Denied.
7. Denied.
8. Denied.

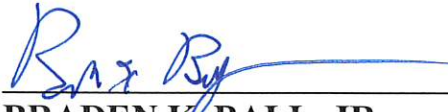
AFFIRMATIVE DEFENSES TO COUNTERCLAIM

1. Counter-Plaintiff fails to state a cause of action in that the allegations of this Counterclaim are conclusory in nature and fail to “contain a short and plain statement of the claim showing that the pleader is entitled to relief.” See Rule 8(a)(2), Federal Rules of Civil Procedure.

2. Statute of Limitations. Although it is difficult to discern the timing of the allegations of Counter-Plaintiff’s Counterclaim, to the extent that they are beyond the applicable Statute of Limitations, they are time barred.

3. Laches. Although it is difficult to discern the timing of the allegations of Counter-Plaintiff’s Counterclaim, it is barred by the equitable doctrine of Laches.

4. Unclean Hands. To the extent that Counter-Plaintiff is seeking equitable relief in his Counterclaim, his claims are barred by unclean hands in that Counter-Plaintiff has absconded with trade secrets and business opportunities owned by Counter-Defendant.



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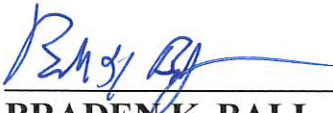
Attorneys for Plaintiffs

Primary E-mail: braden@lawpensacola.com

Secondary E-mail: mandrews@lawpensacola.com

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that I have on this 11th day of September, 2018 served a copy of the foregoing Answer to the Defendant, Marc M. Moszkowski, m.moszkowski@deepgulf.net, Le Verdos, 83300 Châteaudouble, France, via e-mail, First Class Mail and the Court's e-filing system.



BRADEN K. BALL, JR.

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16

29

UNITED STATES DISTRICT COURT

for the

Northern District of Florida

Pensacola Division

DEEPGULF, INC.

Case No. 3:18-cv-1466-MCR-GRJ

TOKE OIL AND GAS, INC.

Plaintiffs

v.

MARC M. MOSZKOWSKI

Defendant

**DEFENDANT'S REPLIES TO
ANSWER TO DEFENDANT'S COUNTERCLAIM AND REPLY TO
AFFIRMATIVE DEFENSES**

The Defendant's replies the following:

- a. The Defendant assumes that by "answers" the Attorney for the Plaintiffs meant "answer", and that by "states" he meant "state".
- b. The Defendant reiterates that Toke Oil and Gas, Inc. has no legal existence.

Regarding COUNTERCLAIM

Although the Defendant clearly understands the Plaintiffs' prerogative to deny Counterclaim statements i to xxii, he does not understand as clearly a prerogative for the Plaintiffs to deny demands 1 to 8, which were made for a judgement to be rendered by the Court, not by the Plaintiffs.

The Defendant reiterates his Counterclaim statements i to xxii, and Demands 1 to 8 for a judgement to be rendered by the Court.

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The Defendant reiterates that the Plaintiffs' accusation that he somehow paid to himself 100% of the income of a third party foreign company that: (a) was part of a group of foreign companies that pre-existed any contact with Plaintiff DeepGulf, Inc.; (b) was owned in majority by third party foreign individuals; and (c) had as its primary client the government of a foreign country, thanks to exertions of said foreign owners that largely pre-dated the first contact with DeepGulf, Inc., is not only unfounded and unsupported by any shred of evidence, but is also a slight to plain common business sense.

Likewise, the accusation that the Defendant ran away from the United States of his own volition or fancy with the purpose of operating a third party company, using the intellectual property that he had developed, is absurdly unfounded, since the Defendant was coerced to leave the United States against his wish more than a year before this lawsuit was filed, as a consequence of the Plaintiff's negligence to, or conspiracy not to, obtain the necessary visa to remain on U.S. soil. To this day the Defendant continues to work as the President of the company, without any compensation, although on foreign soil, again against his wish.

The irrationality and absurdity of the Plaintiffs' accusations confirm the obvious endeavor by the existing Plaintiff to divert attention primarily from the unexplained and unauthorized expenditure by its Chairman of the Board of as much as \$1.4 million of company money, including 100% of the capital, and his efforts to eschew the reimbursement to the Defendant of the \$800,000 plus interest the company indubitably owes him.

Hence the counterclaim.

Regarding AFFIRMATIVE DEFENSES TO COUNTERCLAIM

Regarding 1.

The Defendant cannot argue about this point, not having sufficient legal education, but he dares contend that his allegations are detailed and exhaustive and as such are more conclusive than had they been only short and plain.

Regarding 2. Statute of Limitations

It is deceitful on the part of the Plaintiffs to state that it is difficult for them to discern the timing of the allegations, since all such allegations were clearly articulated in the highest detail in the extensive correspondence sent by the Defendant to the Directors prior to the filing of the lawsuit, in particular in ten letters and numerous emails sent by the Defendant to the shareholders and directors of the company in his capacity as President, between November 2017

and February 2018. The Defendant cannot but assume that the Attorney for the Plaintiffs is privy to the content of those letters.

Furthermore, the rationale by which the Defendant's assertions are deemed by the Plaintiffs to be beyond a certain time frame despite their timing being difficult to discern seems highly illogical to the Defendant.

Contrary to the Plaintiffs' cavalier and erroneous assertion, except perhaps for point xi, none of the 22 points in the Defendant's defense refers to any event that occurred beyond the applicable Statute of Limitations, and for any that could have partly or marginally pre-existed, it is clear that the Plaintiff's Chairman of the Board did attempt to dissimulate the facts that are the basis for the Defendant's counterclaims.

Regarding 3. Laches.

Refer to comment in 2. Above.

Regarding 4. Unclean Hands.

The Defendant finds in the dictionary as a definition for "*absconding*": "*To flee, often secretly; to steal away, particularly to avoid arrest or prosecution.*"

The assertion by the Attorney for the Plaintiffs that the Defendant "*absconded*" "*with trade secrets and business opportunities*" is startlingly untruthful and the exact opposite of reality, and is tantamount to defamation, since it is evident that the Chairman of the Board conspired to exile, or deport, the Defendant against his wish, and that the Defendant was forced by law to leave the United States more than a year before this lawsuit against him was filed.

- A. Regarding his alleged abscondment, the Defendant has made the reasons for his residing outside the United States abundantly clear in all his prior correspondence and defenses. Any claim by the Plaintiffs' Directors other than the Defendant that he left of his own volition with a motive to run away with someone else's property is at best disingenuous, if not flatly mendacious. The Defendant left against his wish because DeepGulf, Inc.'s Chairman of the Board neglected to, or conspired not to, obtain a visa for the Defendant to remain in the United States, and upon the expiry of his last visa the Defendant left abruptly with one bag only, leaving his belongings of nearly 20 years behind.
- B. Regarding the trade secrets and business opportunities that the Plaintiff accuses the Defendant of having "*absconded*" with, the Defendant is still the President of the company and is still working on developing the company despite the Plaintiffs' Chairman of the Board open and obvious conspiracy to destroy the company with the help of the Director he chose to seat on the Board. The Defendant did not leave the company. He is still its president, only

officer, only engineer, and only author of patents within the company. He is not working for another company. Furthermore, during his tenure as president of the company, he did not spend a cent of the investors' capital on himself or for any of his expenses and on the contrary returned through his activities large amounts of cash to the company after all his salaries and expenses had been paid. He is owed close to \$800,000 plus interest by the company, and the mere notion that he "*absconded*" with stolen property is highly irrational.

DATE: September 17, 2018.



Marc M. Moszkowski, Pro Se
Defendant
Le Verdos
83300 Châteaudouble, France
Phone: (850)316 8462
Email: m.moszkowski@deepgulf.net

(the last page of this document is the Certificate of Service to the Plaintiffs)

CERTIFICATE OF SERVICE

I hereby certify that a copy hereof has been furnished by hand-delivery to the assumed Attorney for the Plaintiff this September 17, 2018.

M. Moszkowski

Attorney for Plaintiffs

Braden K. Ball, Jr.
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UNITED STATES DISTRICT COURT

for the

Northern District of Florida

Pensacola Division

DEEPGULF, INC.

Case No. 3:18-cv-1466-MCR-GRJ

TOKE OIL AND GAS, INC.

Plaintiffs

v.

MARC M. MOSZKOWSKI

Defendant

**DEFENDANT'S REPLIES TO
PLAINTIFFS' REPLY TO AFFIRMATIVE DEFENSES**

The Defendant reiterates that Toke Oil and Gas, Inc. has no legal existence.

Regarding 1. Equitable Tolling.

The Defendant assumes that by "*has merit*" the Attorney for the Plaintiffs meant "*have merit*", and, more importantly, that by "*reasonable*" he meant "*reasonably*".

The Defendant is Plaintiff DeepGulf, Inc.'s President, and is a Director thereof, and he was the President Director General of Toke Oil and Gas S.A. during the life of the company. The Defendant assumes that by Plaintiffs the Attorney for the Plaintiffs means actually either or both of the Directors who are not the Defendant.

The Defendant counters again that he did not conceal any information regarding his emoluments, let alone fraudulently, and the fabrication by the Plaintiff's Chairman of the Board that he was not aware and could not have reasonably been aware of Defendant's actions that were the basis

for Plaintiff's absurd claims is equally absurd, since the Defendant clearly confirmed to said Chairman of the Board all the salaries paid to the Directors of foreign company Toke Oil and Gas, S.A. in income statements delivered to him as early as January 26th, 2011, for the years 2008 to 2010, and on May 25th, 2012 for the year 2011, more than 7 years 2 months and more than 5 years 10 months before Plaintiff's complaint, the last of which salaries occurred more than 6 years 4 months before Plaintiff's complaint. The exchange of emails on those dates clearly corroborates the Defendant's statements.

The exact amounts, to the cent, that Plaintiff is referring to as directors' salaries were recorded as such and to the cent in as many as 4 (four) financial statements sent to the Chairman of the Board more than 5 years before the complaint, at the line items "Directors' salaries". Said financial statements were acknowledged by the Chairman of the Board on the day after they were sent to him by the Defendant, and were reportedly incorporated by him in the company financial statements.

Since the complaint unequivocally refers to the exact figures that exactly amount to the "Director's salaries" line items in the financial statements sent by the Defendant to the Plaintiff's Chairman of the Board more than 5 years before this lawsuit, and the Chairman of the Board could not have obtained such information from anyone but the Defendant, who voluntarily and openly disclosed those exact amounts more than 5 years before the complaint, any suggestion that the Defendant dissimulated the salaries that he openly and voluntarily disclosed to the Chairman of the Board between more than 6 years and more than 7 and a half years ago is highly irrational. Email correspondence clearly confirms the Defendant's statements.

DATE: September 17, 2018.



Marc M. Moszkowski, Pro Se
Defendant
Le Verdos
83300 Châteaudouble, France
Phone: (850)316 8462
Email: m.moszkowski@deepgulf.net

(the last page of this document is the Certificate of Service to the Plaintiffs)

CERTIFICATE OF SERVICE

I hereby certify that a copy hereof has been furnished by hand-delivery to the assumed Attorney for the Plaintiff this September 17, 2018.

M. Maszkowski

Attorney for Plaintiffs

Braden K. Ball, Jr.
Florida Bar No. 89000
LITVAK BEASLEY WILSON & BALL, LLP
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**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF, INC.

TOKE OIL AND GAS S.A,
Plaintiff,

vs.

MARC M. MOSZKOWSKI ,
Defendant.

*

*

*

*

* CASE NO. 3:18-cv-01466-MCR-MJF

*

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*

NOTICE OF APPEARANCE

COMES NOW, Mary Allie E. Boller, and files this Notice of
Appearance on behalf of the Defendant, Marc M. Moszkowski.

Respectfully submitted this 25th day of March 2019.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

Florida Bar No. 0111906

Thomas R. Boller, P.C.

150 Government Street, Suite 1001

Mobile, Alabama 36602

Telephone: (251) 433-2133

Facsimile: (251) 433-2135

Attorneys for Defendants

allie@bollerlawfirm.com

CERTIFICATE OF SERVICE

I hereby certify that on 25 March 2019, the foregoing was electronically filed with the Clerk of the Court using the CM/ECF system which will send notification of such filing all other counsel of record.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

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**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF, INC.	*	
TOKE OIL AND GAS S.A,	*	
Plaintiffs,	*	
	*	
vs.	*	CASE NO. 3:18-cv-01466-MCR-MJF
	*	
MARC M. MOSZKOWSKI ,	*	
Defendant.	*	

**JOINT MOTION TO EXTEND
DATES IN FINAL SCHEDULING ORDER**

COME NOW, undersigned counsel for both parties, and pursuant to Rule 6.1, Rules of the United States District Court for the Northern District of Florida, and in support of their Joint Motion to Extend Dates in Final Scheduling Order, would show unto this Honorable Court, the following, to wit:

1. On 25 March 2019, counsel for Defendant, Mary Allie Boller, appeared as counsel of record in the above referenced matter.
2. On 27 March 2019, counsel for Defendant, Thomas R. Boller, was granted permission to appear *pro hac vice* on Defendant's behalf in the above referenced matter.
3. The current discovery deadline is 29 March 2019, and the current

dispositive motion deadline is 29 April 2019.

4. Considering Defendant has proceeded as a *pro se* litigant throughout the duration of this matter, defense counsel requests time to amend Defendant's Answer and Counter-Claim, as well as to respond to, and propound, discovery appropriately.
5. Defense counsel has conferred with counsel for Plaintiffs, who have agreed that, pending this Honorable Court's approval, an extension of times set out within the final scheduling Order would be beneficial to all parties, in that such extension would allow time for the parties to narrow the issues and efficiently accelerate this matter toward resolution.
6. Plaintiffs may well wish to propound additional discovery as necessary based upon Defendant's amended pleadings.
7. As such, the parties would submit the following proposed stipulations as to extended deadlines:
 - a. Defendant may amend his Answer and Counterclaim on or before 15 April 2019;
 - b. Defendant shall supplement his discovery responses in accordance with the Rules on or before 15 May 2019;

- c. Discovery shall be propounded by Defendant to Plaintiffs on or before 30 April 2019;
- d. Plaintiffs shall respond to Defendant's Discovery Requests on or before 30 May 2019;
- e. All discovery to be completed by 30 July 2019;
- f. Defendant shall be deposed in the Northern District of Florida, in person, absent unforeseen circumstances, on or before 30 July 2019;
- g. Mediation shall occur on or before 31 July 2019; and
- h. All dispositive motions shall be filed on or before 15 August 2019.

WHEREFORE, the parties move this Honorable Court for entry of an Order granting the parties an extension of time according to the above referenced stipulations, or to grant the parties whatever further or different relief this Honorable Court may deem warranted.

Respectfully submitted this 29th day of March 2019.

s/ Mary Allie E. Boller
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s/ Braden K. Ball *by consent*
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**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF, INC. and
TOKE OIL AND GAS, INC.,

Plaintiffs,

v.

CASE NO. 3:18cv1466-MCR-MJF

MARC M. MOSZKOWSKI,

Defendant.

_____ /

ORDER

This matter originated on a Complaint filed in the Circuit Court in and for Escambia County, Florida, on April 3, 2018, and was removed to this Court on June 25, 2018. A Final Scheduling Order and Mediation Referral was issued in this matter on October 23, 2018, imposing discovery and other pretrial deadlines pursuant to the parties' Rule 26 report. *See* ECF No. 30. At the time of removal, Defendant was appearing as a *pro se* litigant; however, counsel has recently appeared on Defendant's behalf.¹ *See* ECF Nos. 63, 64, 65. This matter is now before the Court on the parties'

¹ As a civil case involving a *pro se* litigant, this case was referred to the assigned magistrate judge for all proceedings up to filing a report and recommendation concerning disposition of the case. *See* Local Rule 72.2(E). Counsel having now appeared for all parties, this matter is now referred to the assigned district judge.

In accordance with the provisions of 28 U.S.C. §636(c) and Fed. R. Civ. P. 73, the parties are reminded that a United States magistrate judge of this district court is available to conduct any or all proceedings in this case, including a jury or nonjury trial, and to order the entry of a final

Joint Motion to Extend Dates in Final Scheduling Order. ECF No. 68. Because Defendant had proceeded as a *pro se* litigant throughout the duration of this matter, the parties seek an extension of time to conduct discovery. On consideration, the Court will grant the parties' request. In granting the requested extension, the Court anticipates the parties will diligently conduct discovery such that no request for further extension will be necessary. No further extensions will be granted absent unforeseen and extraordinary cause.

Accordingly, it is ORDERED:

1. The parties' Joint Motion to Extend Dates in Final Scheduling Order, ECF No. 68, is GRANTED.
2. Defendant may amend his Answer and Counterclaim on or before **April 15, 2019**.
3. Defendant shall supplement his discovery responses in accordance with the Rules on or before **May 15, 2019**.
4. Discovery shall be propounded by Defendant to Plaintiffs on or before **April 30, 2019**.

judgment. Exercise of this jurisdiction by a magistrate judge is, however, permitted only if all parties voluntarily consent. A party may, without adverse substantive consequences, withhold their consent. Should all parties elect to consent to magistrate judge jurisdiction, they must signify so by filing a joint statement consenting to the referral. *See* ECF No. 10, pgs. 15-18.

5. Plaintiffs shall respond to Defendant's discovery requests on or before **May 30, 2019**.

6. Defendant shall appear in person for deposition in the Northern District of Florida on or before **July 30, 2019**.

7. All discovery must be completed by **July 30, 2019**.

8. The deadline to complete mediation is **July 31, 2019**.

9. The deadline for filing potentially dispositive motions, as well as *Daubert* motions,² is **August 15, 2019**.

10. All other provisions of the Final Scheduling Order and Mediation Referral, not specifically modified herein, remain unchanged.

DONE and ORDERED this 4th day of April 2019.

s/ M. Casey Rodgers
M. CASEY RODGERS
UNITED STATES DISTRICT JUDGE

² See *Daubert v. Merrell Dow Pharmaceuticals, Inc.*, 509 U.S. 579 (1993).

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**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

DEEPGULF, INC.	*	
TOKE OIL AND GAS S.A,	*	
Plaintiffs,	*	
	*	
vs.	*	CASE NO. 3:18-cv-01466-MCR-MJF
	*	
MARC M. MOSZKOWSKI ,	*	
Defendant.	*	

DEFENDANT’S ANSWER AND COUNTER-CLAIM

COMES NOW, Defendant Marc M. Moszkowski, by and through undersigned counsel, and pursuant to Federal Rule of Civil Procedure 8, submits the following Answer and Counterclaim:

ANSWER

JURISDICTION AND THE PARTIES

1. Defendant admits DeepGulf, Inc. is a Florida corporation established in Escambia County, Florida, but he is unable to admit or deny whether it is currently doing business, and therefore whether or not it has a principal place of business, and if so, if that principal place of business is in Escambia County Florida.
2. Defendant admits DeepGulf has done business in pipeline handling and transportation of hydrocarbons which includes

energy transportation, but the remainder of this allegation is denied and strict proof demanded thereof.

3. Defendant admits Toke Oil & Gas S.A. was an entity domiciled in East Timor, and Defendant acknowledges certain steps were taken by DeepGulf, Inc. to purchase Toke Oil & Gas S.A., but the balance of the allegations of this paragraph are denied and strict proof demanded thereof.

4. Admitted.

5. Admitted.

6. Defendant admits that he resided in Escambia County, Florida for certain periods since the creation of Deep Gulf, Inc., but he is not an American citizen, and for reasons related to some extent to the matters of this lawsuit, he no longer has a visa allowing residence in the United States.

7. Admitted.

8. Defendant admits that the document referenced dated 1 December 2004 relates to the powers and authorities of DeepGulf's officers, but denies that any of those powers or authorities were removed from him lawfully, pursuant to a

meeting held 26 December 2017 or otherwise. Any allegations to the contrary are denied and strict proof demanded thereof.

9. Admitted.

COUNT I- INJUNCTIVE RELIEF-
INTELLECTUAL PROPERTY AND DEVELOPMENTS
AND BUSINESS OPPORTUNITY

10. Defendant reincorporates his responses to Paragraphs 1 through 9 as if fully set out herein.

11. Admitted.

12. Admitted.

13. Admitted.

14. Admitted.

15. Admitted.

16. (a) Patent number 446792 as defined in this subsection was filed prior to the execution to the agreement described in Paragraph 11 (eleven) above and attached to the Complaint as Exhibit "A". ???

(b) Defendant admits the information set out in this subsection is correct.

(c) Defendant admits the information set out in this subparagraph is correct.

(d) Defendant admits the information set out in this subparagraph is correct.

(e) Publication number 20060130729 was filed 20 December 2004, per (iv) of this subparagraph preexisted the execution of the agreement identified in Paragraph 11 (eleven) above and attached to the Complaint as Exhibit “A”.

(f) The allegations in this subparagraph are denied and strict proof demanded thereof.

17. Defendant admits the allegations of this Paragraph as limited or explained in Paragraph 16 (sixteen) above or in the alternative as may be limited to interpretation and enforcement pursuant to the affirmative defenses set out below.

18. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

19. Defendant admits that he communicated with the indication “Commercial In Confidence” clearly indicated on the communications in question, and admits that this was the proper terminology to indicate proprietary and confidential content.

Defendant denies that Plaintiff has any right to injunction or the return of any of the described property, and demands strict proof in support of any such relief.

COUNT II- BREACH OF NON-COMPETITION AGREEMENT

20. Defendant realleges his responses to Paragraphs 1 through 9 as clarified and addressed in Paragraphs 11 through 20 as if fully set out herein.

21. Admitted.

22. Admitted.

23. Admitted.

24. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

25. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

26. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

27. Admitted.

Defendant denies that Plaintiff is entitled to any injunction or the return of any of the described property, and demands strict proof in support of any such relief.

COUNT III- CIVIL THEFT

28. Defendant denies he is in violation of Section 772.11 Florida Statutes.

29. Defendant adopts the responses to Paragraphs 1 through 9, and Paragraphs 11 through 19, and Paragraphs 21 through 27, insofar as they address or explain any of the prior responses as if set out in full herein.

30. Admitted.

31. Admitted.

32. Defendant is unable to admit or deny the allegations in this Paragraph, therefore they are denied.

33. Defendant admits he traveled to East Timor but denies all other allegations in this Paragraph and demands strict proof thereof.

34. Admitted.

35. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

36. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

37. Defendant admits the first two sentences in this Paragraph. The third sentence is denied and strict proof is demanded thereof.

38. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

39. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

40. Admitted.

41. Admitted.

42. Defendant admits he told the Board of DeepGulf that he was holding an interest in Toke Oil and Gas S.A. in his name for the benefit of DeepGulf, and that it would have been reckless to hold that interest in DeepGulf's name. All other allegations in this Paragraph are denied and strict proof is demanded thereof.

43. Toke Oil and Gas S.A. completed three (3) contracts, with the last project completed in May 2012. The other allegations in this Paragraph are denied and strict proof is demanded thereof.

44. Defendant admits certain monies were allocated to directors salaries, including payment to himself, as a director of Toke Oil and Gas S.A., but denies the remaining allegations in this Paragraph and demands strict proof thereof.

45. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

46. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

47. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

48. Defendant admits Plaintiff made certain demands, but denies that they meet the statutory requirements, or that this Defendant has committed any wrong under this Florida Statute Section or under Florida law.

49. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

Defendant demands an award reasonable attorney's fees and costs in that this Count is without substantial fact or legal support.

COUNT IV- CIVIL THEFT

50. This Paragraph does not require an admission or denial by this Defendant.

51. Defendant realleges Paragraphs 1 through 9, and Paragraphs 11 through 17, Paragraphs 21 through 27, and Paragraphs 30 through 49, insofar as they address or explain any of the prior responses as if set out in full herein.

52. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

53. Defendant admits Plaintiff made certain demands, but denies that they meet the statutory requirements, or that this Defendant has committed any wrong under this Florida Statute Section or under Florida law.

54. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

Defendant demands an award reasonable attorney's fees and costs in that this Count is without substantial fact or legal support.

COUNT V- CONVERSION

55. This Paragraph does not require an admission or denial by this Defendant.

56. Defendant realleges Paragraphs 1 through 9, and Paragraphs 11 through 17, Paragraphs 21 through 27, Paragraphs 30 through 49, and Paragraphs 52 through 54, insofar as they address or explain any of the prior responses as if set out in full herein.

57. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

58. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

COUNT VI- CONVERSION

59. This Paragraph does not require an admission or denial by this Defendant.

60. Defendant realleges Paragraphs 1 through 9, and Paragraphs 11 through 17, Paragraphs 21 through 27, Paragraphs 30 through 49, Paragraphs 52 through 54, and Paragraphs 57 through 58, insofar as they address or explain any of the prior responses as if set out in full herein.

61. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

62. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

COUNT VII- FRAUDULENT MISREPRESENTATION

63. Defendant realleges Paragraphs 1 through 9, and Paragraphs 11 through 17, Paragraphs 21 through 27, Paragraphs 30 through 49, Paragraphs 52 through 54, Paragraphs 57 through 58, and Paragraphs 61 through 62, insofar as they address or explain any of the prior responses as if set out in full herein.

64. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

65. Defendant denies the first sentence in this Paragraph, and admits the second and third sentences.

66. Admitted.

67. Defendant admits he was involved in the preparation of the PPM, but denies all other allegations in this Paragraph and demands strict proof thereof.

68. Admitted.

69. Admitted.

70. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

71. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

72. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

73. Admitted.

74. Admitted.

75. Admitted.

76. Admitted.

77. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

78. Admitted.

79. Defendant admits thirty-three (33) percent of Toke Oil and Gas S.A. was purchased by DeepGulf, Inc. from Vincente Ximenes on or about August 12, 2010, and that this Defendant participated in the communication that led to this transaction. All other

allegations contained in this Paragraph are denied and strict proof is demanded thereof.

80. Defendant admits there was an agreement to purchase an additional thirty-three (33) percent of Toke Oil and Gas S.A. from Vincente Ximenes on or about May 25, 2012, and that he participated in the communication concerning this purchase. All other allegations contained in this Paragraph are denied and strict proof is demanded thereof.

81. Defendant admits that thirty-three (33) percent of Toke Oil and Gas S.A. was purchased from this Defendant on or about 25 May 2012, but denies all other allegations in this Paragraph and demands strict proof thereof.

82. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

83. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

84. Defendant cannot admit or deny whether DeepGulf, Inc. has the right to the records of Toke Oil and Gas S.A. considering “records” are not sufficiently defined in this Paragraph. All other

allegations in this Paragraph are denied and strict proof is demanded thereof.

85. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

86. Defendant is unable to admit or deny whether the purchase of Toke Oil and Gas S.A. shares was completed by DeepGulf, Inc. and therefore demands strict proof of the allegations contained within this Paragraph.

87. Defendant is unable to admit or deny the allegations in this Paragraph as it does not specifically define the documents at issue, or the entity to which Plaintiffs refer. Therefore, this Paragraph is denied and strict proof is demanded thereof.

88. Defendant is unable to admit or deny the allegations in this Paragraph in that it does not specifically define the documents at issue. Therefore, this Paragraph is denied and strict proof is demanded thereof.

89. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

90. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

91. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

COUNT VIII-DECLARATORY RELIEF

92. Defendant realleges Paragraphs 1 through 9, and Paragraphs 11 through 17, Paragraphs 21 through 27, Paragraphs 30 through 49, Paragraphs 52 through 54, Paragraphs 57 through 58, Paragraphs 61 through 62, and Paragraphs 64 through 91, insofar as they address or explain any of the prior responses as if set out in full herein.

93. Defendant denies the allegations in this Paragraph and demands strict proof thereof.

94. Defendant is unable to admit or deny the allegations contained in this Paragraph. As such, Defendant denies the allegations in this Paragraph and demands strict proof thereof.

COUNT IX-ACCOUNTING

95. Defendant realleges Paragraphs 1 through 9, and Paragraphs 11 through 17, Paragraphs 21 through 27, Paragraphs 30 through 49,

Paragraphs 52 through 54, Paragraphs 57 through 58, Paragraphs 61 through 62, Paragraphs 64 through 91, and Paragraphs 93 through 94, insofar as they address or explain any of the prior responses as if set out in full herein.

96. Admitted.

97. Defendant acknowledges he has certain legal duties and responsibilities to the Plaintiffs. All other allegations in this Paragraph are denied and strict proof is demanded thereof.

98. Defendant requests the application of Florida Law and Equity be applied equal to all parties in this matter, and in turn requests an accounting from the Plaintiffs and the relief as requested by the Plaintiffs as requested in this Count.

AFFIRMATIVE DEFENSES

As affirmative defenses, Defendant would assert duress, estoppel, failure of consideration, fraud, illegality, laches, license, that each cause of action, claim, and item of damages did not accrue within the time prescribed by law for them before this action was brought (statute of limitations), waiver, and failure or lack of standing by these Plaintiffs to bring this cause against this Defendant.

COUNTER-CLAIM OF MARC M. MOSZKOWSKI

COUNT I: ACCOUNTING

1. This is an action for an accounting.
2. Counter-Claimant is a stockholder, and officer of the Plaintiff/Counter-Defendant entities.
3. Florida law and equity requires Plaintiff/ Counter-Defendants to account for their use of their assets to the Counter-Claimant.

WHEREFORE, Defendant/Counter-Claimant demands judgment for an accounting of all of the Plaintiffs/Counter-Defendants assets and a lien against those assets for any judgment of amounts owed Counter-Claimant by Counter-Defendants plus attorney's fees and interest and any other relief that the trier of fact deems appropriate.

COUNT II: BREACH OF CONTRACT

4. Plaintiffs/Counter-Defendants and Defendant/Counter-Claimant entered into multiple contracts wherein Defendant/Counter-Claimant agreed to perform certain work for Plaintiffs in exchange for reasonable compensation.
5. Plaintiffs breached these agreements in that they have failed to compensate your Defendant as agreed.

6. As a consequence of Plaintiffs/ Counter-Defendants' breach, Defendant/Counter-Plaintiff suffered damages.

WHEREFORE, based on the foregoing, the Counter-Claimant demands judgment against the Plaintiffs/ Counter-Defendants for breach of contract in an amount to be determined by the trier of fact, in excess of the jurisdictional minimum of this Court, plus costs.

COUNT III: WORK AND LABOR DONE

7. Defendant/Counter-Claimant claims, of the Plaintiffs/Counter-Defendants, sums due for work and labor done.

WHEREFORE, based on the foregoing, the Counter-Claimant demands judgment against the Plaintiffs/ Counter-Defendants for work and labor done in an amount to be determined by the trier of fact, in excess of the jurisdictional minimum of this Court, plus costs.

COUNT IV: BREACH OF CONTRACT

8. Plaintiffs/Counter-Defendants and Defendant/Counter-Claimant entered into an agreement whereby Plaintiffs/Counter-Defendants agreed to take all necessary and reasonable steps to obtain a permanent resident visa for the Defendant/Counter-Claimant.

9. Plaintiffs/Counter-Defendants breached said agreement in that they failed to obtain the permanent resident visa for the Defendant/Counter-Plaintiff.
10. Counter-Claimant suffered actual injury in loss of income and other damages as a result of Plaintiff/Counter-Defendant's breach.

WHEREFORE, based on the foregoing, the Counter-Claimant demands judgment against the Plaintiffs/Counter-Defendants for breach of contract in an amount to be determined by the trier of fact, in excess of the jurisdictional minimum of this Court, plus costs.

COUNT V: FRAUD BASED ON PROMISE TO PAY

11. On a series of occasions between 2008 and 2017, Plaintiffs/Counter-Defendants made certain assurances to Defendant/Counter-Plaintiff concerning compensation.
12. On all of those occasions, Plaintiffs/Counter-Defendants represented to Defendant/Counter-Claimant that he would receive compensation for his work and contribution to the Plaintiffs/Counter-Defendants.
13. Said representations were false and Plaintiffs/Counter-Defendants knew or should have known those representations were false.

14. Plaintiffs/ Counter-Defendants intended for Defendant/Counter-Claimant to rely on said representations and induced Defendant/Counter-Plaintiff to rely thereon.
15. Counter-Claimant believed said representations and promises and relied on them justifiably.
16. On or about 10 February 2017, Counter-Claimant discovered said fraud.
17. As a proximate result of said fraud, the Defendant/Counter-Claimant was caused to incur substantial financial and emotional distress.
18. Counter-Claimant would assert compensatory and punitive damages against Plaintiffs/Counter-Defendants based on the intentional and/or reckless nature of their conduct.

WHEREFORE, based on the foregoing, the Counter-Claimant demands judgment against the Plaintiffs/ Counter-Defendants for fraud based on promise to pay in an amount to be determined by the trier of fact, in excess of the jurisdictional minimum of this Court, plus costs.

COUNT VI: FRAUDULENT MISREPRESENTATION

19. On a series of occasions between 2008 and 2017, Plaintiffs/Counter-Defendants made certain assurances to Defendant/Counter-Plaintiff concerning his immigration status.
20. On those occasions, and all times relevant thereto, Plaintiffs/Counter-Defendants represented to that they were attempting to obtain a permanent resident visa for Counter-claimant.
21. Said representations were false and Plaintiffs/Counter-Defendants knew or should have known they were false.
22. Plaintiffs/ Counter-Defendants intended for Defendant/Counter-Claimant to rely on said representations and induced Defendant/Counter-Claimant to rely thereon.
23. On or about 10 February 2017, Counter-Claimant discovered said fraud.
24. As a proximate result of said fraud, the Defendant/Counter-Claimant was caused to incur substantial financial and emotional distress.

25. Counter-Claimant would assert compensatory and punitive damages against Plaintiffs/Counter-Defendants based on the intentional and/or reckless nature of their conduct.

WHEREFORE, based on the foregoing, the Counter-Claimant demands judgment against the Plaintiffs/ Counter-Defendants for fraudulent misrepresentation in an amount to be determined by the trier of fact, in excess of the jurisdictional minimum of this Court, plus costs.

Respectfully submitted this 15th day of April 2019.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

Florida Bar No. 0111906

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s/ Thomas R. Boller

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Attorneys for Defendants

tom@bollerlawfirm.com

CERTIFICATE OF SERVICE

I hereby certify that on 15 April 2019, the foregoing was electronically filed with the Clerk of the Court using the CM/ECF system which will send notification of such filing all other counsel of record.

s/ Mary Allie E. Boller

MARY ALLIE E. BOLLER

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IN THE UNITED STATES DISTRICT COURT FOR THE
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION

DEEPGULF, INC., and
TOKE OIL AND GAS, S.A.,

Plaintiffs,

v.

CASE NO. 3:18-CV-1466-MCR-MJF

MARC M. MOSZKOWSKI,

Defendant.

JOINT MOTION TO EXTEND DATES IN ORDER ENTERED

APRIL 4, 2019

COMES NOW, undersigned counsel, and pursuant to Rule 6.1, Rules of the United States District Court for the Northern District of Florida, moves the Court for entry of an Order extending the time for deadlines in the Order dated April 4, 2019 and state as follows:

1. On August 6, 2019, Defendant provided to Plaintiffs spreadsheets that are relevant to Plaintiffs' claims. Plaintiffs were unable to review prior to the Deposition of the Defendant, which was held on July 17, 2019.

2. Furthermore, on July 22, 2019, Defendant produced 18,000 emails, some of which are relevant to Plaintiffs' claims.

3. On August 7, 2019, Plaintiffs produced supplemental documents responsive to Defendant's discovery requests, some of which are relevant to Defendant's case.

4. Documents responsive to Defendant's subpoena to Wells Fargo were produced on August 1, 2019, after the Court denied Plaintiffs' objection, some of which are relevant to Defendant's case.

5. The current discovery deadline expired on July 30, 2019 and the dispositive motions deadline is August 15, 2019.

6. Plaintiffs and Defendant have agreed to extend the discovery deadline to October 31, 2019, limited to discovery on the spreadsheets and the recently disclosed emails and extend the dispositive motions deadline to November 15, 2019.

7. Plaintiffs agree that Defendant will not be required to appear personally for any additional discovery requests and may appear via video or phone conference.

WHEREFORE, the parties move this Honorable Court for an Order granting the parties an extension of time according to the above referenced stipulations.

Respectfully submitted this 8th day of August, 2019.

s/Braden K. Ball, Jr.

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**UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF FLORIDA
PENSACOLA DIVISION**

**DEEPGULF, INC., and TOKE OIL
AND GAS, S.A.,**

Plaintiffs,

v.

Case No. 3:18cv1466-TKW-MJF

MARC M. MOSZKOWSKI,

Defendant.

ORDER

This case is before the Court on Plaintiffs' motion to dismiss Defendant's counterclaims for failure to state a claim under Fed. R. Civ. P. 12(b)(6) and Plaintiffs' motion to strike Defendant's affirmative defenses based on the heightened *Twombly*¹-*Iqbal*² pleading standard. Upon consideration of the motions (Docs. 73, 71), the responses in opposition to the motions (Docs. 76, 74), the parties' memoranda of law (Docs. 77, 72, 75), and the pleading in which the counterclaims and affirmative defenses were raised (Doc. 70), the Court finds that the motions are due to be granted.

¹ *Bell Atl. Corp. v. Twombly*, 550 U.S. 544 (2007).

² *Ashcroft v. Iqbal*, 556 U.S. 662 (2009).

With respect to the motion to dismiss, the Court agrees with Plaintiffs that the counterclaims, as currently pled, fail to state a claim. The counterclaims do not contain (or even incorporate by reference) factual allegations sufficient to meet the *Twombly-Iqbal* pleading standard, do not attach or adequately describe the agreements on which several counts are based, and do not allege fraud with the the specificity required by Fed. R. Civ. P. 9(b). Defendant will be given one opportunity to replead the counterclaims to correct these deficiencies. *See* Fed. R. Civ. P. 15(a)(2).

With respect to the motion to strike, although the Court is aware that some courts have held that affirmative defenses are subject to the *Twombly-Iqbal* pleading standard, the Court finds more persuasive the decisions that have held to the contrary. *See, e.g., Dionisio v. Ultimate Images & Designs, Inc.*, No. 19-cv-60475, 2019 U.S. Dist. LEXIS 127199, at *4-6 (S.D. Fla. July 30, 2019) (collecting cases). Nevertheless, the Court finds that the boilerplate and combined manner in which the affirmative defenses were pled in this case, *see* Doc. 70, at 16, is legally inadequate. *Dionisio*, 2019 U.S. Dist. LEXIS 127199, at *6 (“When two separate defenses are pled under a single affirmative defense heading, the proper course of action for the court is to strike the defendant’s affirmative defense without prejudice, giving leave for the defendant to amend.”). Defendant will be given one opportunity to replead the affirmative defenses in a manner that provides fair notice as to the basis of each

defense. *Id.* at *12-13 (striking bareboned, boilerplate affirmative defenses with leave to amend “in order to adequately plead them and provide Plaintiff with fair notice of the basis of each defense”).

Accordingly, for the reasons stated above, it is

ORDERED that:

1. Plaintiffs’ motion to dismiss Defendant’s counterclaims (Doc. 73) is
GRANTED.
2. Plaintiffs’ motion to strike Defendant’s affirmative defenses (Doc. 71) is
GRANTED.
3. Defendant may file a second-amended answer within 14 days of the date of this Order curing the deficiencies in the counterclaims and affirmative defenses, if he can do so in good faith.

DONE and ORDERED this 29th day of August, 2019.

T. Kent Wetherell, II
T. KENT WETHERELL, II
UNITED STATES DISTRICT JUDGE